STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

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Case 13-T-0585

Application of Cricket Valley Energy Center, LLC for a Certificate of Environmental Compatibility and Public Need for the Construction and Operation Pursuant to Article VII of the Public Service Law For Approval of a New 345 kV Line from the Pleasant Valley Substation to the Cricket Valley Energy Center, LLC, and the Reconductoring of an Existing 345 kV Line

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# CRICKET VALLEY ENERGY CENTER, LLC
# CRICKET VALLEY TO PLEASANT VALLEY 345 KV TRANSMISSION PROJECT
# ENVIRONMENTAL MANAGEMENT AND CONSTRUCTION PLAN (EM&CP)
# VOLUME I

Revision 2

Dated: August 28, 2017

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# I. GENERAL DESCRIPTION OF THE PROJECT

## A. Introduction

On December 30, 2013, Cricket Valley Energy Center, LLC ("CVEC or the Certificate Holder") filed an application under Article VII of the Public Service Law (PSL) with the Commission, seeking a certificate of environmental compatibility and public need to:

- develop a new, approximately 14.6-mile 345 kV transmission line parallel to the existing Con Edison 345 kV Line 398 to connect the planned Cricket Valley Energy Center generation facility (the "Energy Center") in the Town of Dover, New York, to Consolidated Edison's (Con Edison's) Pleasant Valley Substation in the Town of Pleasant Valley, New York (the "Transmission Line");

- reconductor an approximately 3.4-mile segment of the existing 345 kV Line 398 in the Town of Dover between the Cricket Valley Switchyard and the New York-Connecticut state line (the "Reconductoring Segment"); and

- make improvements to Con Edison's Pleasant Valley Substation to accommodate the new Transmission Line

The Transmission Line, Reconductoring Segment and improvements to the Pleasant Valley Substation collectively constitute the "Project" (or "Transmission Facilities").

Because the Project will constitute System Upgrade Facilities[1] ("SUFs") pursuant to the tariffs of the New York Independent System Operator (the "NYISO"), subsequent to completion of construction, ownership, operation, and maintenance of the Project will be transferred to Consolidated Edison Company of New York, Inc.'s ("Con Edison") pursuant to the NYISO Open Access Transmission Tariff (the "OATT") Attachment X, Sections 5.1.3, 5.2 and 11.3 of the NYISO Pro Forma Interconnection Agreement.

Supplemental information was filed by CVEC with the Commission and served on the statutory parties on April 2, 2014, in response to the Secretary's letter of March 3, 2014. By letter dated May 21, 2014, the Secretary determined that the submitted documents, as supplemented, were filed or otherwise in compliance with the filing requirements of Article VII. After exploratory

[1] Per the NYISO: System Upgrade Facilities shall mean the least costly configuration of commercially available components of electrical equipment that can be used, consistent with good utility practice and Applicable Reliability Requirements, to make the modifications to the existing transmission system that are required to maintain system reliability due to: (i) changes in the system including such changes as load growth and changes in load pattern, to be addressed in the form of generic generation or transmission projects; land (ii) proposed interconnections. In the case of proposed interconnection projects, System Upgrade Facilities are the modifications or additions to the existing New York State Transmission System that are required for the proposed project to connect reliably to the system in a manner that meets the NYISO Minimum Interconnection Standard.

discussions between the parties, a Notice of Impending Negotiations was filed with the Commission by CVEC on July 3, 2014. A public statement hearing was held before Administrative Law Judge ("ALJ") Kevin J. Casutto at the Pleasant Valley Town Hall on August 4, 2014.

A draft Joint Proposal was served on the parties on August 13, 2014. Settlement conferences commenced on September 4, 2014, and additional settlement conferences, by telephone and in person, upon notice to the active parties, were held between September 2014 and March 2015.

During that period, a Ruling On Schedule was issued by ALJ Kevin J. Casutto on November 25, 2014, observing, *inter alia*, that the parties were still in settlement talks and that the Applicant ". . . is expeditiously processing this application . . . ." In the Ruling On Schedule, the ALJ rejected the Applicant's, Department of Public Service Staff's ("DPS Staff"), and Department of Environmental Conservation's ("DEC") proposed respective schedules and instead adopted the schedule advocated by the members of the Cricket Valley Improvement Coalition ("CVIC").

When it was clear, however, that a formal settlement would not be reached, on March 23, 2015, the Applicant filed with the Secretary and served on the parties Schedule of Filed and Additional CVEC Exhibits and a Note of Clarification requesting a litigation schedule be established. After competing scheduling proposals were filed with the ALJ, a second Ruling On Schedule was issued April 20, 2015. On May 13, 2015, direct testimony was filed by CVEC, CVIC, DPS Staff, DEC, and the New York State Department of Agriculture and Markets ("Ag & Mkts"). On June 19, 2015, rebuttal testimony was filed on behalf of CVEC, Con Edison, and DPS Staff. Evidentiary hearings were held on July 14 and 15, 2015. The Certificate of Environmental Compatibility and Public Need (the "Certificate") was issued on April 20, 2016.

This Environmental Management and Construction Plan ("EM&CP") is being submitted by the Certificate Holder in compliance with the Certificate and is intended to describe the environmental protection measures to be implemented during construction of the certificated Transmission Facilities. The EM&CP provided herein details environmental and construction protective measures that will be implemented during the construction of the 345 kV Transmission Facilities.

Agriculture protection measures have been coordinated with the Ag & Mkts, and measures related to clearing, stream and wetland protection, and water quality certification, have been coordinated with the DEC and DPS Staff. According to the "General Guidelines for Environmental Management and Construction Plan(s)" (set forth in Exhibit 40), the project EM&CP must provide details of anticipated construction methods, impact protection and mitigation measures, division of responsibilities for environmental supervision, compliance monitoring, and control, and CVEC's goals of right-of-way ("ROW") management for the certified facility.

This EM&CP includes a detailed description of existing and proposed conditions within the ROW, Plan and Profile drawings illustrating the transmission structure types and locations within the ROW, construction access and clearing requirements, protective measures for streams and

wetlands, methods to maintain vegetation on the ROW following construction, identification of residences and noise sensitive sites, agricultural lands, and protocols to protect previously unknown cultural resource sites.

This EM&CP provides general information on the Transmission Facilities (Section I), and lists each Certificate Condition and a CVEC response to each project-specific Condition (Section II). Appendices provide specific details for the ROW, protective measures to be employed by CVEC during construction of the project, and Generic Spill and Cleanup Procedures.

Pursuant to Certificate Condition 33, Appendix A to the Certificate, included in this filing is an affidavit of service showing the persons who were served by the methods indicated on the service list, including those required by Article VII and 16 NYCRR Part 85-2.10 and a courtesy copy service list. The EM&CP is available for public inspection at the following locations: (1) LaGrange Library, 488 Freedom Plains Road (Rt 55) Suite 109, Poughkeepsie NY 12603, (845)-452-3141; (2) Dover Plains Library, 1797 Route 22, Wingdale NY 12594, (845)-832-6605; (3) Pleasant Valley Free Library, 1584 Main Street PO Box 633, Pleasant Valley NY 12569, (845)-635-8460.

Pursuant to 16 NYCRR Part 85.2.10 (c), notice of the filing was published in a newspaper of general circulation – the Poughkeepsie Journal on October 1, 2016. Cricket Valley has also sent letters to the abutting landowners, the affected town supervisors and to the Dutchess County executive, informing them of the filing. Copies of the notice and sample letters are attached to the cover letter along with an affidavit for publication of the notice.

Certificate Condition 24 in Appendix A of the Order reads as follows: "The Certificate Holder shall not begin site preparation or construction with respect to a specific portion of the Project – except surveying, soils testing, and such other related activities as are necessary to prepare the final design plans – before it has submitted to the Commission and the parties, and the Commission has approved, the EM&CP for the relevant portion of the Project."

To ensure that certain tree clearing is completed between October 1st and March 31st, before seasonal wildlife restrictions apply from April 1 to September 30, CVEC had requested that the Project be approved in two portions: (1) certain early tree clearing, in advance of the restriction period ("Portion 1"); followed by (2) the remainder of the Project ("Portion 2"). On January 26, 2017 CVEC submitted a revision to the EM&CP for the purpose of supporting a request for approval from the Commission for the early tree clearing (submittal referred to as "EM&CP Revision 1"). In February 2017 the Commission granted approval for the tree clearing by the "ORDER APPROVING A LIMITED ENVIRONMENTAL MANAGEMENT AND CONSTRUCTION PLAN FOR TREE CLEARING", (Issued and Effective February 21, 2017). In accordance with Condition 42 of the Certificate of Environmental Compatibility and Public Need (issued on April 20, 2016), CVEC convened a preconstruction meeting on February 17, 2017 with DPS staff and other interested agencies to discuss the limited tree clearing scheduled for completion in March of this year. The tree clearing scheduled in March involves the segment of the transmission corridor extending from the CVEC switchyard to transmission structures CV-60 and L-60-1.

As discussed in Section I. A. (Introduction) of EM&CP Revision I, this revision ("Revision 2") addresses the remainder of the Project (Portion 2), which involves all aspects of construction of the transmission line, including the tree clearing remaining to be completed along the transmission corridor and laydown area set up. For convenience and to facilitate agency and public review, the Plan and Profile drawings in Volume II of this revision address tree clearing along the entire transmission corridor (clearing associated with Portion 1, plus clearing associated with Portion 2).

## B. Description of Proposed Facility

### General Project Description

In addition to the Transmission Line and Reconductoring Segment, the Transmission Facilities will also include improvements to Con Edison's Pleasant Valley Substation. New protection and communication system upgrades will be required within the existing Pleasant Valley Substation and control buildings at the Pleasant Valley Substation, and a new 345 kV breaker and 345 kV feeder disconnect switch will be installed at the substation.

During the 2011/2012 Class Year Study process for the Generation Facility, the New York Independent System Operator ("NYISO") determined that the Transmission Facilities are "SUFs and are necessary to allow the Generation Facility to interconnect with the grid without adversely impacting reliability, stability, operability or transfer limits of the system.

Con Edison will acquire ownership of the Project pursuant to the "OATT" filed by NYISO and approved by the Federal Energy Regulatory Commission ("FERC") (NYISO Tariffs - New York Independent System Operator, Inc. (2013). The Certificate Holder will construct the Project pursuant to the OATT and in accordance with Con Edison requirements. The Certificate Holder will petition the Commission for approval of the transfer to Con Edison of the certificate issued in this proceeding.

### Description of Facility Location

The Project will be located entirely within the existing Con Edison Line 398 ROW. Additional information regarding the Project location is included herein.

#### *Cricket Valley Switching Station to the Pleasant Valley Substation*

The Transmission Line will connect the planned Cricket Valley Switching Station in the Town of Dover, New York to the existing Pleasant Valley Substation in the Town of Pleasant Valley, New York. The Transmission Line will be located within the existing Line 398 ROW. The existing Line 398 ROW is generally 250 feet wide and traverses (from east to west) the towns of Dover, Union Vale, LaGrange and Pleasant Valley, all in Dutchess County. No additional ROW is required to accommodate the new Transmission Line. The existing Line 398 is generally within the northern 125 feet of the existing ROW. The centerline of Transmission Line will generally be offset 50 feet south of the existing Line 398 ROW centerline, or 100 feet south of the Line 398 centerline. The Transmission Line is, therefore, generally located within the southern 125 feet of the existing 250-foot wide Line 398 ROW.

The length of the Transmission Line is approximately 14.6 miles. The length of Reconductoring Segment is approximately 3.4 miles. Included in the aforementioned distances are 2 leads from the Cricket Valley switchyard. One pole line will accommodate both the Pleasant Valley – Cricket Valley (PV-CV) leads and Cricket Valley – Long Mountain (CV-LM) leads. The second pole line will accommodate the new transmission line lead to PV. Both leads are part of the Project.

From the Cricket Valley Switching Station in the Town of Dover, NY, the Transmission Line heads northwest to the north of the Great Swamp Critical Environmental Area and then heads west over West Mountain. The Transmission Line continues in a northwesterly direction into the Town of Union Vale. The total distance in the Town of Dover is approximately 3.5 miles. The Transmission Line continues in a generally westerly direction through the Town of Union Vale and passes to the north of the Sky Acres Airport. The total distance in the Town of Union Vale is approximately 5.7 miles. The Transmission Line continues in a west-northwesterly direction through the Town of LaGrange crossing State Route 82, several local roads and the Taconic State Parkway. The total distance in the Town of LaGrange is approximately 2.7 miles. In the Town of Pleasant Valley, the Transmission Line will cross Wappinger Creek and Main Street (U.S. Route 44) before interconnecting at the Pleasant Valley Substation. The total distance in the Town of Pleasant Valley is approximately 2.7 miles.

### *Cricket Valley Switching Station to the New York-Connecticut State Line*

The Reconductoring Segment will also include reconductoring of the approximately 3.4-mile segment of Line 398 that runs east from the planned Cricket Valley Switching Station to the New York-Connecticut state line. The Reconductoring Segment is entirely within the existing Line 398 ROW, generally located within the northern 125 feet of the existing 250-foot wide Line 398 ROW. The Reconductoring Segment is located entirely within the Town of Dover. No additional ROW is required for the Reconductoring Segment.

From the planned new Cricket Valley Switching Station, this 3.4-mile Reconductoring Segment of Line 398 crosses New York State Route 22, County Route 6, Ten Mile River, and Lake Weil before reaching the New York-Connecticut state line.

## Design of Facilities

The design of Transmission facilities is described herein.

### *Design Voltage*

The design voltage of the Transmission Line is 345 kV.

### *Type and Size of Transmission Structures*

The Transmission Line will consist primarily of galvanized steel monopole structures with conductors arranged in a delta configuration for most of the structures. The first three structures near the Pleasant Valley substation will be lower galvanized steel H-frames with conductors arranged in a horizontal configuration.

Certificate Condition 29 provides that deviation from the certified centerline, design height and location of structures described in "Description and Location of Facility" shall be allowed for appropriate environmental or engineering reasons, except where a conflict with a provision of the Order would be created.

The height and location of certain structures has been adjusted to accommodate terrain and comply with engineering clearance requirements. The structures still, however, collectively average approximately 121 feet in height.

Table 1 below entitled "Reduction in Structure Height and Elevation Summary" provides the revised, approximate heights for all of the structures compared to the certified estimated heights.

## Table 1 Reduction in Structure Height and Elevation Summary (Revised July 10th, 2017)

| CVEC Line to Pleasant Valley | | | | | | | | | Existing line from Pleasant Valley to Connecticut Border | | |
|---|---|---|---|---|---|---|---|---|---|---|---|
| Structure Number | Est. Struct Height (ft) | Est. Top of Pole Elev | Certified Est. Struct Height (ft) | Certified Est. Top of Pole Elev | Change in Struct Ht (ft) | Change in Top of Pole Elev | Structure Description | Actions Taken See Codes | Structure Number | Struct. Height (ft) | Top of Struct Elev |
| N-2 | 65.0 | 328.6 | 65.0 | 328.6 | 0 | 0 | LN3 | | N-3 | 66 | 338 |
| CV-01 | 102 | 405.6 | 98.0 | 401.6 | 4 | 4 | Horiz Config/Strain H-frame/3-Pole Str | C | L-1 | 94 | 413 |
| CV-02 | 135.5 | 464.1 | 135.4 | 464.1 | 0.1 | 0 | Horiz Config/Tangent Susp/H-frame | C | L-2 | 120 | 453 |
| CV-03 | 123.5 | 452.1 | 123.0 | 451.6 | 0.5 | 0.5 | Horiz Config/Strain H-frame/3-PoleStr | C | L-3 | 119 | 454 |
| CV-04 | 117 | 360 | 111.5 | 354.5 | 5.5 | 5.5 | Delta Config - Strain Pole | A | L-4 | 84 | 332 |
| CV-05 | 112 | 302.6 | 111.5 | 302.3 | 0.5 | 0.3 | Delta Config - Strain Pole | A,D | L-5 | 108 | 306 |
| CV-06 | 127 | 379.9 | 126.5 | 379.4 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-6 | 103 | 349 |
| CV-07 | 117 | 521.2 | 116.5 | 520.7 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-7 | 98 | 509 |
| CV-08 | 127 | 621.4 | 126.5 | 620.9 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-8 | 88 | 581 |
| CV-09 | 117 | 523.1 | 116.5 | 522.6 | 0.5 | 0.5 | Delta Config - Tangent Susp | A | L-9 | 112 | 524 |
| CV-10 | 157 | 537.7 | 156.5 | 537.2 | 0.5 | 0.5 | Delta Config - Tangent Susp | A | L-10 | 107 | 488 |
| CV-11 | 107 | 402.9 | 106.5 | 401.9 | 0.5 | 1.0 | Delta Config - Strain Pole | A | L-11 | 81 | 379 |
| CV-12 | 127 | 546.1 | 126.5 | 545.6 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-12 | 112 | 520 |
| CV-13 | 117 | 644 | 121.5 | 648.7 | 0 | 0 | Delta Config - Tangent Susp | A | L-13 | 114 | 637 |
| CV-14 | 122 | 665.3 | 126.5 | 655.9 | 0 | 9.4 | Delta Config - Tangent Susp | B,D | L-14 | 99 | 626 |
| CV-15 | 137 | 619.6 | 136.5 | 610.7 | 0.5 | 8.9 | Delta Config - Tangent Susp | B,D | L-15 | 114 | 592 |
| CV-16 | 122 | 700.7 | 121.5 | 700.1 | 0.5 | 0.6 | Delta Config - Tangent Susp | B,D | L-16 | 92 | 655 |
| CV-17 | 132 | 772.1 | 131.5 | 771.5 | 0.5 | 0.6 | Delta Config - Tangent Susp | B | L-17 | 108 | 746 |
| CV-18 | 122 | 745.8 | 121.5 | 745.3 | 0.5 | 0.5 | Delta Config - Strain Pole | B,D | L-18 | 103 | 733 |
| CV-19 | 102 | 765 | 101.5 | 764.1 | 0.5 | 0.9 | Delta Config - Tangent Susp | B,D | L-19 | 86 | 737 |
| CV-20 | 137 | 740.9 | 136.5 | 740.4 | 0.5 | 0.5 | Delta Config - Tangent Susp | B,D | L-20 | 102 | 704 |
| CV-21 | 97 | 596.1 | 96.5 | 595.6 | 0.5 | 0.5 | Delta Config - Tangent Susp | B,D | L-21 | 84 | 569 |
| CV-22 | 137 | 523.4 | 126.5 | 535.5 | 10.5 | 0 | Delta Config - Tangent Susp | B,D | L-22 | 97 | 521 |
| CV-23 | 102 | 635.5 | 91.5 | 626.0 | 10.5 | 9.5 | Delta Config - Tangent Susp | E | L-23 | 101 | 630 |
| CV-24-1 | 97 | 691 | 96.5 | 690.6 | 0.5 | 0.4 | Delta Config - Tangent Susp | E | | | |
| CV-24-2 | 94 | 744.4 | 83.5 | 733.9 | 10.5 | 10.5 | Delta Config - Strain Pole | E | L-24 | 82 | 733 |
| CV-24-3 | 117 | 756.2 | 105.5 | 744.7 | 11.5 | 11.5 | Delta Config - Tangent Susp | E | | | |
| CV-25 | 112 | 764.9 | 101.5 | 754.3 | 10.5 | 10.6 | Delta Config - Tangent Susp | B | L-25 | 95 | 733 |
| CV-26A | 177 | 891.6 | 183 | 877.1 | 6.5 | 14.5 | Vertical Config - Strain Pole | F,D | L-26 | 88 | 790 |
| CV-27A | 182 | 961.6 | 183 | 957.4 | 11.5 | 4.2 | Vertical Config - Strain Pole | F,D | L-27 | 105 | 888 |
| CV-28 | 102 | 1050.1 | 101.5 | 1049.6 | 0.5 | 0.5 | Delta Config - Tangent Susp | B,D | L-28 | 83 | 1018 |
| CV-29 | 107 | 1036.2 | 106.5 | 1035.8 | 0.5 | 0.4 | Delta Config - Tangent Susp | B,D | L-29 | 86 | 993 |
| CV-30 | 137 | 997.3 | 136.5 | 997.2 | 0.5 | 0.1 | Delta Config - Tangent Susp | B,D | L-30 | 110 | 954 |
| CV-31 | 127 | 968 | 131.5 | 970.1 | 0 | 0 | Delta Config - Tangent Susp | B,D | L-31 | 86 | 912 |
| CV-32 | 112 | 922.8 | 111.5 | 922.7 | 0.5 | 0.1 | Delta Config - Tangent Susp | B,D | L-32 | 90 | 887 |
| CV-33 | 127 | 951.9 | 126.5 | 951.4 | 0.5 | 0.5 | Delta Config - Tangent Susp | B,D | L-33 | 106 | 920 |
| CV-34 | 122 | 1097.5 | 121.5 | 1095.7 | 0.5 | 1.8 | Delta Config - Tangent Susp | B,D | L-34 | 91 | 1027 |
| CV-35 | 152 | 973 | 151.5 | 974.1 | 0.5 | 0 | Delta Config - Tangent Susp | B | L-35 | 111 | 912 |
| CV-36 | 117 | 920.9 | 116.5 | 919.6 | 0.5 | 1.3 | Delta Config - Strain Pole | B,D | L-36 | 101 | 882 |
| CV-37 | 112 | 974.8 | 111.5 | 974.3 | 0.5 | 0.5 | Delta Config - Tangent Susp | A | L-37 | 89 | 940 |
| CV-38 | 117 | 1042.4 | 116.5 | 1041.9 | 0.5 | 0.5 | Delta Config - Tangent Susp | A | L-38 | 84 | 1012 |
| CV-39 | 132 | 1005.8 | 131.5 | 1005.3 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-39 | 91 | 961 |
| CV-40 | 107 | 792.1 | 106.5 | 792.0 | 0.5 | 0.1 | Delta Config - Strain Pole | A | L-40 | 120 | 844 |
| CV-41 | 137 | 720.3 | 136.5 | 719.9 | 0.5 | 0.4 | Delta Config - Tangent Susp | A | L-41 | 114 | 697 |
| CV-42 | 132 | 750.1 | 131.5 | 749.8 | 0.5 | 0.3 | Delta Config - Tangent Susp | A | L-42 | 110 | 725 |
| CV-43 | 142 | 919.1 | 141.5 | 918.6 | 0.5 | 0.4 | Delta Config - Tangent Susp | A | L-43 | 116 | 890 |
| CV-44 | 137 | 1114.6 | 136.5 | 1114.1 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-44 | 94 | 1074 |
| CV-45 | 117 | 1111.9 | 116.5 | 1111.4 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-45 | 92 | 1080 |
| CV-46 | 112 | 1125.8 | 111.5 | 1125.3 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-46 | 83 | 1097 |
| CV-47 | 107 | 1164.6 | 106.5 | 1162.4 | 0.5 | 2.2 | Delta Config - Tangent Susp | A,D | L-47 | 85 | 1128 |

## Table 1 Reduction in Structure Height and Elevation Summary (Revised July 10th, 2017) (Continued)

| CVEC Line to Pleasant Valley | | | | | | | | | Existing line from Pleasant Valley to Connecticut Border | | |
|---|---|---|---|---|---|---|---|---|---|---|---|
| Structure Number | Est. Struct Height (ft) | Est. Top of Pole Elev | Certified Est. Struct Height (ft) | Certified Est. Top of Pole Elev | Change in Struct Ht (ft) | Change in Top of Pole Elev | Structure Description | Actions taken See Codes | Structure Number | Struct. Height (ft) | Top of Struct Elev |
| CV-48 | 133 | 1218.6 | 131.5 | 1218.1 | 0.5 | 0.5 | Delta Config - Tangent Susp | A,D | L-48 | 95 | 1182 |
| CV-49 | 127 | 1241.3 | 126.5 | 1240.9 | 0.5 | 0.4 | Delta Config - Tangent Susp | A | L-49 | 90 | 1200 |
| CV-50 | 167 | 1176.5 | 166.5 | 1176.2 | 0.5 | 0.3 | Delta Config - Tangent Susp | A,D | L-50 | 125 | 1109 |
| CV-51 | 117 | 1276.3 | 116.5 | 1275.8 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-51 | 93 | 1254 |
| CV-52 | 112 | 1219.7 | 111.5 | 1219.7 | 0.5 | 0.0 | Delta Config - Tangent Susp | A,D | L-52 | 108 | 1201 |
| CV-53 | 167 | 1209.8 | 166.5 | 1211.5 | 0.5 | 0.0 | Delta Config - Tangent Susp | A,D | L-53 | 128 | 1191 |
| CV-54 | 112 | 1172.3 | 111.5 | 1171.8 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-54 | 97 | 1156 |
| CV-55 | 117 | 1011.4 | 116.5 | 1010.9 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-55 | 121 | 1011 |
| CV-56 | 127 | 594.2 | 126.5 | 593.7 | 0.5 | 0.5 | Delta Config - Tangent Susp | A | L-56 | 127 | 595 |
| CV-57 | 112 | 563.2 | 111.5 | 562.7 | 0.5 | 0.5 | Delta Config - Strain Pole | A | L-57 | 82 | 531 |
| CV-58 | 147 | 583.8 | 136.5 | 573.3 | 10.5 | 10.5 | Delta Config - Tangent Susp | A,D | L-58 | 98 | 541 |
| CV-59 | 117 | 556 | 116.5 | 556.0 | 0.5 | 0.0 | Delta Config - Tangent Susp | A | L-59 | 87 | 528 |
| CV-60 | 142 | 588.6 | 116.5 | 563.1 | 25.5 | 25.5 | Delta Config - Strain Pole | A | L-60 | 87 | 557 |
| CVEC take-o | 81.5 | 515.6 | 80.0 | 514.1 | 1.5 | 1.5 | North Take Off Structure | G | | | |
| L-60-1 | 162 | 631.2 | | | 2.0 | 162 | L-Line Tap/Loop Structure | | | | |
| l-60-2 | 162 | 611.7 | | | 4.5 | 162 | Double Circuit Vertical DE Pole | | | | |
| | | AVERAGE CHANGE | | | 2.1 | 2.5 | | | | | |

| Codes | |
|---|---|
| **A** | Revised wire to wire and wire to structure clearances. Reduced clearance with top conductor to shield wire clearance by 8 feet. Reduced the insulator lengths by 2.5 feet. Reduced clearance from conductor to pole shaft by 2.5 feet. |
| **B** | Revised wire to wire and wire to structure clearances. Reduced the insulator lengths by 2.5 feet. Reduced clearance from conductor to pole shaft by 2.5 feet. Note the 8 ft reduction in conductor to shield wire clearances was incorporated in the original |
| **C** | Used H-Frame Config that includes modifications for elimination of bare-hand hot-line maintenance and reduced conductor to shield wire spacing. The net benefit is about 45 feet |
| **D** | Structure location adjustments to minimize excess clearance. |
| **E** | Structure location, height and spacing adjustments for FAA |
| **F** | Smith Road adjustments for EMF and property line avoidance |
| **G** | Changes associated with reconfig of lines entering CVEC (Changes implemented prior to 1st submittal to NYPSC) |

**Notes**

1) Bare-hand live-line maintenance with access from the structure was eliminated as a design criteria. Hot-stick live-line maintenance from the structure and live-line maintenance from insulated aerial bucket remain as a design criteria.

2) Minimum conductor clearance to ground set at 30 feet.

3) Pole Configuration and clearances modified - See drawing 2013-195-21 Rev 1 for typical suspension pole.

### *Type, Size, Number and Materials of Conductors*

The selected conductor for both the new Transmission Line and the Reconductoring Segment will be bundled "Mallard" 795 Aluminum Conductor Steel Supported ("ACSS"). As discussed in Exhibit 3, Alternatives, the conductor was selected to meet line rating requirements with consideration of construction costs as well as costs associated with line losses and line performance (EMF, corona). For the Reconductoring Segment from the new Cricket Valley Switching Station to NY-CT border, the bundled "Mallard" ACSS conductor also meets the North American Electric Reliability Corporation ("NERC") phase to ground clearance requirements with only minimal tower reinforcement. The conductor is sized for a summer normal rating of 1323 MVA; a maximum operating temperature (MOT) of 180°C; and to minimize the combined construction, operational and maintenance costs over its expected life. The line ratings for bundled Mallard 795 ACSS conductor are:

- Summer Normal: 2214 Amps at 95°C.
- Winter Normal: 2695 Amps at 95°C.
- Summer 15 minute emergency: 3717 Amps at 180°C.
- Winter 15 minute emergency: 3979 Amps at 180°C.

The shield wire will be 7#5 Alumoweld, the same shield wire used on the existing Line 398 with compatible sags. The selected optical ground wire (OPGW) is AFL[2] AlumaCore OPGW AC-102/691 with 72 fibers, compatible with strength and sags from the shield wire.

Aeolian vibration of the conductor, shield wire and OPGW will be controlled by use dampers. Dampers for vibration will be designed based upon Preformed Line Products (PLP) Vortx damper placement program. Control of galloping will be considered in the design of structures (arm spacing) and line design.

There is a transition from the bundled Mallard conductor of the Reconductoring Segment in New York to the Eversource (formerly Northeast Utilities)-proposed single Bluebird conductor at Tower L-76, immediately west of the NY-CT border. While both conductor types have similar emergency ratings, the Mallard conductor tends to operate at a cooler temperature than the Bluebird under normal summer conditions. The resulting temperature gradient across the connection fittings will be addressed by using a jumper loop or similar transition where the terminal connectors are under minimal loads (rather than tension) and the strength of the fittings will not be affected by the temperature gradient.

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[2] AFL Worldwide is the ground wire manufacturer.

### *Insulator Design*

As designed, the Transmission Line will utilize V-string or dead-end insulator assemblies. The insulation level equivalent will be determined after evaluation of transients overvoltage ("TOV") and Electromagnetic Transients Program ("EMTP") studies and new minimum air insulation distances ("MADs") with Con Edison approval. The Reconductoring Segment is designed to utilize the existing structures with a V-string insulator assembly for the middle phase and I-string insulator assemblies on the outer phases. The insulation level of 18 standard porcelain insulators matches existing conditions. Standard gray porcelain insulators, or other insulators that meet Con Edison criteria, will be used for all transmission work.

### *Construction Materials of the Towers*

With the exception of the three structures near the Pleasant Valley Substation, the Transmission Line will consist of galvanized steel monopole structures, designed in accordance with American Society of Civil Engineers ("ASCE") 48-11. Structures CV-01, CV-02 and CV-03 will be galvanized steel H-frames with conductors arranged in a horizontal configuration.

Configurations of the steel monopole structures will include the following:

- Suspension (0 to 5° angle).
- Strain (dead-end insulators from 0 to 45° angle).
- Dead-End (>45° angle and terminal).

The majority of the steel monopoles will have a delta arrangement of insulators. The pole configuration was designed to permit energized work practice with access from the structure or insulated bucket trucks. The clearances will be governed by the National Electrical Safety Code ("NESC"), latest edition and Consolidated Edison criteria for phase-to-phase clearances. The NESC provides minimum clearances to ground, adjacent transmission lines, railroads, buildings, and a host of other facilities. Clearances greater than minimum provide additional safety during extreme weather events or accidents. For the Transmission Line, the vertical clearance to ground will be 30 feet, which includes the NESC required clearance of 24.7 feet plus a 5 foot buffer. Vertical and horizontal clearances to objects will meet the NESC requirements plus a minimum of 3-foot buffer. Conductor clearance to surface structures will meet the NESC requirements plus additional space for working space, climbing space and for energized work practices. The Minimum Approach Distance ("MAD") will be determined by engineering studies and be consistent with Con Edison standards and operational practices and in accordance with Occupation Safety and Health Administration ("OSHA") Part 1910.269 and Part 1926 Subpart V revised in 2015.

Pole and davit arm sizes vary depending upon loads and required height. Strain poles are included periodically on tangent or low angle structures to provide periodic stronger poles to prevent cascade type events and adjacent to long spans where significant unbalanced loads are likely due to icing events.

Structures on the Transmission Line are essentially a one-to-one match with the existing Line 398 but are offset to the south by 100 feet. Structure locations were adjusted in-line for local terrain conditions (e.g., locations on hilltop are preferred over locations on a slope) and the need to minimize structure heights near the Sky Acres Airport. Required FAA lighting will be installed on structures CV-24-1, CV-24-2, CV-26A, CV-27A, CV-28, CV-29, CV-30, CV-31 due to elevation and proximity to the Airport. Additional information on the preparation and use of Sky Acres as a laydown and staging area is described in the following sections.

The Cricket Valley Line FAA lighting will be powered by extending and/or relocating the distribution facilities that already exist in the ROW for the L398 tower FAA lighting in the proximity of the Sky Acres airport. As identified on the EM&CP Plan and Profile drawings, new distribution poles and electric facilities will be installed by CVEC to support the FAA lighting. These new poles will be operated and maintained in the same fashion as the existing poles where all components beyond the first pole into the ROW from the street are customer (Con Edison) owned. CVEC shall coordinate with Central Hudson for the installation of any required metering equipment and if required to be located off-ROW, CVEC shall obtain any required real estate rights for the location of such equipment, which rights shall be transferrable to Con Edison if such equipment is required to be customer-owned. There is also the possibility that the circuit at N. Smith Rd may be used to serve the spans to the east of 27A. In such event, the existing distribution span(s)/pole(s) in this area may require relocation to other locations within the ROW; subject to clearances/heights on the CV line and Con Edison approval. All FAA requirements identified in any FAA studies relating to the project will be satisfied by CVE. Drawings reflecting any additions or modifications to distribution poles and related metering or other equipment to be submitted to Con Edison for review and acceptance.

For the preliminary foundation design, based on the anticipated shallow depth to rock throughout the ROW, it was assumed that rock anchor or rock micropile foundations would be used. A rock anchor foundation functions similarly to a pile group foundation (individual anchors in either tension or compression) except capacity is largely achieved through rock to grout bond. Rock micropile foundations have pretensioned anchor rods, and a steel casing in the upper, non-loaded section (in this case soils). Due to expected access difficulties, an elevated anchor cap assembly will be used instead of a concrete foundation (similar to a pile cap).

The Reconductoring Segment will utilize Line 398 lattice steel towers with conductors, shield wire, and insulator assemblies replaced. The existing shield wire will be replaced with optical ground wire (OPGW). One structure, L-65, requires reinforcement to meet the current NESC and the current Con Edison Standards for strength.

### *Laydown Areas*

The Project proposes to employ four laydown areas to support construction. These four areas, located in Pleasant Valley, Union Vale, and Dover, are presented on the EMC&P plan set and will be used to allow for materials storage and organization, modular assembly, and temporary office space. In addition, they will support helicopter and sky crane operations as needed.

Each of the laydown areas vary in size, land use, and proximity to the ROW and nearby public roadways, and have been carefully selected to provide adequate laydown areas in strategic locations along the ROW. With regard to environmental protection measures associated with their use, Cricket Valley has made significant efforts to avoid using laydown areas that would adversely impact sensitive environmental features such as wetlands, waterways, protected species habitat, historic sites, or forested areas. The laydown areas, as described below, are sited in locations that are largely supportive of use in construction support and that require little to no improvement.

In regard to best management practices and protective measures to be employed at the laydown sites, Cricket Valley will employ identical measures for use on the ROW, including installation of sedimentation and erosion controls, barrier fencing in areas of potential protected species habitat, and roadway cleaning and dust suppression. In laydown areas including active agricultural lands, timber matting or topsoil stripping and restoration will be employed to protect topsoil and prevent reduction in agricultural land quality and productivity.

A brief description of the four selected sites is provided here:

Sky Acres Laydown Site

The Sky Acres laydown site is situated in the maintained lawn of the active Sky Acres Airport immediately south of the ROW. This site is relatively flat and level with no prominent sensitive receptors such as forest, wetland, or priority natural communities that may affect site use. The area selected for use is exclusively maintained lawn and will be used in its current condition or surfaced in timber mats or gravel if required.

Traver Road Laydown Site

The Traver Road laydown area is immediately adjacent to the Project ROW (Con Edison Line 398 ROW), and is predominantly hayfield. Wetlands and forested land exist to the west of the site, and use of the site will require the crossing of a small intermittent stream using an existing bridge for access. No direct impacts to wetlands or waterways are anticipated with use of this site. The general area of the site and adjacent lands is considered suitable habitat for turtle species protected under state law, and use of the site will employ exclusion fencing and environmental monitor oversight to prevent inadvertent impact to wildlife. Because the site is located within an agricultural field, topsoil protection (stripping and restoration or use of mats and restoration) will be required to support its use. It should be noted that unlike the other three laydown areas, the Traver Road laydown area does include along its western margin approximately 50' of adjacent area associated with Wetland PV-4. The area within adjacent area was included within the laydown area because it allows for preparation of a laydown yard with adequate space while avoiding impacts to a farm field ditch with intermittent flow in the area, as well as removal of trees and hedgerow associated with the ditch. To ensure no impact to PV-4 occurs, the same restrictions will be followed as required for work within adjacent area in other locations: no parking, storage of fuels, pesticides or hazardous materials, or stockpiling of granular material will be allowed.

Cricket Hill Laydown Site

The Cricket Hill road site is a previously developed site with unknown prior usage. It is predominantly covered in gravel or lightly vegetated by secondary growth of brush and saplings. The site is located within potential habitat for a state- and federally-protected turtle species, and use of the site will require exclusion fencing and environmental monitor oversight. The site is dry and level, and the useable area of the site appears to exclude other environmental constraints and sensitive receptors.

Judson Property Laydown Site

The Judson Property includes mixed land uses including an active quarry, pasture, forest, and other previously disturbed lands. The overall site includes wetlands and undeveloped habitat; however the part of the site to be used as a laydown site is largely pasture or overgrown field, and is free of other environmental constraints or sensitive receptors.

## C. Project Construction Schedule

Construction of the Transmission Line would occur in four general phases: ROW clearing and preparation, assembly of steel monopole structures, stringing of the conductors, and finally the cleanup and restoration. The first phase of the Project, ROW clearing and stabilization, will occur in two portions, with the start of clearing (Portion 1) proposed to occur in March, 2017 and the remainder of tree clearing (Portion 2) to occur in Fall/Winter of 2017/2018. Any lands disturbed by the initial phase will be stabilized in accordance with the requirements of SPDES General Permit GP-0-15-002. The construction of the Transmission Facilities will be performed sequentially (i.e. clearing through final site restoration), generally by small crews of workers.

Foundation types will be either drilled pier caisson foundation or micropile foundation. Drilled pier caissons are used in areas where hard subsurface is not close to the surface so a robust one piece foundation structure is needed to adequately support the transmission pole above ground structure. This drilled pier consists of a bore hole which is filled with poured concrete with metal reinforcement. Micropile foundations are used in areas where there is shallow bedrock and drilling one larger bore hole is not practical. Micropiles can also be used in cohesive soil based on economic comparison to drilled pier foundations. These types of foundations consist of several small borings drilled to the appropriate depth that are filled with reinforced concrete and connected together on the surface by a cap plate or concrete pile cap which the above ground transmission pole structure is affixed to.

The transmission pole structure erection will be installed by two methods depending on the terrain on the right-of-way. These methods are by ground crane and by sky crane. In locations where vehicle access is adequate mobile cranes will drive to the transmission pole structure locations and assemble the poles in segments from the ground up. In areas where access is difficult, pole segments will be flown short distances by sky crane to the transmission pole structure locations and assembled from the ground up.

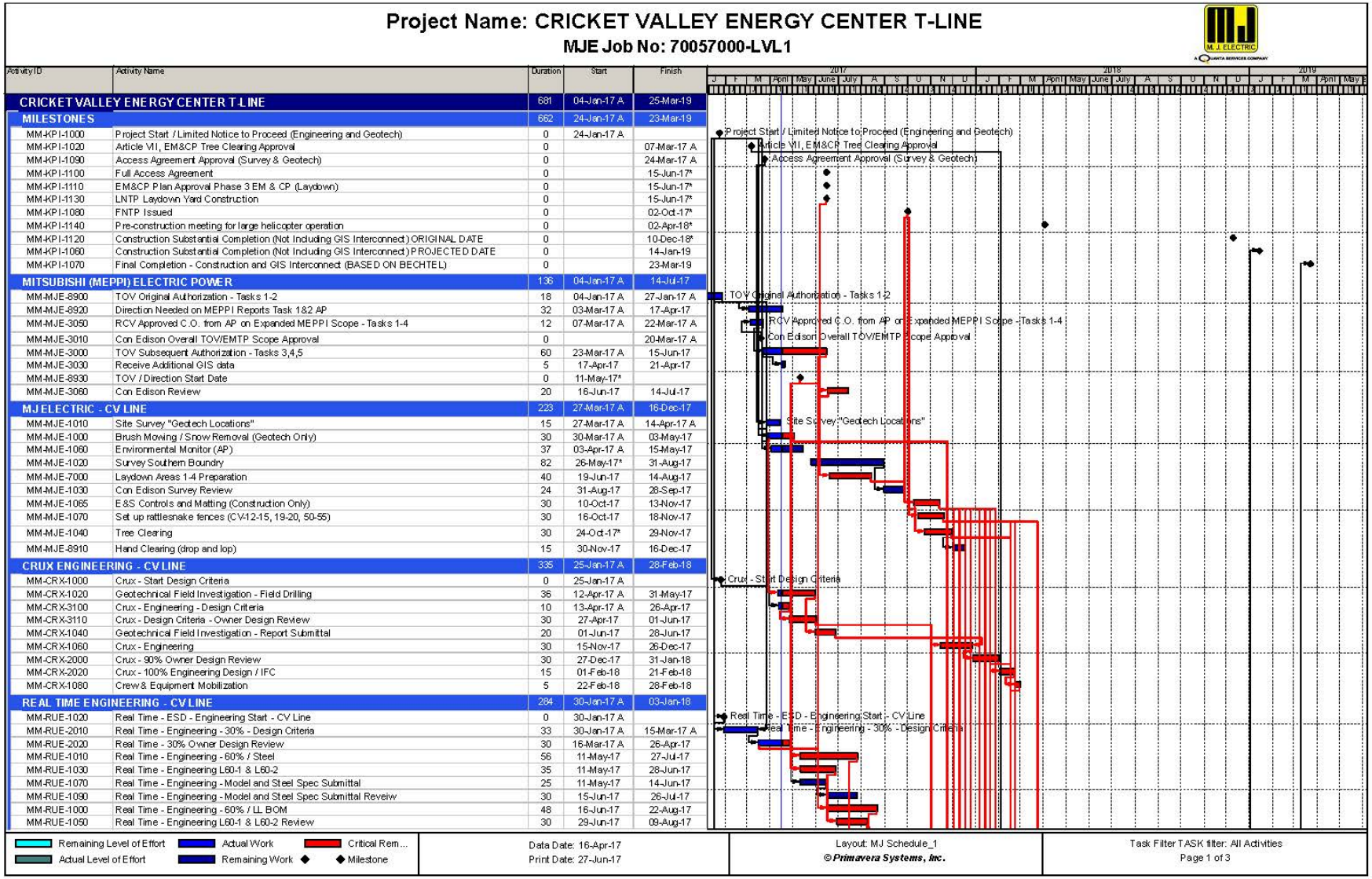
Full restoration of the ROW and of other disturbed sites, such as staging areas around new pole locations or construction storage sites (laydown areas), may require additional time after the installation of a particular segment. After areas are disturbed during initial construction activities, they will be stabilized using standard temporary erosion and sedimentation control practices.

Upon completion of construction, these areas will be permanently restored using practices and methods that will promote stable soil and vegetation conditions. If final site restoration is delayed due to adverse weather conditions or the onset of winter conditions, the site will be stabilized prior to cessation of construction activities for the season. In agricultural areas, final restoration activities will commence during the following growing season, depending on soil moisture conditions. Restoration activities will commence after soils have dried sufficiently in accordance with the Atterberg field test. No restoration will occur while agricultural soils are in a "plastic" state of consistency.

Site-specific construction techniques may be required at certain locations along the ROW based on existing land use or environmental constraints. The Project construction will limit access of construction vehicles in sensitive areas, provide an Environmental Monitor on-site during construction, use appropriate erosion controls, will employ dust control at sites where helicopters are used (e.g. water struck) to prevent unnecessary fugitive dust when helicopters are in operation, and will employ best management practices during construction. Access restrictions on the ROW are represented in the "Construction Access" and "Additional Requirements" restriction bars of the EM&CP plan set. Appendix Y provides a list of qualified environmental monitors proposed to be employed for the Project.

Total construction duration is estimated to be approximately 24 months and is anticipated to commence in October 2017. A summary of construction activities and work durations (some tasks occur simultaneously) is provided in Figure 1.

Figure 1 Cricket Valley 345 kV Transmission Line Construction Schedule Line Construction Schedule



**Project Name: CRICKET VALLEY ENERGY CENTER T-LINE**

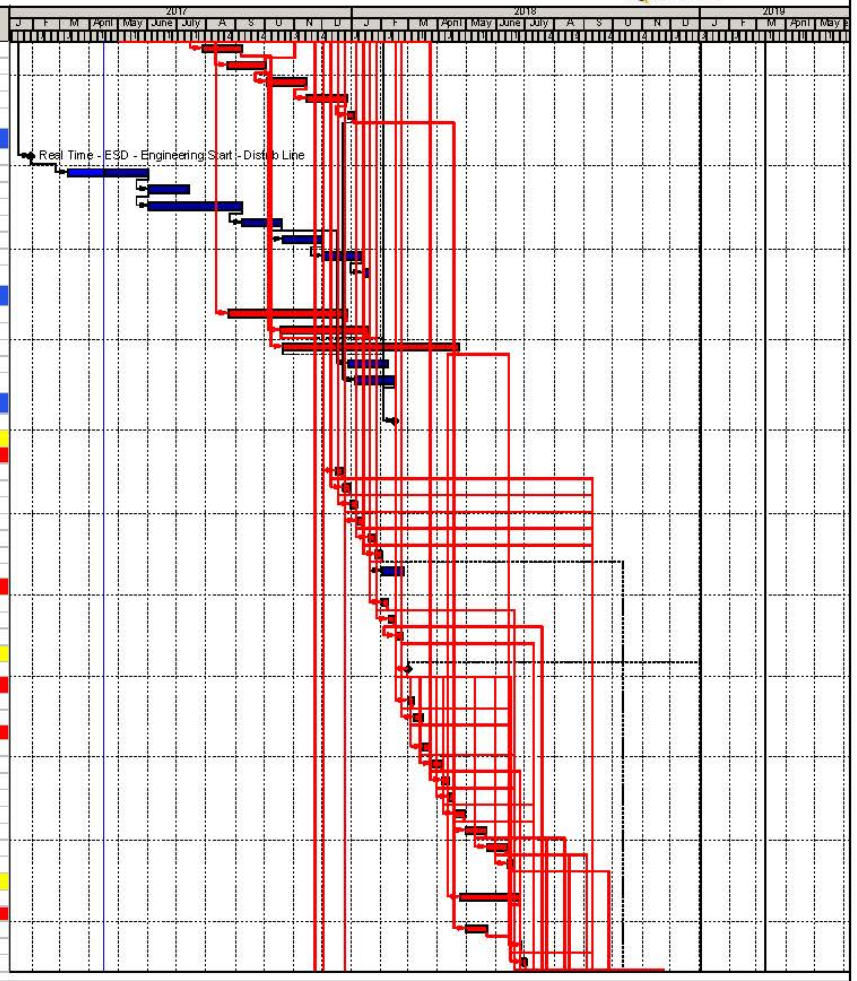
**MJE Job No: 70057000-LVL1**

| Activity ID | Activity Name | Duration | Start | Finish |
|---|---|---|---|---|
| **CRICKET VALLEY ENERGY CENTER T-LINE** | | 681 | 04-Jan-17 A | 25-Mar-19 |
| **MILESTONES** | | 662 | 24-Jan-17 A | 23-Mar-19 |
| MM-KPI-1000 | Project Start / Limited Notice to Proceed (Engineering and Geotech) | 0 | 24-Jan-17 A | |
| MM-KPI-1020 | Article VII, EM&CP Tree Clearing Approval | 0 | | 07-Mar-17 A |
| MM-KPI-1090 | Access Agreement Approval (Survey & Geotech) | 0 | | 24-Mar-17 A |
| MM-KPI-1100 | Full Access Agreement | 0 | | 15-Jun-17* |
| MM-KPI-1110 | EM&CP Plan Approval Phase 3 EM & CP (Laydown) | 0 | | 15-Jun-17* |
| MM-KPI-1130 | LNTP Laydown Yard Construction | 0 | | 15-Jun-17* |
| MM-KPI-1080 | FNTP Issued | 0 | | 02-Oct-17* |
| MM-KPI-1140 | Pre-construction meeting for large helicopter operation | 0 | | 02-Apr-18* |
| MM-KPI-1120 | Construction Substantial Completion (Not Including GIS Interconnect) ORIGINAL DATE | 0 | | 10-Dec-18* |
| MM-KPI-1060 | Construction Substantial Completion (Not Including GIS Interconnect) PROJECTED DATE | 0 | | 14-Jan-19 |
| MM-KPI-1070 | Final Completion - Construction and GIS Interconnect (BASED ON BECHTEL) | 0 | | 23-Mar-19 |
| **MITSUBISHI (MEPPI) ELECTRIC POWER** | | 136 | 04-Jan-17 A | 14-Jul-17 |
| MM-MJE-8900 | TOV Original Authorization - Tasks 1-2 | 18 | 04-Jan-17 A | 27-Jan-17 A |
| MM-MJE-8920 | Direction Needed on MEPPI Reports Task 1&2 AP | 32 | 03-Mar-17 A | 17-Apr-17 |
| MM-MJE-3050 | RCV Approved C.O. from AP on Expanded MEPPI Scope - Tasks 1-4 | 12 | 07-Mar-17 A | 22-Mar-17 A |
| MM-MJE-3010 | Con Edison Overall TOV/EMTP Scope Approval | 0 | | 20-Mar-17 A |
| MM-MJE-3000 | TOV Subsequent Authorization - Tasks 3,4,5 | 60 | 23-Mar-17 A | 15-Jun-17 |
| MM-MJE-3030 | Receive Additional GIS data | 5 | 17-Apr-17 | 21-Apr-17 |
| MM-MJE-8930 | TOV / Direction Start Date | 0 | 11-May-17* | |
| MM-MJE-3060 | Con Edison Review | 20 | 16-Jun-17 | 14-Jul-17 |
| **MJ ELECTRIC - CV LINE** | | 223 | 27-Mar-17 A | 16-Dec-17 |
| MM-MJE-1010 | Site Survey "Geotech Locations" | 15 | 27-Mar-17 A | 14-Apr-17 A |
| MM-MJE-1000 | Brush Mowing / Snow Removal (Geotech Only) | 30 | 30-Mar-17 A | 08-May-17 |
| MM-MJE-1060 | Environmental Monitor (AP) | 37 | 03-Apr-17 A | 15-May-17 |
| MM-MJE-1020 | Survey Southern Boundry | 82 | 26-May-17* | 31-Aug-17 |
| MM-MJE-7000 | Laydown Areas 1-4 Preparation | 40 | 19-Jun-17 | 14-Aug-17 |
| MM-MJE-1030 | Con Edison Survey Review | 24 | 31-Aug-17 | 28-Sep-17 |
| MM-MJE-1065 | E&S Controls and Matting (Construction Only) | 30 | 10-Oct-17 | 13-Nov-17 |
| MM-MJE-1070 | Set up rattlesnake fences (CV-12-15, 19-20, 50-55) | 30 | 16-Oct-17 | 18-Nov-17 |
| MM-MJE-1040 | Tree Clearing | 30 | 24-Oct-17* | 29-Nov-17 |
| MM-MJE-8910 | Hand Clearing (drop and lop) | 15 | 30-Nov-17 | 16-Dec-17 |
| **CRUX ENGINEERING - CV LINE** | | 335 | 25-Jan-17 A | 28-Feb-18 |
| MM-CRX-1000 | Crux - Start Design Criteria | 0 | 25-Jan-17 A | |
| MM-CRX-1020 | Geotechnical Field Investigation - Field Drilling | 36 | 12-Apr-17 A | 31-May-17 |
| MM-CRX-3100 | Crux - Engineering - Design Criteria | 10 | 13-Apr-17 A | 26-Apr-17 |
| MM-CRX-3110 | Crux - Design Criteria - Owner Design Review | 30 | 27-Apr-17 | 01-Jun-17 |
| MM-CRX-1040 | Geotechnical Field Investigation - Report Submittal | 20 | 01-Jun-17 | 28-Jun-17 |
| MM-CRX-1060 | Crux - Engineering | 30 | 15-Nov-17 | 26-Dec-17 |
| MM-CRX-2000 | Crux - 90% Owner Design Review | 30 | 27-Dec-17 | 31-Jan-18 |
| MM-CRX-2020 | Crux - 100% Engineering Design / IFC | 15 | 01-Feb-18 | 21-Feb-18 |
| MM-CRX-1080 | Crew & Equipment Mobilization | 5 | 22-Feb-18 | 28-Feb-18 |
| **REAL TIME ENGINEERING - CV LINE** | | 284 | 30-Jan-17 A | 03-Jan-18 |
| MM-RUE-1020 | Real Time - ESD - Engineering Start - CV Line | 0 | 30-Jan-17 A | |
| MM-RUE-2010 | Real Time - Engineering - 30% - Design Criteria | 33 | 30-Jan-17 A | 15-Mar-17 A |
| MM-RUE-2020 | Real Time - 30% Owner Design Review | 30 | 16-Mar-17 A | 26-Apr-17 |
| MM-RUE-1010 | Real Time - Engineering - 60% / Steel | 56 | 11-May-17 | 27-Jul-17 |
| MM-RUE-1030 | Real Time - Engineering L60-1 & L60-2 | 35 | 11-May-17 | 28-Jun-17 |
| MM-RUE-1070 | Real Time - Engineering - Model and Steel Spec Submittal | 25 | 11-May-17 | 14-Jun-17 |
| MM-RUE-1090 | Real Time - Engineering - Model and Steel Spec Submittal Reveiw | 30 | 15-Jun-17 | 26-Jul-17 |
| MM-RUE-1000 | Real Time - Engineering - 60% / LL BOM | 48 | 16-Jun-17 | 22-Aug-17 |
| MM-RUE-1050 | Real Time - Engineering L60-1 & L60-2 Review | 30 | 29-Jun-17 | 09-Aug-17 |

# Project Name: CRICKET VALLEY ENERGY CENTER T-LINE

## MJE Job No: 70057000-LVL1

| Activity ID | Activity Name | Duration | Start | Finish |
|---|---|---|---|---|
| MM-RUE-2110 | Real Time - 60% Owner Design Review STEEL | 30 | 28-Jul-17 | 07-Sep-17 |
| MM-RUE-1040 | Real Time - 60% Owner Design Review | 30 | 23-Aug-17 | 03-Oct-17 |
| MM-RUE-1060 | Real Time - Engineering - 90% | 30 | 04-Oct-17 | 14-Nov-17 |
| MM-RUE-1080 | Real Time - 90% Owner Design Review | 30 | 15-Nov-17 | 26-Dec-17 |
| MM-RUE-2000 | Real Time - 100% Engineering Design / IFC | 6 | 27-Dec-17 | 03-Jan-18 |
| DISTRIBUTION LINE AND FAA LIGHTING / ENGINEERING | | 298 | 30-Jan-17 A | 19-Jan-18 |
| MM-RUE-2030 | Real Time - ESD - Engineering Start - Distrib Line | 0 | 30-Jan-17 A | |
| MM-RUE-2040 | Real Time - Engineering - 30% - Design Criteria | 60 | 10-Mar-17 A | 01-Jun-17 |
| MM-RUE-2050 | Real Time - 30% Owner Design Review | 30 | 02-Jun-17 | 14-Jul-17 |
| MM-RUE-2060 | Real Time - Engineering - 60% / LL BOM | 70 | 02-Jun-17 | 07-Sep-17 |
| MM-RUE-2070 | Real Time - 60% Owner Design Review | 30 | 08-Sep-17 | 19-Oct-17 |
| MM-RUE-2080 | Real Time - Engineering - 90% | 30 | 20-Oct-17 | 30-Nov-17 |
| MM-RUE-2090 | Real Time - 90% Owner Design Review | 30 | 01-Dec-17 | 11-Jan-18 |
| MM-RUE-2100 | Real Time - 100% Engineering Design / IFC | 6 | 12-Jan-18 | 19-Jan-18 |
| PROCUREMENT | | 203 | 24-Aug-17 | 23-Apr-18 |
| MM-MJE-8840 | MJE Procurement - L60-1 (Expedited Delivery) | 90 | 24-Aug-17 | 27-Dec-17 |
| MM-MJE-2080 | MJE Procurement - LL Anchor Bolts | 75 | 18-Oct-17 | 17-Jan-18 |
| MM-MJE-1050 | MJE Procurement - LL BOM - Poles | 132 | 20-Oct-17 | 23-Apr-18 |
| MM-MJE-8880 | MJE Procurement - Distribution Line Materials | 30 | 28-Dec-17 | 07-Feb-18 |
| MM-MJE-1080 | MJE Procurement - Balance | 30 | 04-Jan-18 | 14-Feb-18 |
| CONSTRUCTION | | 329 | 15-Dec-17 | 14-Jan-19 |
| MM-MJE-1045 | MJE - CSD - Construction | 0 | 15-Feb-18 | |
| DRILL PIERS | | 49 | 15-Dec-17 | 24-Feb-18 |
| DRILL PIERS - RELIEF AREA | | 49 | 15-Dec-17 | 24-Feb-18 |
| MM-MJE-4020 | Drill Piers - CV-60 - Relief Area | 5 | 15-Dec-17 | 22-Dec-17 |
| MM-MJE-4040 | Drill Piers - CV-59 - Relief Area | 5 | 23-Dec-17 | 30-Dec-17 |
| MM-MJE-4060 | Drill Piers - CV-58 - Relief Area | 5 | 30-Dec-17 | 06-Jan-18 |
| MM-MJE-4080 | Drill Piers - CV-57 - Relief Area | 5 | 06-Jan-18 | 13-Jan-18 |
| MM-MJE-5000 | Drill Piers - CV-56 - Relief Area | 5 | 18-Jan-18 | 25-Jan-18 |
| MM-MJE-4000 | Drill Piers - CV-L60-2 - Relief Area | 5 | 25-Jan-18 | 01-Feb-18 |
| MM-MJE-8850 | Drill Piers - Distribution Line - 24 Poles | 16 | 01-Feb-18 | 24-Feb-18 |
| DRILL PIERS - NON-RELIEF AREA | | 15 | 01-Feb-18 | 23-Feb-18 |
| MM-MJE-5040 | Drill Piers - CV-5 | 5 | 01-Feb-18 | 08-Feb-18 |
| MM-MJE-5020 | Drill Piers - CV-11 | 5 | 08-Feb-18 | 15-Feb-18 |
| MM-MJE-8890 | Drill Piers - CV-22 | 5 | 16-Feb-18 | 23-Feb-18 |
| MICROPILE FOUNDATION CONSTRUCTION (4 RIGS) | | 94 | 01-Mar-18 | 19-Jun-18 |
| MM-CRX-1070 | Crux - CSD - Construction | 0 | 01-Mar-18 | |
| MICROPILE - HELO ONLY | | 14 | 01-Mar-18 | 16-Mar-18 |
| MM-CRX-3050 | Micropile Fdn - CV-19 - CV-20 (TRS) and CV-21 - Helo Only | 5 | 01-Mar-18 | 06-Mar-18 |
| MM-CRX-3060 | Micropile Fdn - CV-50 - CV-55 (TRS) - Helo Only - Relief Area | 9 | 06-Mar-18 | 16-Mar-18 |
| MICROPILE | | 80 | 16-Mar-18 | 19-Jun-18 |
| MM-CRX-3000 | Micropile Fdn - CV-1 - CV-4 | 6 | 16-Mar-18 | 24-Mar-18 |
| MM-CRX-3010 | Micropile Fdn - CV-5 - CV-10 | 8 | 26-Mar-18 | 05-Apr-18 |
| MM-CRX-3040 | Micropile Fdn - CV-12 - CV-15 (TRS) | 6 | 05-Apr-18 | 12-Apr-18 |
| MM-CRX-3020 | Micropile Fdn - CV-16 - CV-18 | 5 | 12-Apr-18 | 18-Apr-18 |
| MM-CRX-3030 | Micropile Fdn - CV-23 - CV-26 | 8 | 19-Apr-18 | 30-Apr-18 |
| MM-CRX-3070 | Micropile Fdn - CV-27 - CV-36 | 15 | 30-Apr-18 | 22-May-18 |
| MM-CRX-3080 | Micropile Fdn - CV-37 - CV-46 | 15 | 22-May-18 | 12-Jun-18 |
| MM-CRX-3090 | Micropile Fdn - CV-47 - CV-49 | 5 | 12-Jun-18 | 19-Jun-18 |
| POLE SETTING - NEW LINE | | 158 | 24-Apr-18 | 27-Oct-18 |
| MM-MJE-8810 | Haul/Spot/Material Distribution | 54 | 24-Apr-18 | 26-Jun-18 |
| HELO ONLY (CREWS 1, 2 & 3) | | 53 | 01-May-18 | 02-Jul-18 |
| MM-MJE-8190 | Helo Prep Work | 20 | 01-May-18 | 23-May-18 |
| MM-MJE-8170 | Pole Setting - CV-19 - CV-20 (TRS) and CV-21 - Helo Only | 2 | 27-Jun-18 | 28-Jun-18 |
| MM-MJE-8180 | Pole Setting - CV-50-55 (TRS) - Helo Only - Relief Area | 3 | 29-Jun-18 | 02-Jul-18 |




Remaining Level of Effort | Actual Work | Critical Rem...
Actual Level of Effort | Remaining Work | Milestone

Data Date: 16-Apr-17
Print Date: 27-Jun-17

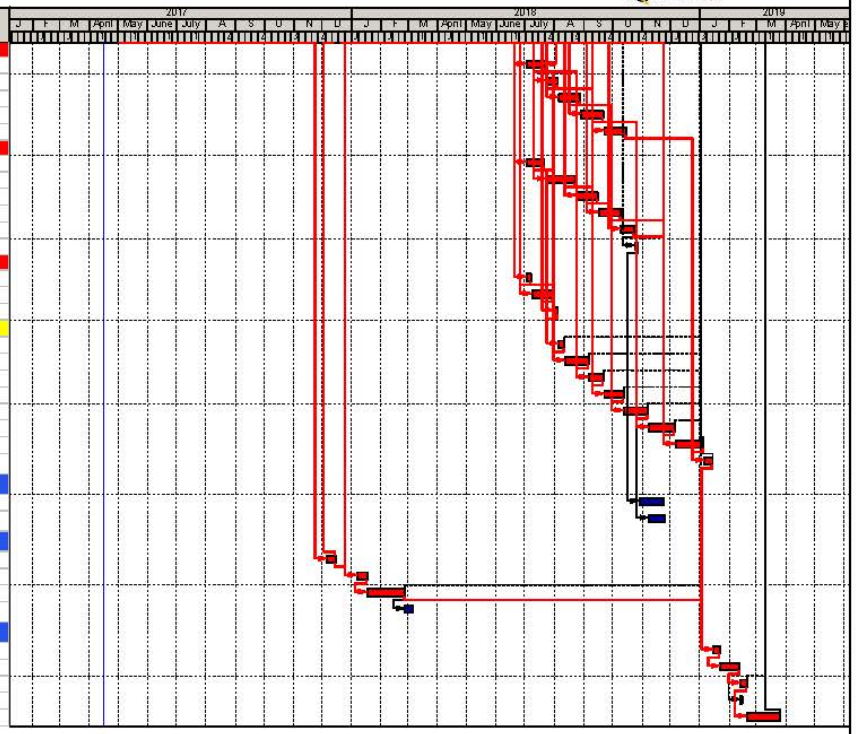
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Task Filter TASK filter: All Activities
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# Project Name: CRICKET VALLEY ENERGY CENTER T-LINE

## MJE Job No: 70057000-LVL1

| Activity ID | Activity Name | Duration | Start | Finish |
|---|---|---|---|---|
| CREW 1 | | 88 | 03-Jul-18 | 15-Oct-18 |
| MM-MJE-8160 | Pole Setting - CV-12 - CV-15 (TRS) | 16 | 03-Jul-18 | 21-Jul-18 |
| MM-MJE-8100 | Pole Setting - CV-16 - CV-18 | 12 | 23-Jul-18 | 04-Aug-18 |
| MM-MJE-8640 | Pole Setting - CV-27 - CV-31 | 20 | 06-Aug-18 | 28-Aug-18 |
| MM-MJE-8185 | Pole Setting - CV-37 - CV-41 | 20 | 29-Aug-18 | 21-Sep-18 |
| MM-MJE-6020 | Pole Setting - CV-56 - CV-60 (TRS) - Relief Area | 20 | 22-Sep-18 | 15-Oct-18 |
| CREW 2 | | 99 | 03-Jul-18 | 27-Oct-18 |
| MM-MJE-8080 | Pole Setting - CV-1 - CV-4 | 16 | 03-Jul-18 | 21-Jul-18 |
| MM-MJE-8110 | Pole Setting - CV-22 - CV-24B-1, CV-24B-2, CV-24B-3 - CV-26 | 28 | 23-Jul-18 | 23-Aug-18 |
| MM-MJE-8790 | Pole Setting - CV-32 - CV-36 | 20 | 24-Aug-18 | 15-Sep-18 |
| MM-MJE-8800 | Pole Setting - CV-42 - CV-46 | 20 | 17-Sep-18 | 09-Oct-18 |
| MM-MJE-8195 | Pole Setting - CV-47 - CV-49 | 12 | 10-Oct-18 | 23-Oct-18 |
| MM-MJE-6000 | Pole Setting - L60-2 | 4 | 24-Oct-18 | 27-Oct-18 |
| CREW 3 | | 28 | 03-Jul-18 | 04-Aug-18 |
| MM-MJE-8090 | Pole Setting - CV-5 | 4 | 03-Jul-18 | 07-Jul-18 |
| MM-MJE-8630 | Pole Setting - CV-6 - CV-10 | 20 | 09-Jul-18 | 31-Jul-18 |
| MM-MJE-8660 | Pole Setting - CV-11 | 4 | 01-Aug-18 | 04-Aug-18 |
| WIRE WORK - NEW LINE | | 134 | 06-Aug-18 | 14-Jan-19 |
| MM-MJE-8500 | Wire Work - CV-1 - CV-3 | 6 | 06-Aug-18 | 11-Aug-18 |
| MM-MJE-8730 | Wire Work - CV-3 - CV-12 (TRS) | 20 | 13-Aug-18 | 05-Sep-18 |
| MM-MJE-8740 | Wire Work - CV-12 - CV-18 (TRS) | 14 | 06-Sep-18 | 21-Sep-18 |
| MM-MJE-8750 | Wire Work - CV-18 - CV-26 | 18 | 22-Sep-18 | 12-Oct-18 |
| MM-MJE-8760 | Wire Work - CV-26 - CV-36 | 22 | 13-Oct-18 | 07-Nov-18 |
| MM-MJE-8770 | Wire Work - CV-36 - CV-46 | 22 | 08-Nov-18 | 05-Dec-18 |
| MM-MJE-8550 | Wire Work - CV-46 - CV-57 | 24 | 06-Dec-18 | 04-Jan-19 |
| MM-MJE-8780 | Wire Work - CV-57 - CV-60 (Relief Area) | 8 | 05-Jan-19 | 14-Jan-19* |
| FAA - LIGHTING AND MARKER BALLS | | 19 | 29-Oct-18 | 24-Nov-18 |
| MM-MJE-8870 | Install Distribution Line | 18 | 29-Oct-18 | 23-Nov-18 |
| MM-MJE-8830 | Marker Ball Installation | 12 | 08-Nov-18 | 24-Nov-18 |
| MJ ELECTRIC - RECONDUCTORING | | 74 | 06-Dec-17 | 05-Mar-18 |
| MM-MJE-3020 | Drill Pier Foundation L60-1 | 7 | 06-Dec-17 | 15-Dec-17 |
| MM-MJE-3040 | L-60-1 Wreck Out & New Pole Installation (Outage) | 7 | 06-Jan-18* | 17-Jan-18 |
| MM-MJE-8560 | Wire Work - L-60-1 - L-76 (Outage) | 34 | 17-Jan-18* | 26-Feb-18 |
| MM-MJE-8570 | OPGW Installation (Outage) | 6 | 26-Feb-18 | 05-Mar-18 |
| GIS INTERCONNECT | | 60 | 15-Jan-19 | 25-Mar-19 |
| MM-MJE-8580 | Remobilization of Line Pulling Equipment | 6 | 15-Jan-19* | 21-Jan-19 |
| MM-MJE-8590 | Conductoring into GIS (Outage) | 18 | 22-Jan-19 | 11-Feb-19 |
| MM-MJE-8600 | Demobilization | 6 | 12-Feb-19 | 18-Feb-19 |
| MM-MJE-8610 | OPGW into GIS | 3 | 12-Feb-19 | 14-Feb-19 |
| MM-MJE-8820 | Final Completion, Clean-Up and Restoration | 30 | 19-Feb-19 | 25-Mar-19 |




Remaining Level of Effort | Actual Work | Critical Rem...
Actual Level of Effort | Remaining Work | Milestone

Data Date: 16-Apr-17
Print Date: 27-Jun-17

Layout: MJ Schedule_1
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# II. ARTICLE VII CERTIFICATE ORDERING CLAUSES

As noted above, on April 20, 2016 the Commission issued an Order Granting a Certificate of Environmental Compatibility and Public Need. In compliance with that Certificate, CVEC is obligated to comply with and respond to the Commission's Orders of the Certificate. Each Condition of the Certificate is included in this section followed by the corresponding response, indicating how CVEC intends to comply, and giving direction to the contractor for compliance throughout the construction process.

## A. Conditions of the Order

1. Subject to the conditions set forth in this Opinion and Order, Cricket Valley Energy Center, LLC (the "Certificate Holder" or "Cricket Valley") is granted a Certificate of Environmental Compatibility and Public Need ("Certificate") authorizing construction and operation of the Project. The Project consists of: (1) a new, approximately 14.6-mile 345 kV transmission line to connect the planned Cricket Valley Energy Center generation facility (the "Generation Facility") in the Town of Dover, New York, to Consolidated Edison Company of New York, Inc.'s ("Con Edison") Pleasant Valley Substation in the Town of Pleasant Valley, New York (the "Transmission Line"); and (2) reconductoring of an approximately 3.4-mile segment of the existing 345 kV Line 398 in the Town of Dover between the Cricket Valley Switchyard (or "Cricket Valley Switching Station") and the New York-Connecticut state line (the "Reconductoring Segment").

***Response 1:*** *In a verified statement filed with the Secretary on May 17, 2016, CVEC officially accepted the Certificate and the associated conditions outlined in the Certificate Opinion and Order dated April 20, 2016.*

2. The Certificate Holder shall, within 30 days after the issuance of the Certificate, submit to the Commission either a petition for rehearing or a verified statement that it accepts and will comply with the Certificate. Failure to comply with this condition shall invalidate the Certificate.

***Response 2:*** *A verified statement was filed with the Secretary on May 17, 2016 stating that Cricket Valley accepts and shall comply with the Certificate.*

3. The Certificate Holder shall promptly notify the Commission in writing should it decide not to complete construction of all or any portion of this Project and shall serve a copy of such notice upon all parties.

***Response 3:*** *Cricket Valley will promptly notify the Commission in writing should it be decided not to complete construction of all or any portion of the Project and will serve a copy of the notice upon all parties.*

4. The Certificate Holder shall integrate and coordinate maintenance of the certified Project with that of adjacent facilities.

***Response 4:*** *Cricket Valley or the Certificate Holder accepts this condition.*

5. The Certificate Holder shall construct the Project in accordance with this Certificate, with the approved Environmental Management and Construction Plan, any subsequent Commission orders, and the Best Management Practices ("BMP") contained in Exhibit 24 and referenced in Appendix A attached hereto.

***Response 5:*** *CVEC will construct the Project in accordance with this Certificate with the approved Environmental Management and Construction Plan, any subsequent Commission orders, and BMPs, as amended by Response 30. The BMPs are provided in Appendix A of this document.*

6. If construction of the Project hereby certified is not commenced within 24 months after the Certificate Holder files a verified statement that it accepts and will comply with the Certificate, the Certificate may be vacated with notice to the Certificate Holder.

***Response 6:*** *CVEC initiated project construction (tree clearing) in March, 2017, and will advance laydown area construction in July, 2017, both of which will have been advanced within 24 months of Certificate acceptance.*

7. The Secretary in her sole discretion may extend the deadlines set forth in this order. Any request for an extension must be in writing, must include a justification for the extension, and must be filed at least one day prior to the affected deadline.

***Response 7:*** *Cricket Valley understands and accepts this condition.*

## B. Description of Route and Facilities

8. The proposed location of the Project is approved as set forth in the "Description and Location of Facility".

***Response 8:*** *CVEC acknowledges the approval of the Transmission Facility location as described in A. Conditions of the Order dated April 20, 2016.*

## C. Laws and Regulations:

9. Consistent with the discussion concerning State and local laws:

a) Each substantive State and local law, regulation, code, and ordinance applicable to the Facility authorized by the Certificate, as described in the Application, shall apply, except as described below:

1) *Town of Pleasant Valley Chapter 46: Driveways and Highway Work Permits* – as it relates to paved aprons due to the temporary need for the entrances and the sight distances requirements due to the implementation of a maintenance and protection of traffic plan Maintenance and Protection of Traffic Plan (MPTP).

***Response 9.a) 1):*** *Cricket Valley is not required to have an unobstructed sight distance of 300 feet minimum to 400 feet maximum in either direction from the new driveway. Cricket Valley is also not required to create a macadam apron for new driveways. Cricket Valley will prepare a Maintenance and Protection of Traffic plan for the Commission and parties' review detailing the measures it will take to manage traffic during the construction period.*

2) *Town of Pleasant Valley Chapter 70: Nuisances* – as it relates to daytime construction activities;

***Response 9.a) 2):*** *Cricket Valley is exempt from the requirements of the nuisance provision for activities required for daytime construction activities.*

*3) Town of Pleasant Valley Chapter 93: Vehicles and Traffic* – as it relates to temporary interference with the public use of Town roads and highways during construction activities;

***Response 9.a) 3):*** *Cricket Valley is permitted to use the public roads and highways within the Town of Pleasant Valley for construction activities.*

4) *Town of Pleasant Valley Chapter 98: Zoning* – as it relates to maximum height restriction of 35 feet in the RA, MDR, OI, and HR Districts;

***Response 9.a) 4):*** *Cricket Valley is permitted to construct transmission towers over 35 feet in the RA, MDR, OI, and HR Districts.*

5) *Town of Pleasant Valley § 98-44:* - which requires that public utility facilities have adequate screening and sound barriers as it relates to construction and operation;

***Response 9.a) 5):*** *Cricket Valley is not required to construct screening or sound barriers around transmission towers.*

6) *Town of Union Vale Chapter 210-14 (3): Zoning* – to the extent transmission towers incidental and accessory to a primary use are restricted to 35 feet.

***Response 9.a) 6):*** *Cricket Valley is allowed to construct transmission towers over 35 feet above average finished grade at its base.*

*7) Town of Union Vale Chapter 210-48(D)(1)* – restrictions regarding wetland protection including no construction, excavation or clearing.

***Response 9.a) 7):*** *Cricket Valley is permitted to perform construction, excavation, and clearing in wetlands and streams in the Environmental Resource Overlay District.*

8) *Town of Union Vale Chapter 210-48(D)(4)(b)[1]* – restrictions regarding scenic areas including no substantial land alteration, height of structures and removal of vegetation.

***Response 9.a) 8):*** *Cricket Valley is exempt from the provisions of this chapter is it relates to substantial land alteration. Cricket Valley is permitted to construct structures greater than 20 feet and does not have to obtain a Certificate of Visual Compliance in designated scenic areas.*

9) *Town of LaGrange § 240-31 (B)(3)* – Restrictions regarding the construction, excavation, filling, clearing, grading and landscape alteration in Stream Corridor Overlay Zones

***Response 9.a) 9):*** *Cricket Valley is permitted to perform construction, excavation, filling, clearing, grading, and landscape alteration. As clarified by Staff, municipalities may not restrict herbicide usage on transmission ROWs, and accordingly treatment to prevent stump sprouting and regrowth will be applied in all areas of proposed tree clearing, including within the Sprout Creek buffer zone.*

10) *Town of LaGrange § 240-31 (F) (4)* – restrictions regarding structure height limit, lighting of structures, and clearing in Ridgeline Protection Overlay Zones.

***Response 9.a) 10)*** *Cricket Valley is permitted to build structures taller than 35 ft above ground level. Cricket Valley is exempt from lighting restrictions. Cricket Valley is permitted to clear more than 50 ft in extent from the outer edge of the primary structure's footprint, and is allowed to clear vegetation during construction and installation.*

11) *Town of Dover § 145-40 (C)* – to the extent that it prohibits construction prior to 8 a.m. the Certificate Holder may begin construction activities at 7:00 a.m. to conform to the provisions of Union Vale, LaGrange and Pleasant Valley. The Certificate Holder may also end construction activities at 8:00 p.m.

***Response 9.a) 11):*** *Cricket Valley is permitted to begin construction at 7:00 am and end construction at 8:00 pm. This includes use of helicopters for construction support. If, due to safety or continuous operation requirements, construction activities are required to occur on Sundays or after 8:00 p.m., Cricket Valley shall notify DPS Staff and the affected municipality. Such notice shall be given at least 24 hours or as early as possible in advance.*

12) *Town of Dover § 145-40 (D)* – to the extent that it limits vibration within discrete frequency bands.

***Response 9.a) 12)*** *Cricket Valley is exempt from limiting activity to vibration displacement within specific limits whether steady state or impact vibration displacement.*

13) *Town of LaGrange 240-31 (B)* – Restrictions regarding construction activities including excavation and clearing.

***Response 9.a) 13)*** *Cricket Valley is permitted to perform construction, excavation and clearing.*

14) *Town of LaGrange 240-31 (B)* – restrictions regarding height of structure (35 foot limit) and clearing.

***Response 9.a) 14)*** *Cricket Valley is permitted to build structures taller than 35 ft above ground level, and to clear vegetation during installation and construction in the Stream Corridor Overlay Zone.*

b) State or local legal provision purporting to require any approval, consent, permit, certificate, or other condition for the construction or operation of the Project authorized by the Certificate shall apply, except (i) those of the Public Service Law and regulations and orders adopted thereunder; (ii) those provided by otherwise applicable State law for the protection of employees engaged in the construction and operation of the facilities; and (iii), those permits issued under a federally delegated or pursuant to federally approved environmental permitting program.

***Response 9.b):*** *Cricket Valley is exempt from seeking other state or local approval, consent, permit, certificate or other conditions for the construction or operation of the Project, except those of the Public Service Law and regulations and orders adopted thereunder, those provided by otherwise applicable state law for the protection of employees engaging in construction, and permits issued under federally delegated or approved environmental permitting programs.*

c) The Certificate Holder shall construct the Project in a manner that conforms to all standards of the American National Standards Institute ("ANSI") including, without limitation, the National Electric Safety Code ("NESC") (including Institute of Electrical Engineers ("IEEE") Standard IEEE C2 latest version) and any stricter standards adopted by the Certificate Holder.

***Response 9.c):*** *Cricket Valley shall comply with this condition.*

10. Nothing herein shall preclude the Certificate Holder from voluntarily subjecting itself to any State or local approval, consent, permit, certificate, or other condition for the construction or operation of the Project, subject to the Commission's ongoing jurisdiction.

a) The Certificate Holder shall coordinate all work performed in the rights-of-way of city, town, and county highways with the respective highway departments for such highways, subject to the Commission's ongoing jurisdiction.

***Response 10.a):*** *Cricket Valley will comply with this condition.*

b) A copy of each permit or approval received from the issuing agencies, if any, shall be provided to New York State Department of Public Service ("Staff") by the Certificate Holder promptly after receipt by the Certificate Holder of such permit or approval and before commencement of construction across the affected area.

***Response 10.b):*** *Cricket Valley will comply with this condition.*

11. If the Certificate Holder believes that any action taken, or determination made, by a State or local agency in furtherance of such agency's review of any applicable regulatory permits or approvals, is unreasonable or unreasonably delayed or withheld, the Certificate Holder may petition the Commission, upon reasonable notice to that agency, to seek a determination of any such unreasonable or unreasonably delayed action or determination. The permitting agency may respond to the petition, within three business days, to address the reasonableness of any requirement or delay.

***Response 11:*** *Cricket Valley acknowledges this condition.*

## D. Public Health and Safety

12. The Certificate Holder shall design, engineer and construct the Project such that its operation shall comply with the electric and magnetic field standards established by the Commission in Opinion No. 78-13, issued June 19, 1978, and the Statement of Interim Policy on Magnetic Fields of Major Electric Transmission Facilities, issued September 11, 1990.

***Response 12:*** *Cricket Valley will comply with this condition, and has designed the Project in such a way that magnetic fields at the edge of the ROW will be less than 200 milligauss, and electric fields will be less than 1.6 kV/m. The final EMF studies showing how the line meets NYS EMF standards will be provided to Con Edison.*

13. The Certificate Holder shall engineer and construct the Facility to be fully compatible with the operation and maintenance of nearby electric, gas, telecommunication, water, sewer, and related facilities; details of such other facilities and measures to protect the integrity, operation and maintenance of those facilities shall be presented in the

proposed Environmental Management and Construction Plan ("EM&CP"). The Facility shall be designed and constructed to avoid adverse effects on the cathodic protection system and physical conditions of existing structures and any fuel gas pipelines.

***Response 13:*** *Cricket Valley has been in coordination with Iroquois Gas and Central Hudson Gas and Electric to ensure the Project design meets this condition. Appropriate signage indicating the presence of natural gas pipelines will be installed in coordination with the respective gas pipeline companies. Signage locations should include all access road crossings of the pipelines along the ROW, and at locations where Project activities will occur in close proximity to the pipelines, including where access roads are nearby and parallel to the pipelines. The induced voltage studies will commence during the construction of the Transmission Line. Cricket Valley has already selected a contractor to conduct the study. Central Hudson and Iroquois have both reviewed and approved the study scope. Any mitigation measures that are a result of the study will be installed in coordination with Central Hudson and Iroquois at the cost of Crickey Valley. All mitigation measures will be completed before any energization of the new transmission line. DPS and Con Edison will be provided with the induced voltage study results when work is completed.*

Cricket Valley has completed the agreement for the new transmission line crossing of the MetroNorth Harlem Line which is based on the original agreement from the installation of the L398. This agreement contemplated a second 345kV transmission line at the design location shown in the EMCP drawing set. The exhibit to the agreement can be seen in Appendix S.

Cricket Valley has developed a draft crossing agreement with Niagara Mohawk for the crossing of the new transmission line over the existing Niagara Mohawk lines at the Pleasant Valley substation. The exhibit to the agreement can be seen in Appendix S.

14. The Certificate Holder shall notify persons who own properties that abut the Facility ROW, and persons who reside on such properties (if different from the owner), of the planned construction activities and schedule affecting their residences at least seven days, but no more than thirty days, prior to the commencement of construction. The Certificate Holder may give such notices by affixing them to the doors of residences. The Certificate Holder shall provide a copy of the generic form of such notice to the Secretary prior to the commencement of construction.

***Response 14:*** *Cricket Valley will make notification to abutters to the Project as required by this condition.*

15. The Certificate Holder shall keep local fire department and emergency management teams apprised of on-site hazardous chemicals and waste. All such chemicals and waste shall be secured in a locked and controlled area. All non-hazardous regulated waste will be stored in a designated short-term (60 day) area in compliance with applicable state and federal regulations.

***Response 15:*** *Cricket Valley and its contractors and agents will comply with this condition.*

16. In accordance with New York State Department of Environmental Conservation ("DEC") regulations and guidance, the Certificate Holder shall immediately notify DPS Staff and DEC of any fuel or chemical spills.

***Response 16:*** *Cricket Valley and its contractors and agents will provide notification of fuel or chemical spills as required by Condition 16 and in accordance with applicable Con Edison policy (CEHSP E10.01 – Release Reporting).*

17. The Certificate Holder shall comply with the requirements for the protection of underground facilities set forth in 16 NYCRR Part 753 "Protection of Underground Facilities."

***Response 17:*** *Cricket Valley will call the One-Call Center 2 to 10 days in advance of start date, not counting the date of the call. Cricket Valley will wait for clearance prior to commencing work. Cricket Valley will confirm utility response by checking that each notified operator has either marked the work site or given the "all clear." Cricket Valley will respect the markings for safe excavation. Cricket Valley will maintain a minimum 4 feet clearance from utilities after verifying locations. Cricket Valley will support long spans of exposed facilities to prevent collapse or sagging. Cricket Valley will backfill carefully to prevent damage to facilities and provide support beneath exposed facilities. Cricket Valley will comply with other Protection of Underground Facilities measures as outlined in 16 NYCRR Part 753 and all Con Edison specifications and requirements, including Specification CE-SI-1081. Con Edison shall receive copies of all interference mitigation studies performed and be informed of any mitigation work occurring on Con Edison's ROW as a result of those studies.*

*At locations of gas pipeline crossings and other select locations where pipelines are parallel to existing ROW access roads, matting or "air bridges" will be implemented where required. Air bridges used during construction will be removed following construction. Permanent pipeline crossings will be built in accordance with Con Edison requirements and pipeline owner requirements for permanent access and shall be reviewed by and acceptable to Con Edison. Permanent access will include the addition of fill or alternate road hardening methods over the pipeline. These features will be maintained in accordance with specifications and agreements provided by the utilities owning the pipelines throughout the construction period to prevent damage to such*

*facilities. Where access roads are within five (5) feet of pipelines, any road improvements will be designed to allow operation of equipment in accordance with the agreements in place with Central Hudson and Iroquois during construction of the Project. In addition to staking done by respective gas line companies demarcating the gas line, signage will be displayed at these locations, as well as at worker training and pre-construction meetings.*

18. The Certificate Holder shall take appropriate measures to minimize fugitive dust and airborne debris from construction activity. Exposed soils and roadways shall be wetted as needed during extended dry periods to minimize dust generation. To the extent practicable, water for dust control shall come from municipal water supplies/sources. If surface waters are used, equipment shall be disinfected afterwards.

***Response 18:*** *Cricket Valley will comply with this condition.*

19. Parking for Project construction workers shall be in designated areas which do not interfere with normal traffic, cause a safety hazard, or interfere with existing land uses; these areas shall be designated in the proposed EM&CP.

***Response 19:*** *CVEC has prepared a Work Zone Traffic Control ("WZTC") access plan that identifies parking areas for Project construction equipment. The WZTC is presented in Appendix B of this document. Personal vehicles will not be allowed to be parked on the ROW or along public roadways; workers will park their personal vehicles and then take work vehicles to the job site, or will park at the Project's designated laydown sites.*

20. Direct disturbance to properties shall be avoided by accessing the Facility ROW from existing roadways or approved off-ROW access roads.

***Response 20:*** *Cricket Valley will comply with this condition; all on- and off-ROW access roads proposed for use are depicted on the EM&CP plan set included in Volume II of this submittal.*

21. For each road crossing and location where construction vehicles will access the Facility ROW frequently from local roadways, the Certificate Holder shall implement a Maintenance and Protection of Traffic plan that identifies procedures to be used to maintain traffic and provide a safe construction zone for those activities within the roadway ROW. The MPT plan shall address temporary signage, lane closures, placement of temporary barriers and traffic diversion.

a) All signage utilized shall comply with the New York State Department of Transportation ("NYSDOT") Manual of Uniform Traffic Control Devices. Placement of signs shall be determined in consultation with the jurisdictional agency. At a minimum, signs shall be placed at the following distances:

1) Signs announcing construction at 500 feet and 1,000 feet;

2) Signs depicting workers at 300 feet;
3) Where blasting is to take place within 50 feet of a road, a blast warning sign at 1,000 feet.

***Response 21.a):*** *Cricket Valley will comply with this condition. Appropriate signage will be installed along the ROW to designate areas requiring special protection, identifying locations of low conductor sag, designating access roads by vehicle type, and identifying locations where construction oversight is required.*

b) Flagmen shall be present at all times when equipment is crossing any road, when equipment is being loaded or unloaded, and where two-lane traffic has been reduced to one lane. All flagging operations shall comply with 17 NYCRR Part 131.

***Response 21.b):*** *Cricket Valley will comply with this condition.*

22. To the extent required in connection with the delivery of oversized components, the Certificate Holder or its suppliers shall obtain any necessary permits from applicable state or local agencies.

***Response 22:*** *Cricket Valley will comply with this condition.*

23. The Certificate Holder shall have the right to require that any person seeking to access the Project area first be appropriately trained in environmental protection and safety.

***Response 23:*** *Cricket Valley acknowledges this condition.*

## E. Environmental Management and Construction Plan

24. The Certificate Holder shall not begin site preparation or construction with respect to a specific portion of the Project—except surveying, soils testing, and such other related activities as are necessary to prepare the final design plans—before it has submitted to the Commission and the parties, and the Commission has approved, the EM&CP for the relevant portion of the Project.

***Response 24:*** *Cricket Valley completed limited tree clearing in support of the Project as approved by the Order issued by the Commission on February 21, 2017. The remainder of tree clearing, including danger tree removal, is expected to be advanced beginning in October, 2017.*

*As discussed in Section I.A., this revision (Revision 2) addresses the remainder of Portion 2, which involves all aspects of construction of the Project, including the remaining tree clearing.*

25. The EM&CP shall be prepared in accordance with the terms of the Certificate and, as applicable, to the construction, operation and maintenance of the Facility, and the environmental protection measures contained in the Application. The exhibits supplied for the record shall be incorporated into the proposed EM&CP, as applicable. These environmental protection measures shall be employed, as applicable, during construction, operation and maintenance of the Facility. Provisions of the Certificate, proposed EM&CP, and orders approving the proposed EM&CP, shall be accommodated, as applicable, in any design, construction, ownership, or maintenance contracts associated with the Facility.

***Response 25:*** *Cricket Valley has prepared this EM&CP in accordance with Certificate terms including incorporation of exhibits supplied for the record, and will comply with conditions regarding implementation of environmental protection measures during construction.*

26. The proposed EM&CP shall be organized and developed in accordance with these Certificate Conditions.

***Response 26:*** *Cricket Valley has organized this EM&CP in accordance with Certificate Conditions.*

27. During the preparation of the EM&CP, the Certificate Holder shall contact the DEC Region 3 Natural Resources Supervisor and the NYS Natural Heritage Program to check for any updates or changes of known RTE species or habitat or Significant Natural Communities in the Project Area.

***Response 27:*** *Cricket Valley has consulted with the DEC Region 3 Natural Resources Supervisor and the NYS Natural Heritage Program in regard to any updates or changes to known RTE species or habitat or Significant Natural Communities in the Project Area. Cricket Valley consulted with DEC Region 3 and the NYS Natural Heritage Program on August 2, 2016. Cricket Valley received a response on September 6, 2016 indicating no change in the type of RTE species or Significant Natural Communities in the vicinity of the Project, and clarifying that the RTE species for which habitat exists on the Project ROW also may exist in the vicinity of the Project's laydown areas. The means and methods of RTE habitat protection at the laydown sites will be the same as employed along the Project ROW, and accordingly no changes to the Project's Best Management Practices are required in response to the information update provided by the NYS Natural Heritage Program.*

28. Except where this Certificate requires otherwise, the environmental protection measures contained in the Application, all supplemental filings, and exhibits supplied for the record, including but not limited to the BMP, shall be incorporated into the EM&CP. These measures shall be applied during construction, operation and maintenance of the certified Project.

***Response 28:*** *Cricket Valley has incorporated these measures in the EM&CP plan set provided in Volume II of this submittal. These include the Best Management Practices ("BMPs") described in Exhibit 24 at Document and Matter Management (DMM) # 74 on the DPS website for the Project.*

29. Deviation from the certified centerline, design height and location of structures described in "Description and Location of Facility" shall be allowed for appropriate environmental or engineering reasons, except where a conflict with a provision of the Order would be created.

***Response 29:*** *The height and location of certain structures has been adjusted to accommodate terrain and comply with engineering clearance requirements. The structures as certified averaged approximately 121 feet in height; changes in select structure heights have increased the average structure to approximately 126 feet in height. Table 1, entitled "Reduction in Structure Height and Elevation Summary" provides the revised, approximate heights for all of the structures compared to the certified estimated heights.*

30. If the Certificate Holder intends to include in the proposed EM&CP any environmental protection or mitigation measures not set forth in the Certificate Holder's BMPs, contained in Exhibit 24, the Certificate Holder shall consult with regulatory agencies prior to submitting the EM&CP to the Commission.

***Response 30:*** *The Project's Best Management Practices are presented in Appendix A of this document. Discussion with applicable agencies (DEC, DPS Staff) occurred in June, July and September, 2016 to clarify specific RTE species-related BMPs, and refinements to BMPs proposed to be implemented are described below. The refinements are also depicted on the Plan and Profile Drawing included in Volume II of this submittals.*

*Proposed minor adjustment to BMPs at specific locations discussed with DEC and DPS Staff are as follows:*

- *Use of barrier fencing in lieu of Environmental Monitor oversight at four (4) locations;*
  - *Structure CV-38 (North Clove Road)*
  - *Structure CV-41 (Chestnut Ridge Road (west))*
  - *Structure CV-42 (Chestnut Ridge Road (east))*
  - *Structures CV-60, L-60-1, L-60-2 (NY Route 22)*
- *Use of a full-time Environmental Monitor in lieu of Type III barrier fencing at locations where rocky substrate prohibits fence installation:*

- *Structures CV-12, CV-13, CV-14, CV-15 (Taconic Parkway (west))*
- *Structures CV-50, CV-51, CV-52, CV-53, CV-54, CV-55 (Cooperstown Road (east))*

♦ *Use of an Environmental Monitor to escort vehicles through select habitat locations during species-specific time of year restrictions :*

- *Structures CV-19, CV-20 (Downing Road (east))*
- *Structures CV-56 (Dover Furnace Road (west)), CV-59 (Route 22 (west))*
- *Structures L-68, L-69, L-70, L-71, L-72, L-73, L-74, L-75, L-76*

*Any additional changes to the application of BMPs will be subject to review by DPS , and will require an EM&CP change notice to be filed. A EM&CP Change Notice Template is provided as Appendix Z to this filing.*

## F. EM&CP Contents

31. The Certificate Holder shall use the BMP contained in Exhibit 24 in this proceeding to prepare the EM&CP; provided, however, that if the Certificate Holder includes in the proposed EM&CP any environmental protection or mitigation measure(s) not set forth in Exhibit 24, the Certificate Holder shall also include in such proposed EM&CP a listing of each such measure, where it proposes to use such measure, and an explanation as to why the Certificate Holder selected that measure rather than a measure set forth in Exhibit 24.

***Response 31:*** *Refinements to BMPs proposed to be implemented are depicted in the Plan and Profile Drawings provided in Volume II of this revised EM&CP.*

32. The Certificate Holder shall provide as part of the EM&CP:

a) A final design plan that reflects conformance of the Project design with the Certificate, applicable federal and State requirements, and local substantive requirements, except those the Commission has refused to apply (including, but not limited to, applicable regulations, including those of: The Bureau of Alcohol, Tobacco and Firearms; Occupational Safety and Health Administration; NYS Department of Labor; the Uniform New York State Fire Prevention and Building Code (chemical and waste-storage use and handling regulations).

***Response 32.a):*** *Cricket Valley has included in Project design as provided herewith and in Volume II of this document.*

b) An explanation for any proposed deviation from the location or design of structures, with supporting documentation.

***Response 32.b):*** *The Plan and Profile Drawings included in Volume II depict the location and type of all structures, including minor location/design changes, such as re-location of CV-22 approximately 100 feet west to avoid a rock ledge. In addition, FAA required lighting will be added to several towers located near the Sky Acres Airport. The specific structures requiring lighting are identified in the Plan and Profile Drawings presented in revised Volume II. Furthermore, two structures, CV-58 and CV-59, may have to be raised slightly (~5 feet) to comply with Metropolitan Transit Authority requirements for clearance over the Metro-North railroad tracks. In addition, other structures that are proposed to be increased in height to meet NESC, OSHA and Con Edison safe maintenance required clearances include: CV-01, CV-04, CV-23, CV-24-2, CV-24-3, CV-25, CV-26a, CV-27a, CV-60, L-60-1 and L-60-2. A technical review for the crossing of the new transmission line was completed and approved by Metro North, and an agreement was signed the week of April 17th, 2017. All changes can be seen in Table 1 under the column "Action Taken" which notes the engineering or environmental justification for changes to structure heights.*

c) Details of nearby electric, gas, telecommunication, water, sewer, and related facilities and measures to protect the integrity, operation, and maintenance of those facilities.

***Response 32.c):*** *Cricket Valley is working with local utility companies to ensure that Project construction activities will comply with all applicable standard and utility-specific requirements to ensure protection of underground and overhead utilities within or adjacent to work areas on the transmission corridor. The Plan and Profile Drawings presented in Volume II of this revised EM&CP depict the existing electrical utilities, including lower voltage distribution lines. The Plan and Profile Drawings also depict the locations of existing Iroquois and Central Hudson natural gas transmission pipelines. CVEC has evaluated the locations of underground utilities at crossings of public roadways, including gas distribution pipelines, telecommunications lines, sewer or water supply lines, or any other underground utilities. Only the following road crossings are known to include underground utilities; all other road crossings are believed to have utilities aboveground with the exception of high-pressure natural gas pipelines as shown on Project plans: 1) Forest Valley Road, Pleasant Valley 2) Main Street, Pleasant Valley, 3) Skidmore Road, Pleasant Valley, and 4) Waterbury Hill Road, LaGrange. At these locations where underground utilities are known to exist, or in any location where underground utilities may exist based on road markings or lack of overhead utilities, a utility location and marking service will be employed prior to the start of work to ensure that any required protections of such utilities (e.g. plating) will be in place.*

d) A plan indicating the details and design measures to protect the cathodic protection system and physical conditions of nearby facilities and structures, including any underground facilities. The plan shall include appropriate mitigation measures such as grounding and the upgrade of existing protection devices or other facilities as appropriate for, and identified in cooperation with, owners or operators of adjacent or nearby structures, pipelines, tanks, fences or facilities.

***Response 32.d):*** *Cricket Valley is in coordination with the gas utilities and will comply with the utilities' requirements for cathodic protection and facilities protection. Iroquois and Central Hudson have provided Cricket Valley with requirements for protection of the gas pipeline where co-located or adjacent to existing access roads and also reviewed and approved the scope of an Induced Voltage Study. Cricket Valley will also ensure compliance with all Con Edison specifications and requirements, including Specification CE-SI-1081. Con Edison shall receive copies of all interference mitigation studies performed and be informed of any mitigation work occurring on Con Edison's ROW as a result of those studies.*

e) A blasting plan will be developed and included if required.

***Response 32.e):*** *Cricket Valley does not currently propose to include any blasting during Project construction activities.*

f) A detailed construction schedule as part of each segment of the EM&CP, indicating limitations on access, construction, and restoration within any distinct areas such as parklands, residential areas, highway rights-of-way, agricultural areas, etc.

***Response 32.f):*** *Cricket Valley will comply with this condition and provide a detailed construction schedule prior to commencement of construction.*

g) The specification of noise mitigation procedures.

***Response 32.g):*** *Corona noise due operation of the transmission line will be mitigated by employing corona rings, maximizing spacing between conductors and adherence to construction specifications that require removal of sharp edges or points on conductors and attachments. Construction noise will be minimized by maintaining functional mufflers on all motorized equipment, including diesel trucks, bulldozers, excavators, and related equipment. Noise from helicopters will be minimized by directing transit along the ROW avoiding residences to the extent practical.*

h) The delineation of certified rights-of-way and additional work areas to which the Certificate Holder shall confine construction and subsequent maintenance activities, depicting property rights, clearing rights, access rights, and such other matters as appropriate to address the site and environmental conditions and property interests of affected landowners and relevant conditions and specification for the development of the EM&CP. The delineation shall include the specific location and acreage of any needed real property or real property rights.

***Response 32.h):*** *The Project Plan and Profile Drawings included in Volume II delineate and identify all transmission corridor and "off-ROW" properties to be used in support of Project construction, and identify the property boundaries, owners, and pertinent associated rights associated with those properties. All off ROW access agreements obtained by CVEC permit upgrades of the roads for construction but at this time no*

*additional upgrades are planned. If upgrades are later determined to be required, such upgrades will be shown in supplement to the EM&CP Plan and Profile drawings. All revised drawings referenced above will be submitted to Con Edison for review and acceptance.*

i) Details of street work, including provisions for minimizing the duration and extent of traffic disruptions, and work within and adjoining public streets and rights-of-way.

***Response 32.i):*** *Cricket Valley has complied with this condition, and has prepared a Work Zone Traffic Control ("WZTC") which addresses these requirements and is provided in Appendix B to this document.*

j) Drawings delineating the locations of existing and proposed access roads. Proposed access road improvements shall be indicated, including measures for environmental impact minimization and access control.

***Response 32.j):*** *Project drawings in Volume II demonstrate compliance with this condition.*

k) A traffic control plan for all the roadways, bicycle paths, and pedestrian walkways directly affected by construction activities prepared in conformance with the Manual of Uniform Traffic Control Devices ("MUTCD").

***Response 32.k):*** *Project's Work Zone Traffic Control ("WZTC") plan included as Appendix B addresses these requirements.*

l) Fuel and chemical handling procedures and a spill response and route emergency plan will be developed. This plan shall provide proposed methods of handling spills of petroleum products and any hazardous or controlled substance that may be stored or utilized during construction. Operation or maintenance will be done accordance to Con Edison's fuel and chemical handling procedures for the ROW.

***Response 32.l):*** *A Spill Plan ("Spill Prevention, Reporting, and Cleanup Procedures") has been prepared including handling of spills and chemical control during the project construction. Methods to be applied to the long-term maintenance of the facility relating to chemical use, control, and spill prevention are included in the plan. The revised spill response plan is provided in Appendix C of this EM&CP.*

m) The designation of Project construction worker parking areas.

***Response 32.m):*** *Cricket Valley will instruct its contractors to park in designated areas (e.g. Project laydown properties), which do not interfere with normal traffic, do not cause any safety hazard or interfere with existing land uses. Storage and safety areas are sited based upon construction accommodation, land owner approval, safety considerations, land use, environmental sensitivity, and accessibility. These areas are provided for general construction support and will be used to store construction materials, equipment and supplies, park vehicles, and may be used to stockpile new transmission structures.*

n) A plan for removal and reuse, recycling, or disposal of equipment.

***Response 32.n):*** *Demolition of existing structures will not be required for construction of the Transmission Line with the exception of one structure. The existing L-60 lattice tower will be removed and replaced with a new dead end structure L-60-1. In addition to L-60, the existing conductors along the Reconductoring Segment will be replaced and the existing conductors recycled and reused to the extent feasible. Modifications may also be necessary to existing structures L-64, L-65 and L-71 to reinforce this particular lattice towers. In addition, modifications to the Pleasant Valley Substation will be made to connect the Transmission Line to the substation where existing select electrical components will be removed and replaced with new components. Any discarded steel or components of existing electrical equipment will be recycled or reused in accordance with applicable Con Ed procedures, including without limitation, CEHSP E04.01 – Hazardous Waste Management Program Overview, CEHSP E04.10 – Transportation and CEHSP E04.11 – Disposal. Any spoils or material that is owned by Con Edison which becomes waste will be transported by a Con Edison approved transporter and disposed of at Con Edison approved facilities. Any waste generated by any contractor shall be disposed of wherever legal. Materials resulting from demolition will be temporarily stored at the Judson laydown area until inspected by Con Edison for potential reuse. If Con Edison does not want the materials for reuse, the materials will be brought by a Con Edison approved transporter to a recycling facility selected from the list of approved facilities provided by Con Edison.. If valuable scrap materials to be provided to Con Edison are to be stored at the Project's laydown areas, secure storage will be provided by ensuring that the laydown area is enclosed at the end of each day by a locked security fence, or lockable storage boxes will be used to store such materials. In regard to construction and demolition ("C&D") debris, such materials will be disposed of at either the Seneca Meadows Landfill in Waterloo, or the C&D Hakes Landfill in Painted Post. Clean concrete rubble will be disposed of at Recycle Depot in Poughkeepsie.*

o) Detailed soil handling and erosion control plans including details on the installation of sedimentation/erosion control devices around areas to be distributed and any stockpiled soils, temporary seeding, and re-vegetation to prevent erosion during construction.

***Response 32.o):*** *Soil handling and erosion controls are depicted on the Plan and Profile drawings in Volume II as well as on the Stormwater Pollution Prevention Plan ("SWPPP") prepared for the Project and included as Appendix J to this filing. The EM&CP plans and the SWPPP plans and associated documentation describe and specify locations for sediment and erosion controls, as well as for seeding and re-vegetation along the ROW and access roads. Con Edison agrees that Cricket Valley can spread small amounts of material with approval of Con Edison on a case-by-case basis and if ground to conductor clearance is maintained, but larger amounts must be removed.*[3]

*The SWPPP also provides grading plans for structure workpads and associated spur roads. The grading plans include general notes on construction procedures and clearly depict limits of work/land disturbance. In order to maintain the new facility, each structure will have a permanent maintenance pad, appropriately located and of sufficient size, to facilitate maintenance activities utilizing a 125' Terex TM125/Prinoth GT4500, or equivalent, aerial lift. The pad must allow for the lift to access all three phases of the structure from one side of suspension structures. For strain or dead end structures, access to all three phases is required from both sides of the structures. The maintenance pads must be stable and level. In areas that currently do not have a stable surface, geotechnical fabric and crushed stone will be required to stabilized the maintenance pad. These pads must be acceptable and approved by Con Edison. Specific plans for construction of structure foundations will be developed based the results of planned geotechnical investigations. Timber mats will be employed for work in Agricultural lands.*

*Top soils temporarily stripped from agricultural lands for construction will be stockpiled adjacent to the stripped areas and replaced after construction in the same area from where they were removed. Temporary stockpile areas for spoils generated during construction of drilled pier foundations will be located within the associated workpad areas. These spoils will be tested in accordance with Con Edison procedures and disposed of offsite at an approved facility if needed based on the results of the testing. There will be no permanent spoil disposal areas in the ROW. Minor quantities of soils removed for transmission pole installation will be spread evenly around installed pole*

[3] A list of Con Edison approved off right-of-way disposal sites are included in Appendix A, Best Management Practices (BMP).

*locations, with the exception of pole locations in agricultural lands where the sub-soils will be removed and not spread over top soils (leave only top soils around poles).*

*With respect to timing, erosion controls will be installed by the end of each work day in the area affected, whether along the ROW, access roads, or the substation.*

p) Clearing and vegetation treatment plans.

***Response 32.p):*** *Vegetation clearing and disposal plans are provided in Volume II of this revised EM&CP submittal.*

q) Best management practices and measures for monitoring construction and protecting water quality at or near any groundwater recharge basins consistent with the BMP contained in Exhibit 24.

***Response 32.q):*** *Cricket Valley will implement the best management practices for protecting water quality during construction as specified in Section 1.0 of the Project's BMP, which is provided in Appendix A of this document, as well as applicable components of the Project's submitted SWPPP (Appendix J) and S Spill Prevention, Reporting and Cleanup Procedures (Appendix C).*

r) Appropriate controls and protocols for weekend and/or nighttime work if otherwise allowed, including but not limited to noise controls and lighting controls.

***Response 32.r):*** *Construction activities will normally occur between the hours of 7:00 a.m. and 8:00 p.m. Monday through Saturday. Work beyond those hours is not planned. However, while not anticipated, some construction activities may be required during nighttime hours after 8:00 p.m. or on the weekends. If construction during these times becomes necessary, Cricket Valley will contact Commission staff and Con Edison 24 hours in advanced to request approval for the activity. Cricket Valley will also coordinate any such work hour extensions with the appropriate local officials in the respective towns. In addition, Cricket Valley will notify Con Edison if construction will occur during nighttime or weekend hours.*

## G. EM&CP Process

33. Contemporaneously, the Certificate Holder shall submit five hard copies and one electronic copy of the EM&CP to the Commission, one hard copy and two electronic copies to each of the Signatory Parties and one copy to active parties on the service list who request the document. DEC also requests one hard copy and one electronic copy served to DEC Region 3 Natural Resources Supervisor at DEC's Office in New Paltz. The Certificate Holder shall also place copies for inspection by the public in at least one public library or other convenient location in each municipality in which construction will take place. Contemporaneously with the submission and service of the EM&CP, the

Certificate Holder shall provide notice, in the manner specified below, that the EM&CP has been filed.

***Response 33:*** *This EM&CP has been filed and served as required by this condition. Provided in Appendix D of this document is a Certificate of Service indicating the number of EM&CP copies submitted and served to the Commission, DEC Staff, Region 3 offices of the DEC, Commissioner of the New York State Agriculture and Markets, and Region 3 Office of the New York State Department of Transportation ("NYSDOT"). Also provided in Appendix D is a list of locations where copies of the document can be viewed by the public.*

a) The Certificate Holder shall serve written notice(s) of filing the EM&CP on all active parties to this proceeding, on all statutory parties to this proceeding, and on the residents along the line, and shall attach a copy of the notice to each copy of the EM&CP. Further, the Certificate Holder shall contemporaneously publish the notice(s) in a newspaper(s) of general circulation in the vicinity of the Project. Service upon state agencies shall be in the same manner and at the same time as filing with the Secretary.

***Response 33.a):*** *Cricket Valley will serve written notice of the filing of this EM&CP on all active parties to this proceeding, on each person considered potentially affected by the subject matter in the EM&CP and on all statutory parties. Copies of the Service List are attached to the Notice which is contained in Appendix D of this document. The Notice will be published in newspapers of general circulation in the vicinity of the Transmission Facility.*

b) For all permanent ROW or off-ROW access that may be acquired for the Project, the Certificate Holder shall cause an examination of title (title search) to be conducted in the same manner as would be conducted by a reputable title insurance company to identify all of-record owners, mortgagees, lien holders, leaseholders, or others with an interest in such property rights to be acquired. The Certificate Holder shall serve written notice(s) of filing the EM&CP on each such person identified, on each person owning the underlying land right to an existing easement being used and on each person currently leasing a portion of any ROW to be used for the Project.

***Response 33.b):*** *No new ROW or off-ROW access is expected to be required for construction of the Transmission Facility. However, Cricket Valley will comply with this condition if it becomes necessary for unforeseen reasons to acquire any additional off-ROW access.*

c) The written notice(s) and the newspaper notice(s) shall contain, at a minimum, the following:

    1) a statement that the EM&CP has been filed;

2) a general description of the Project, the need for the Project, the alternatives considered, and of the EM&CP;

3) a listing of the locations where the EM&CP is available for public inspection;

4) a statement that any person desiring additional information about a specific geographical location or specific subject may request it from the Certificate Holder;

5) the name, address, and telephone numbers of the Certificate Holder's representative;

6) the address of the Commission; and

7) a statement that any person may be heard by the Commission on any matter or objection regarding the EM&CP by filing written comments with the Commission and the Certificate Holder within 45 days of the filing date with the Commission of the EM&CP (or within 45 days of the date of the newspaper notice, whichever is later). Comments on subsequent revisions to the EM&CP, in response to the aforementioned written comments, shall be permitted within 15 days of service by electronic means of said revisions.

***Responses 33.c.1) – c7):*** *Cricket Valley will comply with these notification requirements.*

34. A certificate of service indicating upon whom all EM&CP notices and documents were served and a copy of the written notice shall be submitted to the Commission at the time the EM&CP is filed, and shall be a condition precedent to approval of the EM&CP.

***Response 34:*** *Cricket Valley will comply with this condition.*

35. After the EM&CP has been approved by the Commission:

a) The Certificate Holder shall report any proposed changes to the EM&CP to Staff; Staff will refer to the Secretary of the Commission (or a designee) reports of any proposed changes that do not cause substantial change in environmental impact or are not related to contested issues decided during the proceeding. Staff will refer all other proposed changes in the EM&CP to the Commission for approval. If the proposed change involves the jurisdiction of another agency, Staff will consult with such agency. DPS will refer any proposed changes that will not result in any increase in adverse environmental impact or contested issues decided during the proceeding to the Chief of the Environmental Certification and Compliance Section of the Office of Utility Rates and Services for approval.

***Response 35.a):*** *Cricket Valley will comply with this condition.*

b) Upon being advised that Staff will refer a proposed change to the Commission, the Certificate Holder shall notify all active parties that have requested (before the approval of the EM&CP) to be so notified, as well as property owners or lessees whose property is affected by the proposed change. The notice shall: (1) describe the original conditions and the requested change; (2) state that documents supporting the request are available for inspection at specified locations; and (3) state that persons may comment by writing or calling (followed by written confirmation) to the Secretary of the

Commission within 15 days of the notification date and (4) provide the Secretary's electronic mail address, phone number and mailing address. Any delay in receipt of written confirmation will not delay Commission action on the proposed change.

***Response 35.b):*** *Cricket Valley will comply with this condition.*

c) The Certificate Holder shall not execute any proposed change until it receives oral or written approval, except in emergency situations threatening personal injury, property damage or severe adverse environmental impact, or as specified in the EM&CP.

***Response 35.c):*** *Cricket Valley will comply with this condition.*

## H. Notices, Reports, and Consultations

36. Applicable provisions of the Certificate, EM&CP, and orders approving the EM&CP shall be accommodated in any design, construction, ownership, or maintenance contracts associated with the Project.

***Response 36):*** *Cricket Valley has reflected this condition in contracts with engineering and construction contractors for the Project, and will comply with this condition in all applicable future contractual actions for the Project.*

37. The Certificate Holder shall notify all construction contractors that the Commission may seek to recover penalties for violation of the Certificate, not only from the Certificate Holder, but also from its construction contractors, and that construction contractors may also be liable for other fines, penalties and environmental damage.

***Response 37):*** *Cricket Valley shall so notify such contractors and that notification shall include providing a copy of the Article VII Certificate, the BMPs, and other relevant documents..*

38. The Certificate Holder shall make available to the public a toll-free or local phone number of an agent or employee where complaints may be received during the construction of the certified Facility. In addition, the phone number of the Secretary and the phone number of the Commission's Environmental Compliance Section shall be provided.

***Response 38):*** *Cricket Valley will comply with this condition.*

39. The Certificate Holder shall report to Staff every complaint that cannot be resolved after reasonable attempts to do so, or within 20 days after receipt of the complaint (whichever comes first).

***Response 39):*** *Cricket Valley will comply with this condition.*

40. The following notice requirements shall apply to the Certificate Holder:

a) No less than two weeks before commencing site preparation, the Certificate Holder shall:

1) provide notice to local officials and emergency personnel;

2) provide notice to Con Edison; and

3) provide such notice for dissemination to local media and display in public places (such as general stores, post offices, community centers, and conspicuous community bulletin boards).

b) The notice shall contain:

1) a map and a description of the Project in the local area;

2) the anticipated date for start of construction;

3) the name, address, and local or toll-free telephone number of an employee or agent of the Certificate Holder;

4) a statement that the Project is under the jurisdiction of the New York State Public Service Commission, which is responsible for enforcing compliance with environmental and construction conditions, and which may be contacted at an address and telephone number to be provided in the notice;

5) the notice will be written in language reasonably understandable to the average person; and

c) Upon distribution, a copy shall be submitted to the Secretary of the Commission.

***Responses 40.a) – c):*** *Cricket Valley will comply with these notification requirements.*

41. Neither the Certificate Holder nor any contractors in its employ shall construct, improve, or use any access roads not described in the EM&CP.

***Response 41):*** *Cricket Valley will comply with this condition. All access roads proposed for use are depicted on the Plan and Profile Drawings provided in in Volume II of this revised EM&CP.*

42. The following pre-construction meeting requirements shall apply to the Certificate Holder:

a) At least two weeks prior to the start of construction, the Certificate Holder shall hold a preconstruction meeting. An agenda, location, and attendee list shall be agreed upon between Staff and the Certificate Holder.

b) The attendee list shall include at a minimum DPS staff, staffs of the DEC and Ag & Mkts.

c) The attendee list for the preconstruction meeting and all subsequent construction meetings for the duration of the project shall include Con Edison.

d) The Certificate Holder shall supply draft minutes from this meeting to all attendees, the attendees may offer corrections or comments, and the Certificate Holder shall issue the finalized meeting minutes to all attendees.

e) If, for any reason, the construction contractor cannot finish the construction of this Project, and a new construction contractor is needed, there will be another preconstruction meeting with the same format as outlined above.

***Responses 42.a)–e):*** *Cricket Valley will comply with these meeting requirements for both tree clearing and construction of the Project. As discussed above in Section I.A., a pre-construction meeting was convened by CVEC on February 17, 2017 to discuss limited tree clearing with DPS staff, and other agency representatives. A follow-up meeting was held in the field (at the CVEC site) on March 17th, and an additional pre-construction meeting will be convened prior to the advancement of additional tree clearing and Project construction activities to be initiated in Fall of 2017.*

43. The following construction notification requirements shall apply to the Certificate Holder:

a) The Certificate Holder shall inform the Commission and Staff at least five days before commencing construction.

b) The Certificate Holder shall inform Con Edison at least five days before commencing construction.

c) The Certificate Holder will mail a postcard to each of the residences located along the line prior to any actual construction work being performed along the route containing a contact number for complaints or concerns approximately three weeks prior to construction in those areas. The information on the postcard will contain, among other

items, the Certificate Holder contact e-mail address so residents can contact the Certificate Holder via e-mail, or telephone.

d) Eight weeks prior to the start of construction, the Certificate Holder will mail a summary of the project to local newspapers in the form of a press release. That press release will also contain information on the location of libraries where the EM&CP has been placed in order for residents to obtain information.

***Responses 43.a)–d):*** *Cricket Valley will comply with these notification requirements. A press release will be made at least 8 weeks prior to the start of Portion 2 Laydown Preparation and Portion 3 tree clearing/full construction activities to occur in October, 2017.*

44. Before Project construction begins, in a particular ROW segment with respect to issues such as highway and traffic safety, both edges of the Project ROW shall be delineated and marked as specified in the EM&CP for that segment. Also, the Certificate Holder shall stake and flag all off-ROW access roads, working and staging areas and mark any known danger trees.

***Response 44):*** *Cricket Valley will delineate and mark (flag) the northern and southern edge of the transmission corridor for the Transmission Facility as follows, which is acceptable to Con Edison: The Southern boundary of the L398 ROW is to be marked and surveyed along its entirety. The Northern boundary, at a minimum will be marked and surveyed at all areas impacted by the Project, as well as off-ROW access roads, stringing sites, and staging/laydown areas.*

*The procedures for identification of danger trees will happen in three phases. An initial danger tree evaluation and mapping effort was completed in December of 2015. The subsequent phase of danger tree identification will be done in late summer/early fall 2017, at least two weeks prior to danger tree removal, and a revised list of danger trees will be provided to Con Edison and DPS (this will be an update to the list provided in Appendix R of this EM&CP filing). The final round of danger tree identification will be done immediately after ROW clearing work. At this phase of danger tree removal, trees will be marked and Consolidated Edison and DPS will be given an opportunity for a timely review of these trees. This final round should occur after the wire is strung, and any danger trees observed will be marked so that Consolidated Edison and DPS can review trees in a timely fashion.*

*Danger tree identification will be conducted by a certified ISA Utility Forester. Danger trees are defined for the purpose of the Project as any off-ROW trees that may pose a danger to construction, operation, or maintenance of the Project. Access to private property is needed to advance the danger tree evaluation, and accordingly CVEC will consult with DPS with regard to requirements for notification, such as mailings to abutting landowners to the ROW.*

*The identification of danger trees will be completed by a certified ISA Utility Forester based on evaluation of the fundamental criteria defining danger trees, that being distance from conductor to danger tree with consideration to landscape and topography, conductor distance above the ground, height of the tree, species of the tree, and tree condition. Following evaluation of these factors, the forester will designate*

*trees identified as danger trees by marking them in the field and surveying their position. A similar process will be completed following tree clearing and conductor stringing for the final danger tree survey.*

45. During construction the Certificate Holder shall provide Staff with weekly status reports summarizing construction and indicating construction activities and locations scheduled for the next two weeks.

***Response 45):*** *Cricket Valley shall provide DPS staff, Ag & Markets and DEC staff, and Con Edison with weekly status reports summarizing construction, and indicating construction activities and locations scheduled for the next two weeks.*

46. Within ten days after the Project is in service, the Certificate Holder shall notify the Commission of that fact.

***Response 46):*** *Cricket Valley will provide such notification.*

47. Within ten days of the completion of final restoration that may be necessary, the Certificate Holder shall notify the Commission that all restoration has been completed in compliance with this Certificate and the EM&CP.

***Response 47):*** *Cricket Valley will provide such notification.*

48. During construction, the Certificate Holder shall periodically consult with State and local highway transportation agencies about traffic conditions near the project site and shall notify each such transportation agency of the approximate date work will begin using access points that take direct access from the highways under their respective jurisdictions.

***Response 48):*** *Cricket Valley will comply with this condition. Note that specific to the crossing of the Taconic Parkway and work in the median, Cricket Valley will obtain a highway work permit from NYSDOT and follow all applicable conditions to complete the tree trimming work required within the median. Construction vehicles will access the Taconic Parkway median from the parkway itself, and if needed, from the Line 398 ROW from the west of the Parkway. Topographic conditions prevent access to the Parkway from the east. The Work Zone Traffic Control Plan (Appendix B) provides traffic BMPs to be used at all roadway crossings, including the Taconic Parkway.*

49. The Certificate Holder shall keep local fire department and emergency management teams apprised of chemicals and waste on site.

***Response 49):*** *Cricket Valley will comply with this condition.*

50. The Certificate Holder shall immediately notify DEC, through its Spill Hotline, and DPS Staff of any fuel or chemical spills. Cricket Valley's Spill Response and Notification Procedure will be followed.

***Response 50):*** *Cricket Valley will provide the required notification of any fuel or chemical spills immediately upon discovery utilizing the Spill Hotline. Notification, response and cleanup of any such fuel or chemical spill will be addressed in accordance with Cricket Valley's procedures detailed in the plan provided in Appendix C of this document. Cricket Valley will immediately notify Con Edison of any spills and will confirm that any spills have been properly reported.*

51. The Certificate Holder shall file a copy of the Notice of Intent required to implement the State Pollutant Discharge Elimination System General Permit for Stormwater Discharges from Construction Activities (GP-0-15-002) when it is filed with DEC prior to the start of construction of the Project.

***Response 51):*** *Cricket Valley will comply with this condition.*

## I. Cultural Resources

52. An Unanticipated Discovery Plan shall be prepared for the Project and included in the EM&CP to provide detailed procedures to be followed in the case of the discovery of subsurface objects that may represent archaeological materials, including reporting procedures to OPRHP Field Services Bureau and DPS Staff.

***Response 52):*** *Cricket Valley will comply with this condition utilizing the Unanticipated Discovery Plan prepared for construction of the approved Cricket Valley Energy Center. The Unanticipated Discovery Plan is presented in Appendix E of this document.*

53. Should archeological materials be encountered during construction, the Certificate Holder shall stabilize the area and cease construction activities in the immediate vicinity of the find and protect the same from further damage. Within 24 hours of such discovery, the Certificate Holder shall notify Staff and OPRHP Field Services Bureau to determine the best course of action. No construction activities shall be permitted in the vicinity of the find until such time as OPRHP releases Cricket Valley to work in the area of the discovery.

***Response 53):*** *Cricket Valley will comply with this condition.*

54. Should human remains or evidence of human burials be encountered during the conduct of archeological data recovery fieldwork or during construction, all work in the vicinity of the find shall be immediately halted and the remains shall be protected from further damage. Within 24 hours of any such discovery, the Certificate Holder shall notify Staff and OPRHP Field Services Bureau. All archaeological or burial encounters and their handling shall be reported in the status reports summarizing construction activities and reviewed in the site compliance audit inspections.

***Response 54):*** *Cricket Valley will comply with this condition.*

55. The Certificate Holder shall avoid creating adverse impacts on heritage resource sites, archaeological sites, and historic structures in the vicinity of the Project by implementing specific Project location, design, vegetation management, resource protection, and construction scheduling measures described in the approved EM&CP.

***Response 55):*** *Cricket Valley will avoid known archaeological sites, and has completed comprehensive studies (Phase 1A and 1B) of potentially sensitive areas along the transmission corridor. No other archaeological resources were found. In addition, to minimize potential impacts to historic resources, Cricket Valley has conducted various visual impact studies, and incorporated mitigation to minimize visual impacts to historic structures, including substantially reducing the height of three structures in Pleasant Valley by incorporating an alternative H-frame design.*

56. The Certificate Holder shall have a continuing obligation during the duration of Project construction to respond promptly to complaints of negative archeological impacts and to mitigate any negative archaeological impacts through on-site design modifications and off-site mitigation techniques developed in consultation with the OPRHP Field Services Bureau.

***Response 56):*** *Cricket Valley will comply with this condition.*

## J. Terrestrial and Wildlife Resources

57. The Certificate Holder shall develop an EM&CP that incorporates BMP for the Bog turtle as contained in Exhibit 24, that shall be employed prior to and during construction activities. Protective measures shall include BMPs for pesticide/herbicide application as detailed in Exhibit 24, restrictions on storage and parking of construction equipment, fuel and related items, time of year restrictions on certain activities, designation of no access areas, worker training, signage at sensitive habitats, installation of exclusion fencing between suitable habitat areas and proposed work areas as appropriate, and construction monitoring by qualified biologists.

***Response 57:*** *Cricket Valley will comply with this condition during construction of the Transmission Facility in accordance with the BMPs prepared for the protection of Bog turtle and its' habitat as described in Section 8.4 of the BMPs presented in Exhibit 24*

*and provided in Appendix A of this document as amended by Response 30. The BMPs are also be depicted on the Plan and Profile Drawings included in Volume II.*

*No pesticides will be applied within areas identified on the Plan and Profile Drawings to be presented in revised Volume II as suitable Bog turtle habitat or at locations described in Table 8.3 of the BMP except for use of state-approved herbicides used in accordance with manufacturer's recommendations outside of the June 1 to September 30 seasonal restriction. Herbicides will only be applied by the cut-and-stump method or with a backpack sprayer during initial clearing and follow-up treatment in the locations described. Potential nesting areas, identified by the Environmental Monitor will be avoided.*

*With respect to clearing, Cricket Valley will not create any brush piles for improvement of Bog Turtle habitat, although drop and lop of slash will be allowed in wetlands. In general, slash will be chipped and dispersed along the ROW, except in wetlands and in locations that are not accessible using mechanized equipment, such as steep slopes.*

58. Protection measures to avoid impacts to the Indiana bat shall include no tree clearing activities within the April 1 to September 30 period. The Certificate Holder shall develop an EM&CP that incorporates BMP as detailed in Exhibit 24, that shall be employed prior to and during construction activities.

***Response 58:*** *Cricket Valley will comply with this condition during construction of the Transmission Facilities in accordance with the BMPs prepared for the protection of both the Indiana Bat and the Northern Long Eared Bat, and their' habitat as described in Section 8.4 of the BMPs presented in Exhibit 24 and provided in Appendix A of this document. Requisite BMPs are also shown on the Plan and Profile Drawings provided in Volume II of the revised EM&CP.*

*During construction, tree clearing associated with the Project will be completed between October 1 and March 31. Any tree clearing to be completed outside of this timeframe will only be done in accordance with the provisions of the BMP Manual and in consultation with applicable regulatory agencies (USFWS, DEC, and DPS). In applicable locations (e.g., Timber Rattlesnake habitat and wetlands) mechanized tree clearing will only be completed during frozen or snow covered conditions with Environmental Monitor oversight; otherwise, hand clearing can be completed.*

*Any night work performed as part of the Project will employ lighting that is limited to the extent practical to support safe working conditions, shielded, and/or directed downward.*

*Dedicated Environmental Construction Monitors will be employed throughout the duration of Project construction activities, and will be on-site to enforce and monitor all impact avoidance and minimization measures, including tree clearing and danger tree removal. Workers will be required to attend training on impact avoidance for RTE*

*species, including adherence to the tree clearing moratorium from April 1 to September 30.*

59. The Certificate Holder shall develop an EM&CP that incorporates BMP applicable to the Blanding's turtle that shall be employed prior to and during construction activities. As identified for the [Blanding] turtle above, protective measures shall include BMP for pesticide/herbicide application as detailed in Exhibit 24, restrictions on storage and parking of construction equipment, fuel and related items, time of year restrictions on certain activities, designation of no access, worker training, signage at sensitive habitats, installation of exclusion fencing between suitable habitat areas and proposed work areas as appropriate, and construction monitoring by qualified biologists.

***Response 59:*** *Cricket Valley will comply with this condition during construction of the Transmission Facility in accordance with the BMPs prepared for the protection of Blandings Turtle and its' habitat as described in Section 8.4 of the BMPs presented in Appendix A of this document as amended by Response 30 above, and on the Plan and Profile Drawings in Volume II of this submittal.*

*Basking logs may be added in appropriate locations to provide habitat improvements for the Blanding's turtle. However, the project does not anticipate the use of basking logs. The Environmental Manager will decide if such mitigation is necessary and where basking logs should be used in consultation with DPS and DEC.*

60. The Certificate Holder shall develop an EM&CP that incorporates BMP for the timber rattlesnake that shall be employed prior to and during construction activities. Protective measures shall include worker training, signage at sensitive habitats, installation of exclusion fencing between suitable habitat areas and proposed work areas as appropriate, construction monitoring by qualified biologists, and non-mechanized clearing in habitat considered suitable for timber rattlesnake.

***Response 60:*** *Cricket Valley will comply with this condition during construction of the Transmission Facility in accordance with the BMPs prepared for the protection of Timber Rattlesnake and its' habitat as described in Section 8.4 of the BMPs presented in Exhibit 24 and presented in Appendix A of this document, as amended by Response 30, as well as on the Plan and Profile Drawings included in Volume II of this submittal.*

*Lands providing known or suitable timber rattlesnake habitat will be considered a sensitive habitat within which construction activities will be monitored and regulated to prevent inadvertent impacts to timber rattlesnakes or timber rattlesnake habitat as indicated in Table 8.2 of the BMP (see Appendix A of this document, as amended by Response 30) as well as on the Plan and Profile included in Volume II of this submittal. Monitoring to avoid a take of individuals will be conducted when construction activities are completed within suitable habitat locations. Mechanized tree clearing to be completed within suitable timber rattlesnake habitat will be completed between*

*October 1 and March 31 under frozen or snow covered condition; otherwise, hand clearing can be completed during this timeframe.*

*Within the time of year restriction, one or more dedicated Environmental Construction Monitors licensed by the State to handle timber rattlesnakes will be employed throughout the duration of Project construction activities, and will be on-site during any work within sensitive habitat for timber rattlesnake not enclosed by exclusion fencing to enforce and monitor all impact avoidance and minimization measures.*

*At each tower location within suitable timber rattlesnake habitat where suitable substrate depth (soil) exists to safely install fencing, exclusion fencing (Type 3) will be erected around the perimeter of each tower construction pad prior to construction. In locations where rocky conditions prevent safe fence installation (relative to use of helicopters in these locations), work will be completed in accordance with time of year restrictions or by using Environmental Monitors in these locations with prior consent of DEC (see Response 30 above). In general, construction pads will be approximately 100'x100', and will be constructed by removing trees and vegetation, including stumps, grading or leveling the pad as needed based on topography, and placement of geogrid./geotextile and crushed stone or timber construction mats as appropriate for the location. In every case, a perimeter fence will be installed (Type I, II, or III fencing) around the perimeter of the work pad following tree clearing but prior to land disturbance. Following the completion of construction, a construction pad maximum 25'x25' will be left in place around each tower; and the remainder of the 100'x100' pad will be removed and the area restored to approximate original grades to minimize impact on this habitat.*

*All workers will be required to attend training on identification and impact avoidance for RTE species, which will regard all potential RTE species within the general Project ROW area.*

*Environmentally sensitive area signage will be posted along each side of the work pad exclusion fencing in habitat identified as suitable for timber rattlesnake as well as where access roads enter and exist such habitat.*

*Artificial rock ledges may be constructed in appropriate locations to provide habitat improvements for the Timber Rattlesnake. However, the project does not anticipate the construction of artificial rock ledges. The Environmental Manager will decide if such mitigation is necessary and where rock ledges should be built in consultation with DPS and DEC.*

61. The Certificate Holder shall promptly notify DPS Staff and the DEC Region 3 Natural Resources Supervisor if any threatened or endangered plant or animal species or special concern species listed in New York is encountered on the Facility ROW, access roads or marshaling yards so as to determine the appropriate measures to be taken to protect

such species (the Certificate Holder shall refer to 6 NYCRR Part 182 and http://www.dec.ny.gov/animals/7494.html for lists of RTE species). If necessary to protect a species or its habitat from immediate harm, the Certificate Holder shall secure the area and cease construction in the area.

***Response 61:*** *Cricket Valley will provide the required notification promptly if any threatened or endangered species is encountered on the ROW, access roads or marshaling yard during construction.*

## K. Waterbodies and Wetlands

62. The Certificate Holder shall minimize adverse effects to streams, waterbodies, wetlands, and the one hundred (100) foot adjacent area associated with any State-regulated wetland during the construction, operation, and maintenance activities of the Facility.

a) Wetland locations, and wetland adjacent areas located within the ROW or crossed by the ROW or any off-ROW access road constructed, improved or maintained for the Project, shall be depicted on the proposed EM&CP drawings.

b) Any activities which may affect wetlands shall be designed and controlled to minimize adverse impacts, giving due consideration to the environmental features and functions of the wetlands.

c) The Certificate Holder shall, to the maximum extent practicable, avoid direct impacts on wetlands and construct access roads outside wetlands and adjacent areas.

d) Construction within wetlands shall be completed as described in Section 6.3 of Exhibit 24, and shall be restricted to access roads and work areas as set forth in the approved EM&CP.

e) Equipment shall not be washed in any stream, waterbody, or wetland.

f) Any excess excavated material resulting from structure installation that is to be removed from any stream, waterbody, or wetland shall not be stored inside wetlands or the one hundred (100) foot adjacent areas associated with any State-regulated wetlands. Excavated excess material shall be disposed of in approved upland locations.

g) In wetlands, slash that is cut may be left in place (drop and lop). Any slash that is not left in place shall be removed from the wetland. No slash shall be collected and permanently piled in the wetland or adjacent area.

h) Construction vehicle access across streams and waterbodies shall be limited to existing bridges and culverts and to temporary crossings installed in accordance with the provisions set forth in the approved EM&CP.

i) Vehicular access across wetlands or waterbodies shall be prohibited where alternative access can be provided.

j) During periods of work activity, water flow immediately downstream of the worksite shall equal flow immediately upstream of the worksite.

k) There shall be no increase in turbidity downstream of the construction activity that will cause a substantial visible contrast to natural conditions.

l) Unless otherwise specified in the approved EM&CP, work in streams, when necessary, shall be prohibited between October 1 and May 31 for cold water fisheries habitat, and between March 1 and July 15 for warm water fisheries habitat.

m) Water from dewatering operations shall be pumped into a temporary straw bale/silt fence barrier or filter bag to settle suspended silt material prior to discharge. Direct discharge to wetlands, streams, and waterbodies shall be avoided.

***Response 62.a) -m):*** *All wetland resources on the Transmission Facility ROW, adjacent to off-ROW, access roads, and stringing locations have been delineated in the field. Wetland boundaries were delineated using the routine on-site inspection method detailed in the 1987 Corps of Engineers Wetland Delineation Manual. This method is consistent with wetland delineation methods detailed in the 1995 New York State Freshwater Wetlands Delineation Manual. Both of these methods include field-testing for the presence of criteria that are typically found in wetlands. These criteria include wetland hydrology, a predominance of hydrophytic vegetation, and hydric soils.*

*The location of the wetlands are shown and labeled on the Plan and Profile Drawings provided in revised Volume II. Six (6) of the one hundred seventeen (117) wetland areas delineated are associated with State-regulated wetlands: DEC DP-22, DEC PV-4, DEC PV-12, DEC VB-12, DEC PV-66, and DEC DP-24.*

*Impacts to wetlands including the one hundred foot adjacent area associated with State-regulated wetlands are being avoided and minimized to the extent practicable. Where wetland impacts are unavoidable, construction measures will be implemented that have been designed to minimize impact. In addition to compliance with any condition that may be imposed by the permit issued by the U.S. Army Corps of Engineers, Cricket Valley and its designated contractor will apply the following general measures to protect wetlands:*

- *The boundaries of all wetlands will be clearly flagged prior to any construction activity.*

- *The boundaries of all work areas will be clearly marked (staked, flagged or equivalent) in the field and all construction work will be performed as per the Plan and Profile drawings and within field-marked areas.*

- *Hand cutting is prescribed for areas within wetland resource areas clearly marked on the Plan and Profile drawings provided in Volume II and in the field.*

- *Wood chips and other construction debris will not be allowed within wetland resource areas.*

- *Temporary erosion control and sedimentation control measures will be installed around the boundary of the construction work site and/or wetland prior to the start of construction activities that could disturb soils and cause erosion and sedimentation into adjacent wetland areas. These controls will be maintained in working order until the completion of site restoration.*

- *Approved temporary disturbance of wetland areas (including the 100 foot wetland adjacent area) will be restored as soon as possible following the completion of the work in the area. Wetland areas temporarily disturbed during construction will be restored to their original grade (to maintain pre-disturbance flow regimes) and any temporary matting/gravel fill used in the wetland removed.*

- *In situations where it is necessary to temporarily work within a wetland to construct transmission facility structures or complete staging operations, the Certificate Holder will coordinate with applicable agencies including DPS to obtain any requisite permission for such activity. If approved, temporary fill such as geotextile fabric covered with clean gravel will be used. In appropriate situations, timber mats may be used at the discretion of the Environmental Monitor. Following completion of the work, geotextile fabric/gravel fill or timber mats will be removed. Construction equipment may not be refueled or washed within a wetland resource or within 100 feet of such an area.*

- *No storage of any petroleum or chemical material shall be stored within the limits of a wetland resource area.*

- *Concrete washout areas shall not be located within 100 feet of storm drains, surface waters, wetlands or environmentally sensitive areas to the extent practical. All debris and wastewater generated from excavation and concrete washouts must be captured and removed from site and concrete washout area structures (typically impervious metal or plastic basins) must be dismantled and removed by Cricket Valley following completion of construction in each area. Concrete washout locations suitable for use in construction of multiple tower foundations are noted on the Plan & Profile drawings; however concrete washouts may be advanced (using an impervious settling container as described above) within any structure workpad constructed in support of the Project.*

*These BMPs are described in detail in Appendix A, and on the Plan and Profile Drawings included in Volume II of this submittal.*

63. The Certificate Holder shall secure and provide copies of the following documents to the Secretary prior to commencement of construction: all U.S. Army Corps of Engineers ("USACE") permits for construction in federal wetlands affected by the Facility, if any, necessary for construction in such Segment; the permit pursuant to §404 of the Federal Clean Water Act, if any, necessary for construction; the SPDES General Permit; and evidence of a Federal Aviation Administration ("FAA") determination that the final design of the structures proposed for the Facility will have no impact (or will have impacts mitigated by FAA-directed modifications to such final design) on the Sky Acres Airport.

***Response 63:*** *Appendix K includes copies of Project permits and approvals.*

64. The Certificate Holder shall inform USACE of any changes in the design of the Facility that have the potential to impact any water resources under USACE jurisdiction and shall provide a copy of such correspondence to the Secretary.

***Response 64:*** *Cricket Valley will comply with this condition.*

65. DEC Staff field representatives shall be permitted on the Project site. DEC Staff field representatives will notify the DPS Staff representative and the Certificate Holder's appropriate representative of any activities that violate or may violate either the terms of the Certificate, any permits issued by DEC, and/or the Environmental Conservation Law. DPS Staff and DEC staff field representatives will cooperate in assessing site conditions and determining whether stop work authority should be exercised, or whether directing the Certificate Holder to take action to minimize further impacts to State-protected streams and State-regulated wetlands is appropriate.

***Response 65:*** *Cricket Valley will comply with this condition.*

## L. Agricultural Resources

66. Cricket Valley shall retain a qualified Agricultural and Soil Conservation Specialist/Inspector ("Agricultural Inspector") for each phase of Facility development, including: proposed EM&CP development and design, construction, initial restoration, post- construction monitoring and follow-up restoration. The Agricultural Inspector shall be available to provide site-specific agricultural information as necessary for proposed EM&CP development through field review as well as to have direct contact with affected farm operators, County Soil and Water Conservation Districts, Ag&Mkts and others. The Agricultural Inspector shall maintain regular contact with the Environmental Monitor or the Construction Inspector throughout the construction phase. The Agricultural Inspector shall remain on site during all Project activities on agricultural lands. The Agricultural Inspector also shall maintain regular contact with the affected farmers and County Soil and Water Conservation Districts concerning farm resources and management matters pertinent to the agricultural operations and the site-specific implementation of the approved EM&CP.

***Response 66:*** *Cricket Valley has retained a qualified agricultural inspector and will comply with this condition.*

67. Whenever the Certificate Holder submits a request for a change to the approved EM&CP that might affect agriculture, it shall consult with Ag&Mkts.

***Response 67:*** *Cricket Valley will comply with this condition.*

68. The Certificate Holder shall identify Black Cherry trees located on the Project ROW near active livestock use areas during preparation of the proposed EM&CP. During the clearing phase, such vegetation shall be disposed of in a manner which prevents access by livestock.

***Response 68:*** *Cricket Valley has identified concentrations of black cherry trees (see Appendix Q to this document), and during clearing, such vegetation will be chipped or removed from agricultural areas to prevent access by livestock. Notes have been added to the EM&CP drawings in locations where cherry trees exist within or nearby agricultural areas along the ROW.*

69. In agricultural areas, logs, stumps, brush, or chips shall not be piled or buried in active agricultural fields or improved pasture.

***Response 69:*** *Cricket Valley will comply with this condition.*

70. The Certificate Holder shall design the Project to the extent possible to avoid or limit the placement of structures on crop fields or on other active agricultural land where the structures may significantly interfere with normal agricultural operations or activities. Where the location of a structure on such agricultural land is unavoidable, the Certificate Holder shall attempt to site the structure in a location that minimizes impact to normal farming operations.

***Response 70:*** *As indicated on the Plan and Profile drawings provided in Volume II, to the extent practicable and feasible Transmission Facility structures have been located to minimize interference with agricultural operations or activities.*

71. During preparation of the proposed EM&CP, a detailed drainage line repair procedure shall be developed, in consultation with the local Soil and Water Conservation District, for the repair of crushed/severed clay tile and plastic drain lines. Drawings showing the generic technique to be implemented for drain line repairs shall be provided by the Certificate Holder. All new plastic drain tubing shall meet or exceed the AASHTO M252 specifications. The plan for the replacement of functional stone drainage systems severed during construction shall be prepared during the restoration phase, in consultation with Ag&Mkts and the local Soil and Water Conservation District.

***Response 71:*** *As part of the construction effort, Cricket Valley will coordinate with affected landowners and the Dutchess County Soil and Water Conservation District to determine the locations of tile in relation to Project facilities. If tile is damaged during construction or operation of the Project, the tile will be repaired in accordance with Ag and Markets guidelines. If tiles, within the Project's construction area defined limits, are adversely affected by the construction activities, Cricket Valley will take such actions as are necessary to restore the functioning of the tile, including the relocation, reconfiguration, and replacement of the existing tile. All existing drain tiles, either clay or PVC, shall be replaced with new PVC materials. For further details, please refer to "Repair of Damaged and Adversely Affected Tile" presented in Appendix O.*

72. Where construction entrances are required from public roadways to the Project ROW in agricultural fields, an underlayment of durable, geotextile fabric shall be placed over the exposed subsoil surface prior to the use of temporary gravel access fill material. In locations where underground utilities are located within 10 feet of the shoulder of the roadway, the Certificate Holder may elect, in order to minimize disturbance and protect the underground utilities, to place the geotextile fabric directly over the surface without stripping topsoil. In locations where underground utilities are located 10 feet or more from the shoulder of the roadway but still within the limits of the construction entrance, the Certificate Holder may elect to mat over the underground utilities instead of placing geotextile fabric and gravel access fill material. Complete removal of the construction entrance upon completion of the Project and restoration of the affected site is required prior to topsoil replacement, except where retention of the construction entrance would be more conducive to the existing land use than removal.

***Response 72:*** *Cricket Valley has identified locations for construction entrances required for tree clearing and construction. These are depicted on the Plan and Profile Drawings included in Volume II of this submittal. Typical requirements for construction are provided in Volume II.*

73. Segments of farm roads utilized for access shall be improved as required following consultation with the farm operator and Ag&Mkts prior to use. Such improvements shall include the installation of geotextile fabric and crushed stone.

***Response 73:*** *Cricket Valley will comply with this condition.*

74. The Certificate Holder shall rebuild to as-good or better condition, at or prior to completion of construction, any of the following that is damaged by construction: (i) fences and gates on the Certificate Holder's fee-owned ROW that are not incompatible

with the Project; (ii) fences and gates off of the Certificate Holder's fee-owned ROW; and (iii) any farm drainage features. The base of all new posts shall be secured to a reasonable depth below the surface to prevent frost heave.

***Response 74:*** *Cricket Valley will comply with this condition.*

75. Where repeated temporary access is necessary across agricultural portions of the Project ROW, topsoil shall be removed, including the "A" entire horizon down to the beginning of the subsoil "B" horizon, generally not to exceed a maximum of 12 inches. Topsoil removal up to a depth of 16 inches may be required in specially-designated soils encountered along the route. All topsoil shall be stockpiled directly adjacent to the travel way on the Project ROW and separated from other excavated materials. The Agricultural Inspector shall determine depth of topsoil stripping on each affected farm by means of the County Soil Survey and on-site soil augering, if necessary. All topsoil material shall be stripped, stockpiled, and uniformly returned to restore the original soil profile. During the clearing/construction phase, site-specific depths of topsoil stripping shall be monitored by the Agricultural Inspector.

***Response 75:*** *The Plan and Profile Drawings provided in Volume II show the laydown, work and stringing areas in agricultural lands where topsoil will either be stripped or matted over prior to construction activities.*

*There are four stringing sites located in Agricultural Lands. These include the stringing sites near the Traver Road Laydown area between structures CV-11 and CV-1;, between structures CV-35 and CV-36, between structures CV-36 and CV-37, and between Dover Furnace Road and structure CV-57. These stringing sites will be matted.*

76. Mats may be installed as an alternative to topsoil stripping. If so, the mats shall be layered where necessary to provide a level access surface. Once access is no longer required across agricultural areas, the mats shall be removed and the Agricultural Inspector shall use a soil penetrometer to determine if soil compaction has occurred as a result of construction activities. All compacted areas shall be remediated as specified below.

***Response 76:*** *Cricket Valley will comply with this condition if mats are installed temporarily in agricultural lands. As stated above, the Plan and Profile Drawings provided in Volume II show the laydown, work and stringing areas in agricultural lands where top soil will either be stripped or matted over prior to construction activities.*

77. In agricultural areas of till over bedrock where blasting is required, the Certificate Holder shall use matting or controlled blasting to limit the dispersion of blast rock fragments. All blasted rock not used as backfill shall be removed from croplands, hay lands and improved pastures. The till and topsoil shall be returned in natural sequence to restore the soil profile. Farm owners/operators shall be given timely notice prior to blasting on farm property.

***Response 77:*** *Cricket Valley will comply with this condition, although no blasting of bedrock is anticipated.*

78. Temporary work space in agricultural areas shall be of sufficient size to allow for positioning of conductor reels, tensioners, pullers, wire spools and other mechanized equipment required during pulling activities.

***Response 78:*** *The revised Plan and Profile Drawings provided in Volume II show the size and orientation of stringing areas and work pads. In addition, the Plan and Profile drawings have been revised to show guard structures (within and outside of agricultural areas) that will be employed to support conductor stringing. As shown on the drawings, a number of guard structures will require the preparation and use of temporary access roads to allow for their installation. These roads will be prepared and used following removal of vegetation, including stumping, and placement of timber matting. In locations where ground surface is suitable (dry firm soil or stone), not ground preparation is proposed prior to use. In general, minimal land grading is expected to be required. Following conductor stringing, these temporary access roads will be removed entirely, and the area of disturbance restored to approximate pre-construction topography and revegetated to stabilize exposed soils.*

79. In all agricultural sections of the Project ROW disturbed during construction, the Certificate Holder shall break up the subsoil compaction to a depth of 18 inches (unless bedrock is encountered at a depth less than 18 inches) with deep tillage by such devices as a deep-ripper (subsoiler). Final soil compaction results shall not be more than 250 pounds per square inch (PSI) as measured with a soil penetrometer. Following the deep ripping, all stone and rock material 4 inches and larger in size which has been lifted to the surface shall be collected and taken off site for disposal. The topsoil that has been temporarily removed for the period of construction shall then be replaced. Finally, deep subsoil shattering shall be performed with a subsoiler tool having angled legs. Stone removal shall be completed, as necessary, to eliminate any additional rocks and stones brought to the surface as a result of the final subsoil shattering process. Should subsequent construction and/or restoration activities result in compaction, then restoration activities shall include additional deep tillage.

***Response 79:*** *Cricket Valley will comply with this condition.*

80. All structures and guy anchors removed from agricultural areas as part of the construction activities shall be removed to a minimum depth of 48 inches below the soil surface. All holes or cavities created by the removal of the old facilities shall be filled to the same level as the adjacent area, plus 6 to 12 inches of additional soil to allow for settling. All material used for fill shall be similar to native soil. All fill material shall be compacted.

***Response 80:*** *Cricket Valley will comply with this condition.*

81. Wherever existing structures are removed from agricultural fields, the area shall be restored to allow agricultural activities. Such restoration shall include the removal of all

vegetation from the structure area and grading of the ground surface to match the adjacent field. All rocks 4 inches and greater in size shall be removed from the surface.

***Response 81:*** *Cricket Valley will comply with this condition.*

82. Excavated subsoil material and stockpiled topsoil shall be used to restore the original soil profile at new structure locations. All holes or cavities created by structure installation shall be filled to the same level as the adjacent area, plus 6 to 12 inches of additional soil to allow for settling. Excess substratum material not used for backfill shall be removed from agricultural areas.

***Response 82:*** *Cricket Valley will comply with this condition.*

83. At the end of all construction, the Project ROW and respective work areas, including guying wire assembly and disassembly sites, shall be thoroughly cleared of debris such as nuts, bolts, spikes, wire, pieces of steel, and other assorted items.

***Response 83:*** *Cricket Valley will comply with this condition.*

84. Cricket Valley shall be solely responsible for providing monitoring and remediation for a period of no less than two growing seasons following completion of Project ROW restoration in active agricultural areas. Cricket Valley shall be solely responsible for retaining the services of an Agricultural Inspector on at least a part-time basis through this period. The monitoring and remediation phase shall be used to identify any remaining agricultural impacts associated with Project construction that are in need of mitigation and to implement the follow-up restoration. During this phase, the Agricultural Inspector shall maintain a list of invasive species observed on the Project ROW in agricultural areas. In locations where invasive species are documented, the Certificate Holder shall determine whether such species were present during the pre-construction survey of invasive species on the ROW. If the species were not noted prior to construction, the Certificate Holder shall consult with the farm operator, DPS Staff and Ag&Mkts to determine the appropriate control measures to implement.

***Response 84):*** *Cricket Valley will comply with this condition. Section 4.3 of the BMPs presented in Exhibit 24 and provided in Appendix A of this document provides general guidelines on agricultural monitoring requirements. Section 7.0 of the BMPs provides procedures Cricket Valley will follow to identify and control invasive species.*

*Specifically, Cricket Valley will comply with the following guidelines as presented in Section 4.3 of the BMP:*

1. *Monitor crops during the early stages of crop growth, at the middle of the growing season (July), and at the end of the growing season prior to harvest.*

2. *Monitor general conditions include topsoil thickness, relative content of rock and large stones, trench-settling, crop-production, drainage, repair of severed fences, etc. Particular attention will be paid to changes in soil moisture content due to construction-related impacts on surface and subsurface drainage.*

3. *Mitigate topsoil deficiency and uneven soil-settling with imported topsoil that is consistent with the quality of topsoil on the affected site. Determine whether there are excessive amounts of rock and oversized stone material in a given disturbed area by comparing the results of a visual inspection of portions of the same field located outside the construction area. Remove all excess rocks and large stones and dispose of.*

85. During the monitoring and remediation period, on-site monitoring shall be conducted at least three times during each growing season and shall include a comparison of growth and yield for crops on and off the Facility ROW. When the subsequent crop productivity within the affected ROW is less than that of the adjacent unaffected agricultural land, the Agricultural Inspector, in conjunction with Cricket Valley and other appropriate organizations, shall help to determine the appropriate rehabilitation measures for Cricket Valley to implement (soil de-compaction, topsoil replacement, etc.). The Certificate Holder shall be solely responsible for implementing such measures. During the various stages of the Project, all affected farm operators shall be periodically apprised of the duration of remediation by the Agricultural Inspector. Because conditions which require remediation may not be noticeable at or shortly after the completion of construction, the signing of a release form prior to the end of the remediation period shall not obviate Cricket Valley's responsibility to fully redress all Facility impacts. After completion of the specific remediation period, the Certificate Holder shall continue to respond to the reasonable requests of the farmland owner/operators to correct Facility-related effects on the impacted agricultural resources.

***Response 85:*** *Cricket Valley will comply with this condition.*

86. The Certificate Holder shall provide all farm owners/operators with a toll-free or local telephone number to facilitate direct contact with the Certificate Holder and the Agricultural Inspector(s) through all of the stages of the Project. The farm owner/operators shall also be provided with a toll-free or local telephone number to facilitate direct contact with the Certificate Holder's Project Manager for the Facility during operation and maintenance of the transmission line.

***Response 86:*** *Cricket Valley will comply with this condition. A complete list of contacts is provided in Appendix F of this document.*

87. The Agricultural Inspector shall work with the farm operators during the planning phase to develop a plan to delay the pasturing of the Project ROW, following construction until

pasture areas are adequately re-vegetated. The Certificate Holder shall be responsible for maintaining the temporary fencing on the Project ROW until the Agricultural Inspector determines that the vegetation on the ROW is established and able to accommodate grazing. At such time, the Certificate Holder shall be responsible for removal of the fences.

***Response 87:*** *Cricket Valley will comply with this condition.*

88. On affected farmland, restoration practices shall be postponed until favorable (workable, relatively dry) topsoil/subsoil conditions exist. Restoration shall not be conducted while soils are in a wet or plastic state. Stockpiled topsoil shall not be re-graded until plasticity, as determined by the Atterberg field test, is significantly reduced. No restoration activities shall occur in agricultural fields from October through May unless favorable soil moisture conditions exist. The Certificate Holder shall monitor and advise Ag&Mkts and DPS Staff regarding tentative restoration planning. Potential schedules shall be determined by conducting the Atterberg field test at appropriate depths into topsoil stockpiles, and below the traffic zone for a mutual determination of adequate field conditions for the restoration phase of the Project.

***Response 88:*** *Cricket Valley will comply with this condition and consult with Ag and Markets and staff of the DPS before undertaking restoration.*

89. Following restoration of all disturbed areas, excess topsoil shall be distributed in agricultural areas of the site, provided this is practicable and can be accomplished without having any adverse impact on site drainage. All such activity shall be as directed by the Agricultural Inspector, based on guidance provided by the landowner.

***Response 89:*** *Cricket Valley will comply with this condition.*

90. After the moisture of the soil profile on the affected portion of the Project ROW has returned to equilibrium with the adjacent off-ROW land, subsoil compaction shall be tested using an appropriate soil penetrometer or other soil-compaction measuring device.

***Response 90:*** *Cricket Valley will comply with this condition.*

91. Topsoil stockpiles on agricultural areas left in place prior to October 31 shall be seeded with Aroostook Winter Rye or equivalent at an application rate of 3 bushels (168 #) per acre and mulched with straw mulch (or another material acceptable to the Agricultural Inspector) at a rate of 2 to 3 bales per 1000 Sq. Ft. Topsoil stockpiles left in place between October 31 and May 31 shall be mulched with straw mulch (or another material acceptable to the Agricultural Inspector) at a rate of 2 to 3 bales per 1000 Sq. Ft. Straw mulch (or another material acceptable to the Agricultural Inspector) shall be used to prevent soil loss on stockpiled topsoil from October through May.

***Response 91:*** *Cricket Valley will comply with this condition.*

92. After topsoil replacement, seedbed preparation (final tillage, fertilizing, liming) and seeding shall follow either Ag&Mkts recommendations as contained in Fertilizing, Lime and Seeding Recommendations for Restoration of Construction Projects on Farmlands in New York State (revised 9-25-2012) or landowner specifications.

***Response 92:*** *Cricket Valley will comply with this condition.*

93. Following construction, the Certificate Holder will work within the ROW in accordance with agreements with individuals who may farm within the existing ROW. The Certificate Holder shall not create any new paved or gravel access roads through lands that are used for agricultural purposes on the ROW.

***Response 93:*** *Cricket Valley will comply with this condition.*

## M. Environmental Supervision

94. The Certificate Holder shall designate a full-time supervisor and construction inspector for the Project. An environmental monitor, and/or designee, who shall have the requisite environmental qualifications and State authorizations, as detailed in Section 9.0 of the BMP detailed in Exhibit 24, shall be available as needed but, at a minimum, shall be on-site when work occurs near wetlands and streams, rare, threatened, or endangered species habitat, and in agricultural fields. The environmental monitor and any designee shall have stop-work authority over all aspects of this Project. The supervisor shall be on site during all phases of construction and restoration.

***Response 94:*** *Cricket Valley will hire a full-time environmental monitor (or two or more part-time monitors) with stop work authority over the construction of the Transmission Facility. Cricket Valley will also hire a full-time construction inspector (or two or more part-time inspectors) also with stop work authority over construction of the project. Section 9.0 of the BMP which is provided in Appendix A of this document describes the responsibilities and authorities of the environmental monitor(s) and construction inspector(s).*

*Specifically, the responsibilities of the Construction Inspector include:*

- *Providing proactive leadership and direction to Contractor personnel to ensure that high standards of safety, security, and environmental compliance are developed and consistently maintained;*
- *Working closely with personnel to ensure development of a complete Work Proposal, including construction work plan, detailed schedule, H&S plan, and outage plan;*

- *Ensuring that resource needs are adequately identified and assigned to fully support the construction contract work plans, schedule, and budget;*

- *Taking a proactive role interfacing with the appropriate individuals to fully understand contract program needs and ensure that promised commitments.*

*One of the fundamental roles of the environmental monitors is to escort construction-related traffic along the ROW in areas of protected species habitat, referred to as "environmental monitor sweeps." The use of the "CA4" designation on the Construction Access restriction bar of the Plan and Profile Drawings included in Volume II indicates the locations where environmental monitor sweeps are required. Environmental monitor sweeps will include inspection of the ROW immediately prior to passage of construction vehicle traffic along the ROW to ensure that any wildlife species are safely out of the way of passing vehicles.*

95. The environmental monitor(s) and construction inspector(s) shall be equipped with sufficient documentation, transportation, and communication equipment to effectively monitor contractor compliance with the provisions of this Certificate (including invasive species control), applicable sections of the Public Service Law, and the EM&CP.

***Response 95:*** *Cricket Valley will provide both the environmental monitor(s) and construction inspector(s) with sufficient documentation, transportation and communication equipment (e.g., cell phone) to effectively monitor contractor compliance with provisions of the Certificate, and relevant sections of the Public Service Law and the EM&CP.*

96. The name and qualifications of the supervisor, inspector(s) and environmental monitor(s) shall be submitted to Staff at least two weeks prior to the start of construction. All costs thereof shall be borne by the Certificate Holder. The environmental monitor's qualifications shall satisfy those of a "Qualified Inspector" pursuant to the SPDES General Permit.

***Response 96:*** *Cricket Valley will provide the names and qualifications of the supervisor, inspector(s) and environmental monitor(s) two weeks in advance of the start of construction. Cricket Valley will ensure that the environmental monitor's qualifications satisfy those of a "Qualified Inspector" pursuant to the SPDES General Permit. In addition, one or more of the environmental monitors will be licensed by the DEC to handle endangered species. In addition, an ISA Utility Forester will be used in the identification of danger trees.*

97. The Certificate Holder's employees, contractors and subcontractors assigned to the construction of the Facility and inspection of such construction work shall be properly trained in their respective responsibilities.

***Response 97:*** *Cricket Valley will comply with this condition.*

98. The authority granted in the Certificate and any subsequent order(s) in this proceeding is subject to the following conditions necessary to ensure compliance with such order(s):

a) The Certificate Holder shall regard Staff representatives (authorized pursuant to Public Service Law § 8) as the Commission's designated representatives in the field. In the event of any emergency resulting from the specific construction or maintenance activities that violate or may violate the terms of the Certificate or any other order in this proceeding, such Staff representatives may issue a stop-work order for that location or activity.

***Response 98.a):*** *Cricket Valley will comply with any stop-work orders issued by the Staff representative.*

b) A stop-work order shall expire in 24 hours unless confirmed by a single Commissioner. If a stop-work order is confirmed, the Certificate Holder may seek reconsideration from the confirming Commissioner or the whole Commission. If the emergency prompting the issuance of a stop-work order is resolved to the satisfaction of the Commissioner or the Commission, the stop-work order will be lifted. If the emergency has not been satisfactorily resolved, the stop-work order will remain in effect.

***Response 98.b):*** *Cricket Valley understands and accepts this condition.*

c) Stop-work authority shall be exercised sparingly and with due regard to the potential economic costs involved and possible impact on construction activities. Before exercising such authority, Staff representatives shall, wherever practicable, consult with the Certificate Holder representatives possessing comparable authority. Within reasonable time constraints, all attempts shall be made to address any issue and resolve any dispute in the field. In the event the dispute cannot be resolved, the matter shall be immediately brought to the attention of the Certificate Holder, the Project Manager, and the Department of Public Service Chief, Environmental Certification and Compliance Section of the Office of Utility Rates and Services. In the event that a Staff representative issues a stop-work order, neither the Certificate Holder nor the contractor will be prevented from undertaking any such safety-related activities as they deem necessary and appropriate under the circumstances. Stop-work or implementation of measures, as described below, may be directed at the sole discretion of the Staff representative during these discussions.

***Response 98.c):*** *Cricket Valley understands and accepts this condition.*

d) If a Staff representative discovers that a specific activity is a significant environmental threat that is, or may immediately become, a violation of the Certificate or any other Order in this proceeding, the Staff representative may—in the absence of responsible the Certificate Holder supervisory personnel or the presence of such personnel who, after consultation with the Staff representative, refuse to take appropriate action—direct the field crews to stop the specific environmentally harmful activity immediately.

If responsible the Certificate Holder personnel are not on site, the Staff representative shall immediately thereafter inform the supervisor and/or environmental monitor of the action taken. The Staff representative may lift the stop-work directive if the situation prompting its issuance is resolved.

***Response 98.d):*** *Cricket Valley understands and accepts this condition.*

e) If the Staff representative determines that a significant threat exists such that protection of the public or the environment at a particular location requires the immediate implementation of specific measures, the Staff representative may, in the absence of responsible the Certificate Holder supervisory personnel, or in the presence of such personnel who, after consultation with the Staff representative, refuse to take appropriate action, direct the Certificate Holder or its contractors to implement the corrective measures identified in the EM&CP. The field crews shall comply with the Staff representative directive immediately. The Staff representative shall immediately thereafter inform the Certificate Holder's supervisor or environmental monitor of the action taken.

***Response 98.e):*** *Cricket Valley understands and accepts this condition.*

99. Cricket Valley shall organize and conduct site compliance audit inspections for Staff as needed, but not less frequently than once per month during the site preparation and construction phases of the Project, and at least annually for two years after the Project becomes operational.

a) The monthly inspection shall include a review of the status of compliance with all certification conditions, requirements, and commitments, as well as a field review of the project site. The inspection report shall also include:

1) review of all complaints received, and their proposed or actual resolutions;

2) review of any significant comments, concerns, or suggestions made by the public, local governments, or other agencies;

3) review of the status of the Project in relation to the overall schedule established prior to the commencement of construction; and

4) other items the Certificate Holder or Staff consider appropriate.

***Responses 99.a) 1)-4):*** *Cricket Valley will comply with these conditions.*

b) Cricket Valley shall provide a written record of the results of the inspection, including resolution of issues and additional measures to be taken, to agencies involved in the inspection audit and to Con Edison. In addition to monthly inspection reports, Cricket

Valley shall provide to Con Edison the results of any special inspections or other inspections and tests.

***Response 99.b):*** *Cricket Valley will comply with this condition.*

## N. Construction

100. Cricket Valley shall design, engineer, and construct the Project in accordance with the NYISO Class Year 2012 or any subsequent Facilities Studies approved by the NYISO, the Transmission Planning and Advisory Subcommittee ("TPAS"), the NYISO Operating Committee, and in accordance with the applicable and published planning and design standards and best engineering practices of NYISO, the New York State Reliability Council ("NYSRC"), the Northeast Power Coordinating Council ("NPCC"), the North American Electric Reliability Corporation ("NERC"), and successor organizations depending upon where the facilities are to be built and depending on which standards and practices are applicable. The construction shall also be coordinated with Con Edison's operating, weather and safety restrictions.

***Response 100:*** *Cricket Valley has complied with this condition and completed the design in accordance with the NYISO Class Year 2012 Facilities Study. Cricket Valley will continue to coordinate with Con Edison throughout construction with operating, weather and safety restrictions.*

101. Cricket Valley shall design and construct the Project in accordance with the following Con Edison standards and specifications, to the extent applicable, and other standards and specifications including, but not limited to:

a) Con Edison Engineering Specification CE-SS-2006

b) Con Edison Engineering Specification CE-SS-4401

c) Con Edison Engineering Specification CE-SS-4501

d) Con Edison Engineering Specification CE-ES-2002

e) Con Edison Construction Specification CE-TS-3166

f) Con Edison "Guideline for Working Around Transmission Towers"

g) Con Edison Blasting Checklist

h) Con Edison Control Procedures for Construction Blasting

i) Con Edison General Instructions Governing Work On System Electrical Equipment

j) IEEE Std 516, IEEE Guide for Maintenance Methods on Energized Power Lines.

k) IEEE Std 738, IEEE Standard for Calculating the Current-Temperature of Overhead Conductors.

l) IEEE Std 1243, IEEE Guide for Improving the Lightning Performance of Transmission Lines

m) IEEE Std 998, IEEE Guide for Direct Lightning Strike Shielding of Substations

n) NESC C2 - National Electric Safety Code.

o) NEC – National Electric Code

p) ASCE 48-11, Design of Steel Transmission Pole Structures.

q) ASCE 74, Guidelines for Electrical Transmission Lines Structural Loads

r) ASCE 10-97, Design of Latticed Steel Transmission Structures.

s) Con Edison has agreed to notify the Certificate Holder within thirty (30) days of adoption of any updated applicable specifications, guidelines and standards relating to the construction of the transmission towers and lines and provide them to the Certificate Holder. The last such notification shall occur within thirty (30) days after the issuance of the Commission order approving the Environmental Management and Construction Plan ("EM&CP") for the Project.

t) Notwithstanding provision(s), all installations of new facilities, including the Cricket Valley Switching Station and new 345 kV Transmission line, all modifications of the existing 345 kV Pleasant Valley substation and all reconductoring of existing facilities shall be designed, engineered, and constructed in accordance with the latest standards that are enforceable by federal or state agencies as of the in-service date of the abovementioned facilities. All design drawings are subject to Con Edison's review and approval.

u) The Certificate Holder shall be responsible for acquiring any additional necessary rights, licenses or permits for ROWs or off-ROW access, and shall ensure that such additional property rights, licenses, or permits are transferable to Con Edison for the operation and maintenance of the Project facilities.

***Responses 101.a)-u):*** *Cricket Valley will comply with these conditions and confirm existing rights for use of existing access.*

102. The construction schedule shall be coordinated so as to minimize outages of the existing circuits adjacent to the Project, outages of the substations, and interconnected transmission facilities.

***Response 102:*** *Cricket Valley will comply with this condition to the extent practicable.*

103. Con Edison shall have the right to inspect the installation of the Project facilities at any time and for any duration during construction, and shall have the right to initiate stop work orders for safety or environmental issues through the appropriate jurisdictional authority.

***Response 103:*** *Cricket Valley understands and accepts Con Edison's right to inspect the Project facilities during construction and initiate stop work orders for safety or environmental issues during construction.*

104. The Certificate Holder shall coordinate with Con Edison as to vegetation management during construction of the Project and, in the event vegetation management is required along the portion of the ROW that the Certificate Holder will be using to build the Project, it shall construct the Project in accordance with the long-range vegetation management plan filed by Con Edison pursuant to 16 NYCRR §84.2, and as approved by the Commission and in effect at the time of Project construction. Compliance with any such vegetation management requirements in areas impacted by the Project shall be the responsibility of Cricket Valley until the later of the effective dates of the transfer of the Project and the Certificate to Con Edison.

***Response 104:*** *Cricket Valley shall comply with this condition and coordinate vegetation management during construction with Con Edison and its' long-range vegetation management plan.*

105. Cricket Valley shall identify any off-ROW danger trees and document them as part of the EM&CP.

***Response 105:*** *The locations of danger trees along the ROW's southern boundary where danger trees are to be removed are marked as "CD" on the Clearing restriction bar on the Plan and Profile Drawings provided in Volume II. Details regarding the type and size are provided in Appendix R. An updated danger tree listing will be prepared and submitted to Staff at least 2 weeks prior to the initiation of the removal of danger trees from off-ROW locations. Danger tree removal is not proposed to occur as part of the limited Portion 1 tree clearing. Danger trees will be removed after the full EM&CP approval.*

106. If any off-ROW trees are determined by the Certificate Holder to pose a danger to construction, operation, or maintenance of the Project, the Certificate Holder shall arrange to have them removed during Project construction.

***Response 106:*** *Cricket Valley shall remove or appropriately trim any danger trees identified during construction off the transmission corridor in accordance with landowner requirements.*

107. Within 30 days of the Commission Order approving the Project and issuing the Certificate, the Certificate Holder shall engage a contractor that it selects from a list of Con Edison-approved contractors provided by Con Edison.

***Response 107:*** *Cricket Valley has complied with this condition, and selected contractor MJ Electric.*

108. The Certificate Holder shall consult with Con Edison to determine a reasonable number and size of spare equipment parts to be provided to Con Edison following completion of construction of the Project. Spare parts may include, but are not limited to reels of cable, reels of OPGW and associated hardware, splices, connectors, dead ends, turnbuckles, clevises, links, spacers, dampers, corona rings and shackles. Con Edison will store the spare parts in its facilities.

***Response 108:*** *Cricket Valley will comply with this condition and consult with Con Edison.*

109. Existing transmission facility components replaced as part of construction of the Project shall be removed from the ROW to appropriate locations and handled appropriately for reuse or recycling, as appropriate, based on component's condition. Staff and Con Edison shall be notified if any major equipment is removed and/or replaced.

***Response 109:*** *Cricket Valley shall comply with this condition; If Con Edison does not want the materials for reuse, the materials will be brought to a recycling facility.*

110. Appropriate measures shall be taken to minimize fugitive dust and airborne debris from construction activity.

***Response 110:*** *Cricket Valley shall comply with this condition and take appropriate measures to minimize offsite transport of fugitive dust and airborne debris from construction.*

111. Prior to any approved blasting activities, the Certificate Holder must notify Con Edison Systems Operations of its planned activity a minimum of five (5) days prior to those activities.

***Response 111:*** *Cricket Valley shall comply with this condition.*

112. No construction shall take place at Cady Field during the little league season.

***Response 112:*** *Cricket Valley shall comply with this condition.*

113. Following construction, all disturbed areas, ruts and rills shall be restored to pre-construction contours to reduce the effects of grading, except where construction grading is viewed as an improvement to the existing grade by Con Edison. Erosion controls and permanent re-vegetation shall be restored as appropriate for those

locations. Disturbed pavement, curbs, and sidewalks shall be restored to their original preconstruction condition or improved.

***Response 113:*** *Cricket Valley shall comply with this condition.*

114. Sedimentation/erosion control devices shall be installed around areas to be disturbed within 100' of wetlands and streams, upon grades with slopes greater than 20%, and around any stockpiled soils to prevent soil erosion during construction. These erosion control devices shall be installed prior to construction and shall be maintained in place until the ROW has been re-vegetated and/or stabilized in accordance with pre-existing conditions. Sedimentation/erosion control devices shall be inspected periodically and immediately following any storm event and shall be repaired or replaced immediately, as necessary.

***Response 114:*** *Cricket Valley shall comply with this condition. The Plan and Profile Drawings presented in Volume II and the Project's SWPPP specify the sedimentation and erosion controls that will be installed prior to construction around areas that may be disturbed within 100 feet of wetlands, around stockpiled soils, and along slopes greater than 20% grade.*

115. Neither the Certificate Holder nor any contractors in its employ shall clear or alter any areas outside the boundaries of the certified Project, except off-ROW access roads designated in the EM&CP.

***Response 115:*** *Cricket Valley shall comply with this condition.*

116. The Certificate Holder shall design, engineer and construct the Project such that its operation shall comply with the electrostatic and electromagnetic fields ("EMF") standards established by the Commission in Opinion No. 78-13 (issued on June 19, 1978) and the Statement of Interim Policy on Magnetic Fields of Major Electric Transmission Facilities (issued September 11, 1990), respectively.

***Response 116:*** *Cricket Valley has complied with this condition and has designed the project to meet EMF requirements at the edge of the transmission corridor.*

117. The Certificate Holder shall use helicopters to support foundation construction and structure erection at most locations due to the steep terrain and limited access. Use of helicopters for structure erection at some other locations may occur but shall not take place at the following locations, due to their proximity to existing structures or public roads: CV-04, CV-05, CV-08, and CV-58. Other than periods of mobilization, demobilization, test flights, and emergencies, sky cranes shall be limited to flying within approximately 500 feet from the center line and above the ROW and the routes to staging areas. A projected schedule for helicopter use shall be included in the overall Project construction schedule to be filed as part of the proposed EM&CP.

***Response 117:*** *Cricket Valley shall comply with this condition. The Project will not fly suspended loads over roads that are open. Volume II plans provide detail on the locations where helicopters will be used, restrictions on ROW access road use during that time period, and time of day work hour restrictions to be adhered to by all construction contractors. Appendix V to this filing includes the Project's Helicopter Use Protocol, providing details on the nature of the activities to be supported by helicopter and requirements and restrictions relative to their use. Note that the hours of helicopter operation are planned to be the same as other construction activities supporting the Project, specifically 7:00 AM to 8:00 PM Monday through Saturday.*

118. The Certificate Holder shall provide to Staff as-built drawings of the Project certified by a Professional Engineer that is licensed and currently registered in New York State. Drawings and construction record documentation shall be uploaded to Con Edison's electronic drawing management system.

***Response 118:*** *Cricket Valley shall comply with this condition.*

119. The Certificate Holder shall utilize materials that have been approved for construction and reconductoring by Con Edison, which materials shall meet the specifications of Con Edison. Questions concerning such specifications shall be raised with Con Edison.

***Response 119:*** *Cricket Valley shall comply with this condition.*

120. All transmission structures shall be acceptable to Con Edison and shall include full fall arrest systems for poles and arms, including catwalks, and shall be designed to comply with the Occupational Safety & Health Administration ("OSHA") requirements for fall arrest/fall protection under 29 CFR 1910.269 and 29 CFR Part 1926, Subpart V, including OSHA's changes to those regulations scheduled to take effect in 2015.

***Response 120:*** *The Project design complies with this condition.*

121. Where Delta configuration steel monopoles are installed, the Certificate Holder shall align the middle phase toward the nearest property line to assist in vegetation management.

***Response 121:*** *The Project design complies with this condition.*

122. Upon completion of construction of the Project, as a required system upgrade facility pursuant to the tariffs of the NYISO, ownership will be transferred to Con Edison, which will own, maintain, and operate the Project. Cricket Valley will file for approval of the transfer of Project to Con Edison, at no cost to Con Edison, pursuant to PSL Section § 70. The Article VII certificate will also be transferred to Con Edison pursuant to Commission procedures under PSL Section § 121 (2).

***Response 122:*** *Cricket Valley shall comply with this condition.*

## O. Contractors and Contractor Supplies/Materials

123. At least two weeks prior to construction, the Certificate Holder shall submit a report to the Secretary confirming that all required construction materials are available. For purposes of this paragraph, an item of construction material is available (i) if it is located at a marshaling yard, (ii) if it's in a Certificate Holder warehouse or other routine Certificate Holder inventory stocking location, or (iii) if it's on order from a vendor with a scheduled delivery date prior to the time scheduled for its use in the Project.

***Response 123:*** *Cricket Valley shall comply with this condition.*

124. All equipment shall be located at the marshalling yard(s) or on the Project ROW, provided, however, that if a local contractor is used for the work, the local contractor's facility shall be considered an acceptable marshaling yard.

***Response 124:*** *Cricket Valley shall comply with this condition; no equipment will be stored under the 398 conductors*."*.*

125. DPS Staff will provide the name of a contact person(s) ("DPS Staff Representative") and the contact information (mailing address, phone number, e-mail, etc.) of that individual for purposes of this ordering clause and ordering clause numbers 121 through 125 of this Certificate. If a reportable accident occurs in connection with work on the Project, the Certificate Holder shall report any such accident to the DPS Staff Representative as soon as possible. A copy of the accident report, if any, shall be provided to the DPS Staff Representative after it has been finalized.

***Response 125:*** *Cricket Valley shall comply with this condition.*

126. The Certificate Holder shall provide the DPS Staff Representative with a monthly audit report reflecting material inventory and usage.

***Response 126:*** *Cricket Valley shall comply with this condition.*

127. The Certificate Holder, with respect to its Project Components, shall provide the DPS Staff Representative with a copy of any police report and any insurance claim filed in connection with any theft of Project- related materials, as well as a list of the stolen items. Subsequently, the Certificate Holder shall provide the DPS Staff Representative

with an accounting of all replacement materials. Such Certificate Holder's accounting of replacement materials shall include documentation of the insurance company's coverage and contractor's costs for replacement.

***Response 127:*** *Cricket Valley shall comply with this condition.*

128. The Certificate Holder, with respect to its Project Components that are transmission lines, shall ensure that a representative from the engineering design firm that designed such Project Components or another Consultant selected by such Certificate Holder shall conduct field reviews on a bi-weekly basis and prepare a written report of the firm's findings on whether such Project Components are being constructed in accordance with the design for such Project Components. The Certificate Holder shall provide a copy of each such report to the DPS Staff Representative within three (3) business days after the Certificate Holder receives the report. The Certificate Holder shall notify the DPS Staff Representative of when the field reviews will occur.

***Response 128:*** *Cricket Valley shall comply with this condition.*

129. The Certificate Holder shall, within six (6) months following completion of restoration of its Project Components, provide to the DPS Staff Representative a full accounting of all costs incurred to date for such Project Components, including an explanation of variances, if any, between projected and actual costs.

***Response 129:*** *Cricket Valley shall comply with this condition.*

130. If a Contractor installs incorrect materials, structures, or components, the Certificate Holder, within one (1) month after becoming aware of such incident, shall prepare and deliver to the DPS Staff Representative a summary report detailing the incident, the steps to be taken to rectify the mistake, the material and labor costs associated with rectifying the incident, and the manner in which such costs will be accounted for separately from such Certificate Holder's other Project costs.

***Response 130:*** *Cricket Valley shall comply with this condition.*

131. The Certificate Holder shall develop a quality control plan ("Quality Control Plan") for inclusion in the EM&CP describing how it will ensure that the transmission line structures and components it purchases for the Project conform to the specification for structures and components described in the approved EM&CP. At a minimum, the Quality Control Plan shall include: (i) the name(s) and qualifications of the individual(s) who will conduct audits under the Quality Control Plan ("Quality Control Audits"); and (ii) the frequency with which the Quality Control Audits will be performed.

***Response 131:*** *The Quality Control Plan is presented in Appendix G of this document.*

132. Within 5 days following completion of each Quality Control Audit, the Certificate Holder shall provide to Staff a report of such audit that includes: (i) a description of the results of the audit, particularly with respect to results that identify that one or more structures or components the Certificate Holder purchased for installation in the Project did not conform to the specification for structures or components described in the approved EM&CP; and, (ii) any notes pertinent to the subject matter of such audit which were

made at audit meetings by Certificate Holder personnel and contractors who performed the audit.

***Response 132:*** *Cricket Valley shall comply with this condition.*

133. If any Quality Control Audit conducted by the Certificate Holder identifies that one or more structures or components the Certificate Holder purchased for installation in the Project did not conform to the specification for structures and components described in the approved EM&CP, the Certificate Holder shall: (i) provide written notification to the Secretary within 24 hours of the Certificate Holder's discovery of such non-conformity; and (ii) describe the steps the Certificate Holder will take to correct the non-conformity, including whether any components must be dismantled and sent back to the manufacturer, as well as a detailed estimate of all costs and expected delays in construction resulting from such non-conformity.

***Response 133:*** *Cricket Valley shall comply with this condition.*

134. Cricket Valley shall be responsible for the cost of the Project as determined by NYISO in accordance with its Federal Energy Regulatory Commission- approved tariffs, rules, and procedures.

***Response 134:*** *Cricket Valley shall comply with this condition and be responsible for the cost of the Project in accordance with NYISO requirements and FERC-approved tariffs, rules and procedures.*

135. To better ensure a safe working environment for all persons at each Project work site, the Certificate Holder shall require its contractors or subcontractors, before any person who is authorized by the Certificate Holder to be present at the site that day, or any representative of a regulatory agency present on official business, commences performing or observing Project activities, to give such person an on-site tailboard safety briefing. The Certificate Holder shall ensure that: (a) any document that a person participating in a tailboard safety briefing is required to sign at such briefing is legible; and (b) the person conducting the briefing shall use his/her best efforts to give accurate and complete responses to all requests by such persons for clarification of the scope of work, construction methodology, and other pertinent personal safety information. If a person participating in a tailboard safety briefing who signed such a document desires a copy thereof, he/she shall request it in writing and the Certificate Holder shall provide a copy thereof to the requester within 48 hours of the request.

***Response 135:*** *Cricket Valley shall comply with this condition.*

## P. Invasive Species

136. To prevent the introduction of new invasive species onto or adjacent the ROW, and/or to reduce further introduction or spread of invasive species into areas on or adjacent

the ROW already containing invasive species, as a result of construction of the project and its ROW, the Certificate Holder shall prepare and implement an Invasive Species Management Plan (ISMP). The ISMP shall be prepared and submitted as part of the EM&CP and shall be prepared in accordance with the Best Management Practices set forth in Exhibit 23 for Invasive Species Management Plan Components. The provisions of the ISMP shall be reviewed and, if acceptable, approved by DPS Staff and, upon DPS Staff approval, shall be made an enforceable part of this Order as part of the EM&CP.

***Response 136:*** *Cricket Valley shall comply with this condition in accordance with the specific requirements contained in Invasive Species Management Plan ("ISMP") presented in Appendix H of this document.*

137. In 2013, the applicant conducted a pre-construction baseline survey for the proposed ROW. The Certificate Holder will update the baseline survey for the Certificated ROW prior to construction and determine the presence of invasive species in the Project area. This reevaluation of the baseline survey will be included in the form of a survey report in the ISMP.

***Response 137:*** *Cricket Valley has complied with this condition. An updated baseline survey for invasive species prior was conducted in December of 2015. An updated survey report was prepared, and is appended to the Invasive Species Management Plan presented in Appendix H.*

138. The ISMP will apply to all areas where construction activities will occur and shall include measures for: appropriate invasive species avoidance and management training and education for Project staff involved with Project construction to accomplish the purposes stated above; identification of and adherence to Best Management Practices set forth in Exhibit 24 to control the spread of invasive species within and outside the Project areas as a result of construction activities subject to this Order; reduction of the potential for transport of invasive species to areas outside the ROW and Project work areas.

***Response 138:*** *Cricket Valley shall comply with this condition in accordance with the ISMP presented in Appendix H and the Best Management Practices (BMP) presented in Appendix A of this document.*

139. Cricket Valley shall be responsible for monitoring the project area for two growing seasons following completion of Facility ROW restoration, and for determining and implementing appropriate control measures. The monitoring phase shall be used to identify any impacts associated with Project construction, including noting (i) the presence of invasive species not present during the pre-construction surveys on the ROW, and (ii) any increase in the density of invasive species present during the pre-construction surveys on the ROW. If the species were not noted prior to construction, or their density has increased, the Certificate Holder shall consult with technical specialists from DEC's Regional Natural Resource Staff, Con Edison, and the DEC project manager, as appropriate, DPS Staff, and Ag&Mkts to determine whether appropriate control measures are warranted.

***Response 139:*** *Cricket Valley shall comply with this condition.*

## Q. Transportation, Roads and Highways

140. The Certificate Holder shall minimize the impact of Project construction on traffic circulation. Traffic control personnel and safety signage will be employed to ensure safe and adequate traffic flow when secondary roadways are affected by construction. The Certificate Holder shall submit, as part of the EM&CP, a Maintenance and Protection of Traffic Plan ("MPTP") for access to the existing transmission line. Construction worker parking shall be designated in areas that do not interfere with the normal flow of traffic, cause a safety hazard, or interfere with existing land uses and shall be specified in the EM&CP.

***Response 140:*** *Cricket Valley shall comply with this condition in accordance with the Work Zone Traffic Control ("WZTC") access plans presented in Appendix B of this document. The WZTC is equivalent to a Maintenance and Protection of Traffic Plan and will address appropriate levels of traffic control for the twenty-four (24) access locations (NYSDOT, County, Town roads, and private property) covering the transmission line route.*

141. Direct disturbance to properties shall be avoided by accessing the ROW from existing roadways or approved access roads.

***Response 141:*** *Cricket Valley shall comply with this condition. The WZTC provides drawings depicting all twenty-four (24) access locations which show the ROW will be accessed only for existing roadways or approved access roads*

142. The Certificate Holder shall delineate on the proposed EM&CP drawings, the locations of proposed temporary roads, proposed permanent roads and existing access roads. Proposed access road improvements and measures for environmental impact minimization and access control shall be included in the proposed EM&CP.

***Response 142:*** *Cricket Valley shall comply with this condition and depict on the EM&CP plans the locations of new permanent roads (notably "spur" access roads, which are all permanent), as well as existing access roads along the Line 398 ROW.*

143. The Certificate Holder shall consult periodically with municipal highway transportation agencies about traffic conditions near the Facility site and shall notify each such transportation agency of the approximate date work will begin in its jurisdiction, using access points that take direct access from the highways in that jurisdiction.

***Response 143:*** *Cricket Valley shall comply with this condition as described in detail in the WZTC presented in Appendix B.*

144. In preparing the proposed EM&CP, the Certificate Holder shall consult with each transportation department or agency normally having jurisdiction over any roads in the Project vicinity that will be crossed by the certified Facility, or used for direct access to the Project ROW. If the access road takes direct access from, or lies within the limits of, such roads, the Certificate Holder shall notify each relevant transportation department or agency of the approximate date when work will begin.

***Response 144:*** *Cricket Valley shall comply with this condition as described in the WZTC presented in Appendix B.*

145. NYSDOT shall have authority to place inspectors on site to monitor and observe the Certificate Holder's activities on state highways, or to request the presence of state or local police to ensure the safety of freeway travelers, at such times and for such periods as NYSDOT deems appropriate. All costs thereof shall be borne by the Certificate Holder.

***Response 145:*** *Cricket Valley understands and accepts the authority granted NYSDOT representatives to inspect the activities on state highways and to request the presence of state or local police to ensure safety, the costs of which will be borne by Cricket Valley.*

146. The Certificate Holder shall coordinate all State Highway crossings and longitudinal occupations with NYSDOT. The Certificate Holder shall obtain the necessary permits from NYSDOT, including, as appropriate, a Highway Work Permit and Use and Occupancy Permit pursuant to 17 NYCRR Part 131.

***Response 146:*** *Cricket Valley shall comply with this condition and obtain the required permits from NYSDOT.*

147. The Certificate Holder shall coordinate with DPS Staff and NYSDOT for all work to be performed in the State highway rights-of-way. Prior to submitting its construction plan for any State highway ROW segment, the Certificate Holder shall provide to DPS Staff and NYSDOT a preliminary design marked to avoid conflict with potential future

transportation projects that NYSDOT may seek to undertake in the future and shall offer to consult with NYSDOT concerning any comments it may offer and shall use reasonable efforts to accommodate any NYSDOT concerns.

***Response 147:*** *Cricket Valley shall comply with this condition and coordinate with DPS staff and NYSDOT for all work to be in preformed in State highway rights-of-way. Prior to construction, Cricket Valley will consult with NYSDOT regarding any relevant future transportation projects, and prepare and submit those relevant EM&CP plans involving construction along State highway rights-of-way.*

148. All work within State highway rights-of-way shall be designed and performed according to the applicable traffic and safety standards and other substantive requirements contained in 17 NYCRR Part 131, entitled Accommodation of Utilities Within State Highway Right-of- Way, and applicable design standards of the American Association of State Highway Transportation Officials, the Manual of Uniform Traffic Control Devices, the Highway Design Manual, and the NYSDOT 2008 Standard Specifications.

***Response 148:*** *Cricket Valley shall comply with this condition and design and construction the project in accordance with applicable requirements.*

149. In preparing the proposed EM&CP, the Certificate Holder shall consult with NYSDOT regarding any State highways and/or related structures in the Project vicinity that will be crossed by the Facility or used for direct access to the Project ROW. If the access road takes direct access from, or lies within the limits of, such roads, the Certificate Holder shall notify NYSDOT of the approximate date when work will begin.

***Response 149:*** *Cricket Valley shall comply with this condition.*

## R. ROW Construction, Restoration, and Long-Term Maintenance after Construction

150. The Certificate Holder shall carry out its responsibilities pursuant to this Certificate and any other orders issued in this proceeding until the date on which the Certificate and ownership transfer transactions close after having been approved by the Commission.

***Response 150:*** *Cricket Valley shall comply with this condition.*

151. In connection with the felling of trees, the Certificate Holder shall:

a) not clear or alter any area outside the boundaries of the fee-owned Facility ROW and permanent easement without prior notice to the owner(s) of the land to be cleared or altered, and the Certificate Holder also shall cause Contractors in its employ to comply with this prohibition;

b) negotiate in good faith with each landowner appropriate compensation for the merchantable logs the Certificate Holder has determined it shall remove from such landowner's property;

c) comply with the provisions of 6 NYCRR Part 192, Forest Insect and Disease Control, and ECL § 9-1303 and any quarantine orders issued thereunder;

d) note the disposal of all woody material resulting from clearing the ROW for the Facility on the EM&CP drawings;

e) not create a maximum chip depth greater than three (3) inches, except for chip roads or for invasive species control; and,

f) not store chips in wetlands, active agricultural fields, or within 25 feet of streams.

***Responses 151.a)-f):*** *Cricket Valley will comply with these conditions.*

152. Unless described otherwise in the approved EM&CP, all trees over two inches in diameter breast height or shrubs over four feet in height damaged or destroyed by activities during construction, regardless of where located, shall be replaced within the following year by Cricket Valley with the equivalent type of trees or shrubs, except if:

a) equivalent type replacement trees or shrubs would interfere with the proper clearing, construction, operations or maintenance of the certified Facility,

b) replacement would be contrary to sound ROW management practices, or to any approved long-range ROW management plan applicable to the Facility or adjoining transmission facilities; or,

c) the owner of land where the damaged or destroyed trees or shrubs were located declines replacement (or other recorded easement or license holder with the right to control replacement declines replacement).

***Responses 152.a)-c):*** *Cricket Valley will comply with these conditions.*

153. The proposed EM&CP shall include a plan for removal, re-use, recycling and disposal of existing equipment (e.g., lattice towers, poles, conductors, etc.). Existing transmission facility components removed or replaced as part of construction of the Project shall be removed from the Project ROW to appropriate destinations and handled appropriately for re-use as available based on conditions.

***Response 153:*** *Cricket Valley will comply with this condition. Line 398 conductor from tower L-60 to tower L-76 shall either be returned to Con Edison or recycled as scrap at a site approved by Con Edison. Insulators shall be disposed of off-site to an approved disposal facility. Hardware shall be recycled as scrap.*

154. Neither Cricket Valley nor any Contractors in its employ shall construct any new, or improve any existing, access road unless such road is: (i) located on the ROW authorized by the Project; (ii) located on other utility ROW to be utilized in the construction or operation and maintenance of the certified Facility; or, (iii) described in the approved

EM&CP. Should the need arise for additional off-ROW access, Cricket Valley shall follow the procedures provided in Certificate Condition number 32.

***Response 154:*** *Cricket Valley will comply with this condition.*

155. a) The Certificate Holder shall adhere to NYSDEC's then effective "New York State Standards and Specifications for Erosion and Sediment Control," also known as the "Blue Book" ("NYSSESC").

b) The Certificate Holder shall include in the proposed EM&CP the Stormwater Pollution Prevention Plan ("SWPPP") for the Project.

c) The Certificate Holder shall install temporary erosion control devices as soon as practicable and appropriate as indicated in the proposed EM&CP, but in any event no later than the end of the work day in which site disturbance occurs.

***Response 155.a)-c):*** *Cricket Valley will comply with this condition. A draft SWPP was be prepared and submitted to DEC and DPS for review, as well as to the MS4 communities along the Project ROW. The submitted SWPPP is provided in Appendix J of this document.*

156. The Certificate Holder shall be responsible for checking all culverts and assuring that they are not crushed or blocked during construction and restoration of the Facility; if a culvert is blocked, crushed, or otherwise damaged, the Certificate Holder shall repair the culvert or replace it with alternative measures appropriate to maintaining proper drainage. All known culverts are depicted on the EM&CP plan set; a survey of culvert location, type, and condition was completed in April, 2017, and Appendix T, ROW Culvert Survey and Culvert Replacement Specifications, provides details on culverts located within or nearby the Line 398 ROW as well as a specification for the replacement of damaged culverts.

***Response 156:*** *Cricket Valley will comply with this condition.*

157. Cricket Valley shall, upon completion of the Project:

a) Conduct an assessment of the need for landscape improvements, including vegetation planting, earthwork or installed features to screen or landscape the Facility with respect to road crossings, residential areas, and substations.

b) Prepare plans for any visual mitigation found necessary as a result of the assessment conducted pursuant to subdivision (a) of this condition, and, in connection therewith, removal, rearrangement and supplementation of existing landscape improvements or plantings should be considered, as appropriate.

c) Consult with DPS Staff on the content and execution of its assessment, resultant landscaping plan specifications and materials list; details shall include measures for third party or wildlife damage to any landscape and vegetation plantings; and,

d) Present draft assessments and plans to DPS Staff for review, and file a final plan with the Secretary within one year after the date the Facility is placed in service.

***Response 157.a)-d):*** *Cricket Valley will comply with this condition.*

158. The proposed EM&CP shall include plans to prevent unauthorized access to and along the Facility ROW. Plans shall include the following:

a) Posting signs at the ROW edges in those locations where the ROW intersects public roads.

b) Performing outreach to educate and inform the public concerning the risks and impacts of unauthorized access.

c) Working with local law enforcement officials in an effort to prevent future trespassing.

d) Identifying construction and material details of gates and berms.

e) Identifying existing and proposed gate locations on the Plan and Profile drawings. Final determination of locations of gates and berms shall be made during post-construction assessment of the Facility, in consultation with DPS Staff.

***Response158. a)-e):*** *Cricket Valley will comply with this condition.*

159. Concurrent with Commission approval of the EM&CP for this Project, the Chief of the Environmental Certification and Compliance Section of the Office of Utility Rates and Services, pursuant to §401 of the Federal Water Pollution Control Act, as amended, 33 U.S.C. §1341, and PSL Article VII, will execute the certification, substantially in the form of Exhibit 32, that the Facility will comply with the applicable requirements of §§301, 302, 303, 306, and 307 of the Federal Water Pollution Control Act, as amended, and will not violate New York State water quality standards and requirements.

***Response 159:*** *Cricket Valley understands that the Chief of the Environmental Certification and Compliance Section of the Office of Utility Rates and Services will execute the §401 Water Quality Certification concurrent with Commission approval of*

*the EM&CP. The Facility will comply with the applicable requirements of the Federal Water Pollution Control Act and will not violate New York State water quality standards and requirements.*

160. All access roads and/or improvements to access roads will be designed and constructed in a way that is acceptable to Con Edison.

***Response 160:*** *Cricket Valley will comply with this condition. Cricket Valley will have Con Edison review the draft EM&CP plans for access road construction and will not proceed to construction before receiving approval from Con Edison.*

161. Because the Project will be constructed on Con Edison's Line 398 ROW, all aspects of annual and long-term vegetation management, including herbicide use, will be conducted in accordance with the annual vegetation management program filed by Con Edison pursuant to 16 NYCRR §84.2, and as approved by the Commission and in effect at the time of Project construction.

***Response 161****: Cricket Valley will comply with this condition.*

162. Only herbicides approved for use in any Federal wetland, State-regulated wetland, or State-regulated wetland 100 foot adjacent area (collectively "Regulated Wetlands") may be used. All herbicide applications will be conducted in accordance with Section 2.9 of the BMP contained in Exhibit 24.

***Response 162:*** *Cricket Valley will comply with this condition and use only those herbicides approved for use in Regulated Wetlands. All herbicide applications will be conducted in accordance with the requirements described in Section 2.9 of the Best Management Practices (BMP) provided in Appendix A of this document.*

*Foliar spray units will be refilled with water from a supply vehicle. Water will not be pumped directly from a water source into the spray tank. Each vehicle used for herbicide application or for transportation of herbicide concentrate on the ROW will be equipped with a shovel and absorptive material for containing and controlling spills. All herbicide spills will be reported immediately to Cricket Valley and applicable agencies as specified by Cricket Valley's Spill/Release Cleanup and Reporting Guidelines and applicable state and federal regulations.*

163. The Certificate Holder will be responsible for completing both the Initial and second-year application ("2Y Applications"), unless construction of the Transmission Line is completed and ownership of the Transmission Line is conveyed to Con Edison before the 2Y Application is submitted pursuant to the BMP presented in Exhibit 24. If the Transmission Line is conveyed before the 2Y Application is submitted, Con Edison will complete the 2Y Application in accordance with the BMP in Exhibit 24 and provided in Appendix A at Cricket Valley's expense. If weather conditions (precipitation or low temperatures) prevent cut stump herbicide treatment immediately after initial tree

clearing, application will be made when appropriate conditions for herbicide application exist.

***Response 163:*** *Cricket Valley will comply with this condition.*

164. Following construction, the Project will be managed in accordance with the long-range vegetation management plan filed by Con Edison pursuant to 16 NYCRR §84.2, and as approved by the Commission and in effect at the time of Project operation.

***Response 164:*** *The Certificate Holder will comply with this condition.*

165. Following construction, with the exception of the spur access roads, the disturbed area will be restored to approximate pre-construction contours to reduce the effects of grading, except where construction grading is viewed as an improvement to the existing grade by Con Edison.

***Response 165:*** *Cricket Valley will comply with this condition. New spur access roads will be permanent, and built using filter fabric and stone atop a compacted subgrade.*

166. After construction, Con Edison is authorized to control regrowth of vegetation employing the use of herbicides.

***Response 166:*** *The Certificate Holder will comply with this condition. The Certificate Holder will review herbicide restrictions set forth by DEC within rare species habitat.*

# III. REQUIREMENTS AND DETAILS OF THE ENVIRONMENTAL MANAGEMENT AND CONSTRUCTION PLAN

The environmental management and construction plans (EM&CP), consisting of appropriate maps, charts, illustrations, and text, shall include, but need not be limited to, the following information.

## A. Plan and Profile Details

### *1. Facility Location*

1a. The boundaries of any new, existing and/or expanded ROW (ROW) or road boundaries if cables are to be constructed underground in streets; plus areas contiguous to the ROW or street within which the applicant will obtain additional rights; and an explanation of the need for those additional rights.

***Response 1a:*** *The boundary of the ROW is depicted on the Plan and Profile Drawings provided in Volume II of this revised EM&CP.*

1b. The location of each facility structure (showing its size, material and type and indicating the GSA—595A Federal standard color designation or manufacturers color specification to be used for painted structures), structural foundation, fence, gate, down-guy anchor, and any counterpoise (typical counterpoise drawings will suffice) required for the proposed facility; conductors, insulators and static wires and other components attached to facility structures.

***Response 1b:*** *The location of each facility structure is depicted on the Project Plan and Profile Drawings provided in revised Volume II. Structures including the substation and switchyard are also included with the Plan and Profile Drawings.*

1c. Existing utility or non-utility structures on the ROW, and indicate those to be removed or relocated (include circuit arrangements where new structures will accommodate existing circuits, indicate methods of removal of existing facilities, and show the new locations, types and configurations of relocated facilities).

***Response 1c:*** *The locations of utility and non-utility structures on the ROW are depicted on the Plan and Profile Drawings provided in revised Volume II. With the possible exception of temporary livestock fencing, no utility or non-utility structures on the ROW will need to be removed to construct the Transmission Facility.*

1d. Any relocated or underground facility.

***Response 1d:*** *It is expected that the Transmission Facility will not result in the relocation of any underground facility. The locations of the existing Iroquois Pipeline and Central Hudson Gas and Electric Corporation natural gas pipeline are depicted on*

*the Plan and Profile Drawings provided in revised Volume II. None of the four towns traversed by the ROW provide water or sewer services outside of the town centers, except for a few locations (see Response 32.c). A "dig safe" call will be initiated prior to the commencement of construction activities in these locations.*

1e. The relationship of the proposed facility to nearby fence lines, roads, railways, airfields, property lines, hedgerows, waterbodies, associated facilities, flowing water springs, nearby buildings or structures, major antennas, oil or gas wells, and pipelines or blowdown valves. State any objections raised by Federal, State or local transportation (highways, waterways, or aviation) officials to the final location or manner of installation of, or access to, the Certified facilities.

***Response 1e:*** *The relationship of the facility to nearby fence lines, roads, railways, property lines, hedgerows, waterbodies, associated facilities, flowing water springs, nearby buildings or structures, and pipelines is depicted on the Project Plan and Profile Drawings provided in Volume II of this submittal. There are no airfields, major antennas, or oil or gas wells near the facilities. The Sky Acres airfield is over 1,200 feet from the edge of the transmission corridor.*

1f. The location of any proposed new or expanded switching station, substation, or other terminal or associated facility (attach plan - plot, grading, drainage, and electrical - and elevation views with architectural details at appropriate scales). Indicate the type and expected impact of outdoor lighting, including design features to avoid off-site illumination and minimize glare; the color and finish of all structures; the locations of temporary or permanent access roads, parking areas, construction contract limit lines, property lines, designated floodways and flood-hazard area limits, buildings, sheds, relocated structures, and any plans for water service and sewage and waste disposal.

***Response 1f:*** *The new Cricket Valley Energy switchyard and the Pleasant Valley substation are depicted on the Plan and Profile Drawings provided in Volume II Additional design information is provided in Volume II as well. Supplemental design information will be provided according to a schedule provided with this submission.*

1g. The location and boundaries of any areas whether located on- or off-ROW proposed to be used for fabrication, designated equipment parking, staging, lay-down and conductor pulling. Indicate also any planned fencing or screening of storage and staging areas.

***Response 1g:*** *The location and boundaries of both on- or off-ROW areas to be used for fabrication, equipment parking, staging, lay-down, and stringing are depicted on the Plan and Profile Drawings provided in Volume II.*

1h. The proposed location of all on- or off-ROW access, temporary construction, and permanent maintenance roads, indicating access from other roadways.

***Response 1h:*** *The location of all on- and off-ROW access roads, including new "spur" roads and access from other roadways are depicted on the Plan and Profile Drawings..*

## *2. Stormwater Pollution Prevention*

2a. Include details on the plan and profile drawings of the approved Stormwater Pollution Prevention Plans ("SWPP"), including the soil erosion and sediment control measures developed in accordance with the latest version of the New York Standards and Specifications for Erosion and Sediment Control. Details of these New York Standards and Specifications include stabilized construction entrances, silt fences, check dams, and sediment traps.

***Response 2a:*** *Details regarding soil erosion and sediment control measures are provided in the Plan and Profile Drawings provided in Volume II and in the SWPPP presented in Appendix J of this document. The SWPPP provided in Appendix J has been reviewed by the three MS4 communities along the route (Pleasant Valley, LaGrange, Union Vale) as of the time of this filing, and approvals from these communities are expected in Q2, 2017.*

2b. Include details on the plan and profile drawings of the approved SWPPP locations for all permanent stormwater management controls that are required based on site-specific conditions or conditions of the Certificate.

***Response 2b:*** *Permanent stormwater management controls, such as water bars are proposed at appropriate locations along the transmission corridor. These are depicted on the Plan and Profile Drawings provided in Volume II. The controls are also described in the SWPPP presented in Appendix J.*

## *3. ROW Clearing and Disposal*

3a. The locations of sites, if any, requiring trimming or clearing of vegetation and the geographic limits of such trimming or clearing. Indicate in text and on the drawings the specific methods for the type and manner of cutting and disposition or disposal method for cut vegetation (i.e., chip; cut and pile; salvage merchantable timber, etc.). Designate methods for management of vegetation to be cut or removed at each site, indicating the rationale for the method designated. Sites should be based on an initial ROW vegetation inventory conducted prior to clearing and access road construction, and should be distinguished by criteria such as:

(1) any geographical area bounded by distinctly different cover types requiring different cut-vegetation management methods, or

(2) any geographical area bounded at each end by areas requiring distinctly different cut vegetation methods due to site conditions such as land use differences, population density, habitat or site protection, soil or terrain conditions, fire hazards or other factors.

(3) different property-owners requesting specific vegetation treatment or disposal methods.

(4) delineation and protection of desirable vegetation species.

(5) indication of areas requiring (off-ROW) danger tree removal.

***Response 3a. (1-5):*** *Locations along the ROW where tree and vegetation clearing is required are shown on the Plan and Profile Drawings provided in Volume II of this document. Methods for the type and manner of cutting and disposition or disposal method for cut vegetation (i.e., chip; salvage merchantable timber, etc.) are specified in the Plan and Profile Drawings provided in Volume II as well as in the Project's Best Management Practices Manual (Appendix A). The locations and limits have been determined using information obtained during field inspection, and ROW inventory and analysis conducted by Cricket Valley. Note that "merchantable timber" in the context of the Project is considered to be timber of condition and volume to be of some commercial value. Trees greater than 8" and of good condition would typically be considered "merchantable" when cut and collected in a quantity practical for commercial purchase and use.*

*Visual impact mitigation to sensitive abutting property owners is noted in the Plan and Profile Drawings as VIS ("for "Visual Buffer Preservation"). Locations denoted with the "VIS" symbol indicate areas where removal of compatible vegetation should be avoided to the extent practical for the purpose of preserving existing vegetative screening of the ROW from nearby residences or businesses. Use of a brush hog or removal of shrubs or low-growing vegetation should be avoided in the general vicinity of the VIS designation if practical.*

*Certain locations on the ROW may also warrant planting of vegetation for screening in locations where required removal of existing vegetation would result in significantly increased views of the Project ROW and where such plantings would be effective in providing visual screening. Examples of such locations include west of North Smith Road (south of the ROW), and west of Forest Valley Road (south of the ROW) where abutting properties include homes relatively close to the ROW. In such locations, compatible vegetation based on Con Edison's standards may be installed at the edge of the ROW in consultation with DPS and private landowners.*

3b. The location of any areas where specific tree protection measures will be employed to avoid damage to specimen trees, stands of desirable species, important screening trees, or hedgerows. Details of specific measures should be specified in text and site plans.

***Response 3b:*** *There are some areas along the transmission corridor where specific tree protection measures are required. Most notably, the conifers at the southern edge of the transmission corridor adjacent to Forest Valley road (near CV-08) should be retained to provide visual screening for the home which abuts the transmission corridor. These and trees at some other locations are depicted on the Plan and Profile Drawings in Volume II of this document.*

## *4. Building and Structure Removals*

4a. Indicate the locations of any buildings or structures to be acquired, demolished, moved, or removed. In text, provide the rationale for the acquisition and removal of buildings or structures.

***Response 4a:*** *No buildings or structures require demolition along the Project transmission corridor.*

## *5. Waterbodies*

5a. Indicate the name, water quality classification and location of all rivers and streams (whether perennial and intermittent) within 100 feet of, or crossed by, the proposed ROW or any off-ROW access road constructed, improved or maintained for this facility. Indicate the procedures that were followed to inventory such resources and provide copies of any resulting data sheets and summary reports. Describe the measures to be taken in each location to protect streambank stability, stream habitat, and water quality including, but not limited to: crossing technique; crossing structure type; timing restriction; and other site-specific measures appropriate to the location for impact minimization, resource protection, and facility construction management.

On the plan maps, indicate:

(1) stream crossing method and delineate any designated streamside "protective or buffer zone" in which construction activities will be restricted to the extent necessary to minimize impacts on rivers and streams;

(2) the activities to be restricted in such zones;

(3) delineate any designated floodways or flood hazard areas to be traversed by the proposed facility or access roads, or otherwise used for facility construction or the site of associated facilities.

***Response 5a:*** *The location of all streams on or immediately adjacent (within approximately 100 feet) of the Project ROW are depicted on the Plan and Profile Drawings included in Volume II of this supplemental EM&CP, and are listed in Table 4.8-1 from the Article VII Application which is provided in Appendix P for reference.*

*Waterways were identified during wetland delineation field studies completed during the autumn of 2013. While the Transmission Facility will not cross any rivers, it will cross a numerous streams, including several state designated Class C(t) trout stream. However, the routing and crossings of streams for the Transmission Facility avoids any permanent adverse impact to streams. Temporary impacts to some streams may occur during construction due to the use of temporary mat bridges to cross streams, however applicable BMPs will be employed to avoid or reduce any impact to waterways. There will be no planned disturbance to the bed or banks of a C(T) or C(TS) stream including installation and removal of crossings from October 1 through and including April 30.*

*Major streams and rivers within the Project area include the Tenmile River, Coopertown Brook, Swamp River, Wappinger Creek, Sprout Creek, Clove Brook and their associated tributaries. A total of 17 crossings of DEC-regulated streams and their associated tributaries occur within the Project ROW. Streams and their associated water quality classifications are identified in Table 4.8-1 (see Appendix O). These surface waters are classified as either Class B or C Fresh Surface Waters according to the DEC Standards (New York Code of Rules and Regulations [NYCRR] 1999). Classification B indicates a best usage for primary and secondary contact recreation and fishing, but not for drinking water. These waters are suitable for fish, shellfish, and wildlife propagation and survival. Classification C is for waters supporting fisheries and suitable for non-contact activities. These waters are suitable for fish, shellfish, and wildlife propagation and survival. The water quality is suitable for primary and secondary contact recreation, although other factors may limit the use for these purposes. Classified waters may also have a standard of (T), indicating that it may support a trout population, or (TS), indicating that it may support trout spawning. Special requirements apply to sustain these waters that support these valuable and sensitive fisheries resources.*

*Temporary erosion and sedimentation controls, consisting primarily of silt fence or hay bales, will be installed as necessary to minimize water quality impacts to streams. Such temporary controls will be installed at the end of the day or as directed by the Environmental Inspector, (based upon ground cover remaining). Erosion controls may be installed across disturbed portions of the transmission line corridor leading to streams, at the top of stream banks, at the toe of slopes leading to streams, and / or across construction access leading to streams. Temporary erosion controls on slopes leading to streams where sedimentation or erosion could reach a stream will be maintained until revegetation and site stabilization is determined to be effective.*

5b. Show the location of all potable water sources including springs and wells on the ROW or within 100 feet of the ROW or access roads indicating on a site-by-site basis, precautionary measures to be taken to protect each water source.

***Response 5b:*** *To Cricket Valley's knowledge, there are no potable water supplies including springs or wells on the ROW. CVEC contacted Con Edison, local Boards of Health, and the Dutchess County Health Department to determine the potential*

*presence of wells near the ROW. Con Edison indicated that no wells are present on the ROW. The County Health Department and the local Boards of Health indicated that they do not keep records on the location of residential wells.*

### *6. Wetlands*

6. Indicate the location and type of any wetland (e.g., marsh, meadow, bog, or scrub-shrub or forested swamp) within or adjoining the ROW or any access road, as determined by site investigation and delineation. Indicate in text, and on plans as appropriate, on a site-by-site basis the precautions or measures to be taken to protect such wetlands, associated drainage patterns, and wetland functions.

***Response 6:*** *The location of all wetland resource types as determined by site investigation and delineation, on and adjacent to the transmission corridor/ROW and access roads are depicted on the Plan and Profile drawings provided in Volume II.*

*Precautions and measures to be taken to protect such wetlands, associated drainage patterns, and wetland functions are depicted on the Plan and Profile Drawings provided in Volume II. Precautions and measures to be taken are also described in the general notes provided with the drawings included in Volume II and in Section II. Response 62 (see above Section II, K. Waterbodies and Wetlands).*

*Impacts to wetlands including the one hundred foot adjacent area associated with State-regulated wetlands are being avoided and minimized to the extent practicable. The only permanent wetland alteration imposed by the Project will be minor, involving limited clearing of trees in wetland areas and adjacent areas. A total of approximately three (3) acres of forested wetland will be converted to emergent wetlands, only approximately 0.72 acres of which will involve State-regulated wetlands or their associated adjacent areas.*

*There will also be some temporary impacts to emergent and scrub/shrub wetlands where it is necessary to clear vegetation to allow for access and/or construction of transmission line structures. Temporary impacts also include soil disturbance that may result from construction activities and movements of construction equipment. Construction activities will generally utilize a 12 foot wide corridor for access and an approximate 100 x 100 foot workspace area for installation of each transmission structure although a smaller area may be adequate for many structures that can be installed utilizing helicopters. Work areas are identified in the Plan and Profile Drawings presented in Volume II of this document.*

*Where wetland impacts are unavoidable, construction measures will be implemented that have been designed to minimize impact. In addition to compliance with any condition that may be imposed by the permit issued by the U.S. Army Corps of*

*Engineers, Cricket Valley and its designated contractor will apply the following general measures and restrictions to protect wetlands:*

- *The boundaries of all wetlands will be clearly flagged prior to any construction activity.*

- *The boundaries of all work areas will be clearly marked (staked, flagged or equivalent) in the field and all construction work will be performed as per the Plan and Profile drawings and within field-marked areas.*

- *Hand cutting is prescribed for areas within wetland resource areas clearly marked on the Plan and Profile drawings provided in Volume II and in the field.*

- *Wood chips and other construction debris will not be allowed within wetland resource areas.*

- *Temporary erosion control and sedimentation control measures will be installed around the boundary of the construction work site and/or wetland prior to the start of construction activities that could disturb soils and cause erosion and sedimentation into adjacent wetland areas. These controls will be maintained in working order until the completion of site stabilization.*

- *Approved temporary disturbance of wetland areas (including the 100 foot wetland adjacent area) will be restored as soon as possible following the completion of the work in the area. Wetland areas temporarily disturbed during construction will be restored to their original grade (to maintain pre-disturbance flow regimes) and any temporary matting/gravel fill/crossing structure used in the wetland removed.*

- *In situations where it is necessary to temporarily work within a wetland to construct transmission facility structures or complete staging operations, temporary fill may include geo-textile fabric covered with clean gravel, as provided for in the USACE permit application and at locations described in the EM&CP plan set. In appropriate situations, timber mats may be used at the discretion of the environmental inspectors. Following completion of the work, geo-textile fabric/gravel fill or timber mats will be removed. If work within a wetland, stream, or adjacent area is*

  *required but not previously documented, the Certificate Holder will notify applicable regulatory agencies including DPS and DEC prior to advancing such activities.*

- *Construction equipment may not be refueled or washed within a wetland resource or within 100 feet of such an area.*

- *No storage of any petroleum or chemical material may occur within the limits of a wetland resource area.*

*Wetland impacts permitted by permit (USACE NAN-2009-01043-WOR) include the following:*

- *Wetland 2E, 1,235 square feet*
- *Wetlands 2D, 1388 square feet*
- *Wetland 4B, 1,582 square feet*
- *Wetland 4E, 422 square feet*
- *Wetland 1KK, 817 square feet*
- *Wetland 3II, 1,704 square feet*

*All wetland impacts described above are temporary. Permanent clearing of approximately 3.38 acres of forested wetland associated with the Project is also approved by the USACE permit referenced above.*

*A table listing the stream crossings, wetland impacts, and DEC adjacent area impacts is provided in Appendix P*

## *7. Landscaping*

7. Show locations of existing or proposed vegetative plantings, earthwork, or installed features to screen or landscape substations or other facility components. Describe in text and on detailed drawings, any screening or landscaping plans proposed.

***Response 7:*** *In accordance with the response to II-157 (see above Section II, R. ROW Construction, Restoration, Long-Term Maintenance after Construction), landscape plans will be developed to determine appropriate plantings to screen the Transmission Facility at select locations along the transmission corridor.*

## *8. Noise Sensitive Sites*

8. Show the locations of noise-sensitive areas along the proposed ROW and the specify procedures to be followed to minimize noise impacts related to ROW clearing, facility construction, and operation. Indicate the types of major equipment to be used in construction or facility operation; sound levels at which that equipment operates; days of the week and hours of the day during which that equipment will normally be operated; any exceptions to these schedules; and any measures to be taken to reduce audible noise levels caused by either construction equipment or facility operation.

***Response 8:*** *Construction noise will be temporary and intermittent, and experienced mostly at buildings close to the Transmission Facility. As a means to minimize noise impacts in locations where occupied structures are located within 200 feet of the ROW, construction will be limited to the hours between 7:00 am and 8:00 pm unless upon notice to the Department of Public Service. As another means to reduce noise construction equipment that will be used shall have fully functional mufflers.*

## *9. Other Environmentally Sensitive Areas*

9a. Indicate the general locations of any known ecologically and environmentally sensitive sites (including rare and endangered species or habitats, deer winter yards, and archaeological sites), within or nearby the proposed ROW or along the general alignment of any access roads to be constructed, improved or maintained for this facility. Indicate the procedures that were followed to identify such resources and specify the measures that will be taken to protect or preserve these resources. Reports prepared to identify and analyze such sites shall be made available to Staff upon request.

***Response 9a:*** *Along the transmission line corridor, habitat for the following Rare, Threatened or Endangered Species ("RTE") occurs at various locations: Bog Turtle, Blanding's Turtle, Timber Rattlesnake, Indiana Bat, and Northern Long Eared Bat. Significant habitat and restricted access in these areas are identified on a generic basis on the Plan and Profile Drawings provided in Volume II by indicating "Environmentally Sensitive Area" on the plans regardless of the species. Specific protection measures for each species are contained in the BMP presented in Appendix A of this document. The BMP will be provided to the construction contractor and its employees, and will be enforced by the Environmental Supervisor and the Construction Inspector (See Section III, 3. a-d below).*

9b. Indicate the location and identification of sensitive land uses and resources that may be affected by construction of the facilities or by construction-related traffic (i.e., hospitals, emergency services, sanctuaries, schools, residential areas, etc.). Specify measures to minimize impacts on these resources.

***Response 9b:*** *While there are residential homes in the vicinity of the Project ROW, there are no traditional sensitive land uses or resources that will be affected by the construction of the Transmission Facility.*

## *10. Recreational Areas Including Parks*

10a. Indicate the locations where existing or planned recreational uses, if known to the applicant at the time of the submission of the EM&CP, would affect or be affected by facility location, construction, or other ROW preparation. Explain in text how these recreational uses or plans were (or can be) accommodated in facility construction, operation and maintenance.

***Response 10a:*** *In Pleasant Valley, Cady Recreation Park, which includes a baseball field, is in close proximity and adjacent to Transmission Structure CV-05, on the east side of Wappinger Creek. The transmission line will parallel the third base line. Due to the park not closing for any season and to minimize any impact to the use of the baseball field, no construction will occur during the Little League season. The only other park in the vicinity is the Pleasant Valley Recreation Park, which is located on the east side of Wappinger Creek and north of the existing transmission line (Con Edison's 345 kV Line 398). While Project transmission structures, including CV-15 will be visible from the Pleasant Valley Recreation Park, existing vegetation and park structures will limit the view. Furthermore, views from the Pleasant Valley Recreation Park toward the Project will include the intervening Line 398 lattice towers; therefore, the Project structures will not be out of character with existing views.*

*In Dover, there is a summer camp (Seventh Day Adventist) with a soccer field located near existing Con Edison transmission structure L-66. To avoid any conflicts with the use of the soccer field, reconductoring is planned during the winter months when the field is not in use.*

## *11. Agricultural Areas*

11a. Indicate the locations of prime, unique, and significant agricultural lands, vulnerable soils, and underground drainage systems and the locations of sites under cultivation or in active agricultural use, where structures, access roads, counterpoise wires, lay-down areas or wire stringing operations will be located. Designate the site-specific techniques to be implemented to minimize or avoid construction-related impacts to agricultural resources.

***Response 11a:*** *Agricultural lands are identified on the Plan and Profile Drawings following the land classification scheme provided by Ag & Mkts, and calling out specifically land types (pasture, hayfield, cropland), special features, such as Christmas tree farms, and identifying location where soils may be vulnerable due to erosion or wetness. Impacts to agricultural lands associated with the Project are minimal, and are restricted to areas on and adjacent to the ROW needed for stringing and assembly areas. Restrictions and techniques to be employed to minimize impacts to agricultural lands are identified on the general notes included in Volume II of this document.*

*Additionally, the contractor will be required to confine vehicular activities to the construction access system identified on the Plan and Profile drawings. The contractor will also be required to contain all excavation and engineering activities within designated work areas depicted on the Plan and Profile drawings included in Volume II. Excavation and engineering activities will be completed by the contractor in such a manner that will prevent rutting and contamination of topsoil or subsoil. Excavated material must be sampled and properly disposed of, using a Con Edison approved transporter, to a site listed on Con Edison's current approved site list." Debris or*

*deleterious materials will not be allowed in agricultural areas. Following construction activities, restoration of agricultural lands will follow specifications included on the Notes and Restrictions included in Volume II.*

## B. Description and statement of objectives, techniques, procedures and requirements.

### *1. Erosion Control*

1a. Describe the temporary and permanent measures to be taken during all construction phases to stabilize and restore soils, control erosion, and preserve natural drainage patterns in areas where significant soil disturbances (including removal of vegetative cover, grading, or excavation) are proposed. Include standards, practices, erosion control measures, and techniques to address construction management, communications, planning, monitoring, and reporting requirements as appropriate for conformance with Storm Water Pollution Prevention Plan details.

***Response 1a:*** *Cricket Valley is committed to minimizing the erosion potential during the construction of the Transmission Facility and restoration of the ROW. The Plan and Profile Drawings contain the necessary components of the Stormwater Pollution Prevention Plan (SWPPP) to prevent erosion and sedimentation associated with tree clearing and construction activities and also depict sedimentation and erosion control and stabilization measures proposed for use.*

*The erosion and sediment control provisions identified in Volume II include general and site-specific best management practices and will preclude contravention of water quality and wetland standards along the ROW.*

*Cricket Valley will direct whatever temporary and/or permanent measures are deemed necessary to protect natural resources during the various phases of construction. Functional runoff-erosion control devices (as shown in Volume II) will be installed and maintained where they are necessary to minimize the erosion potential during clearing/construction, and these devices will be inspected on a daily basis and promptly repaired if collapsed or damaged. The selection of the particular technique will be based upon site conditions and construction requirements. However, general approaches to sedimentation and erosion control are discussed in Section II., Response 32.*

*The location and type of control measures to be employed will be reviewed in the field prior to construction. Temporary erosion control measures will be installed pursuant to the specifications on the Plan and Profile drawings and details provided in Volume II., Temporary erosion control measures may include hay bales, silt fence, mulching, and/or temporary seeding. If temporary seeding is used as an erosion control measure, quick germinating seed will be used in accordance with seasonal and specific seeding rates. Seeding requirements will be done in consultation with the Dutchess County Soil and Water Conservation District, and in accordance with a Con Edison approved seed*

*mix as shown in Volume II following the Plan and Profile Drawings. II Temporary erosion controls will be maintained throughout the construction process, until restoration and re-vegetation are deemed effective, in accordance with the criteria for permanent vegetation cover as determined in consultation with the District. Permanent erosion control measures will include water bars at select locations along the access roads.*

1b. In areas of Coastal erosion hazard, include plans to demonstrate compliance with the standards for coastal erosion hazard protection as required by 6 NYCRR Part 505.

***Response 1b:*** *The Transmission Facility is not located within a coastal erosion hazard area.*

## *2. Fuel and Chemical Handling Procedures*

Describe precautions and measures to be followed during clearing, construction, and site restoration:

2a. to control the storage, handling, transporting and disposal of fuels, oil, chemicals, and other potentially harmful substances; and

2b. to avoid spills and improper storage or application in the vicinity of any wetland, river, creek, stream, lake, reservoir, spring, well or other ecologically sensitive site, or existing recreational area along the facility ROW and access roads.

***Response 2a - b:*** *Cricket Valley and its contractor will take precautions during the storage, handling and transporting of fuels, oils, chemicals and other potentially harmful substances to avoid spills and contamination of water quality standards or other regulations intended to protect the working environment. Cricket Valley and its contractor will take precautions to prevent spillage in the construction zone and not store these materials beneath trees or in the vicinity of any wetlands, stream, or other body of water. Any hazardous substances will be transported, stored and handled as recommended by suppliers and/or manufacturers in compliance with all applicable federal or state regulations. These precautions are required as detailed in the revised Spill plan presented in Appendix C. This care and compliance will be accomplished through imposition of the following restrictions on both contractors and company personnel:*

- *Extreme caution shall be exercised when handling fuel and while refueling to avoid spillage.*

- *Any equipment which must be refueled in the field will be refueled from tanks carried to the work site by truck.*

- *No equipment refueling shall be done in the vicinity of streams or other sensitive areas, (i.e., intermittent streams, wetlands, beneath trees).*

- *If areas frequented by children are identified in the ROW, the Environmental Monitor shall prohibit the storage of fuel, oil, chemicals, etc. and shall not permit refueling to take place in such areas. The contractor will notify Cricket Valley immediately if this identification occurs in the course of construction, so that Cricket Valley may contact the appropriate landowner.*

## *3. Environmental Supervision*

3a. Describe protocols for supervising demolition, vegetation clearing (including any use of herbicides), construction and site restoration activities to ensure minimization of environmental impact and compliance with the environmental protection provisions specified by the Certificate.

3b. Specify the titles and qualifications of personnel proposed to be responsible for ensuring minimization of environmental impact throughout the demolition, clearing, construction and restoration phases, and for enforcing compliance with environmental protection provisions of the Certificate and the EM&CP. Indicate the amount of time each supervisor is expected to devote to the project.

3c. Explain how all environmental protection provisions will be incorporated into contractual specifications, and communicated to those employees or contractors engaged in demolition, clearing, construction, and restoration.

3d. Describe the procedures to “stop work” in the event of a certificate violation. Identify the company’s designated contact including phone number, for assuring overall compliance with certificate conditions.

***Response 3a-d:*** *Compliance with the environmental protection provisions specified by the Commission will be assured through supervision of construction activities by the Construction Management staff assigned to the project. As detailed in Appendix Y, the Construction Management staff will include a Construction Manager, an Environmental Monitor, a Construction Inspector, a certified ISA Utility Forester, a Safety Monitor, and their counterparts from the Prime Contractor's organization, along with support staff having specific technical qualifications required to provide comprehensive environmental monitoring services. . All workers will have Environmental and Safety training to help fulfill Cricket Valley's objective to work safely in a manner that protects the natural and cultural resources in the area.*

*The Environmental Monitor (EM) will be on the job full-time during the clearing, construction, and restoration phases and will be on the job approximately one week in advance of, and one week subsequent to mobilization/demobilization. CVEC employee Marc Duquette will serve as the designated Environmental Monitor, and can be reached at (617) 320-5219 or via email at mduquette@advancedpowerna.com. See Appendix Y for contact information for the full EM and management team.*

*An experienced Construction Inspector will also be on-site on a full-time basis. This individual is trained in the basic concepts of proper tree care, trimming and removal. Cricket Valley does not propose that this individual will be making substantive decisions regarding environmental commitments; rather, this person will be simply carrying out the directives of the Environmental Monitor. Each of the field personnel will be assigned a company vehicle for the duration of the project, and portable communications equipment.*

*The responsibilities of the Environmental Monitor are outlined in Section II.M. "Environmental Supervision". As explained in the Response to Condition 96 in Section II.M., Cricket Valley will employ one full-time EM, or two or more part time Environmental Monitors depending on the construction activity and the qualifications of the Environmental Monitor required for that activity. For example, for environmental sweeps conducted in RTE species habitat, Cricket Valley will employ at least one EM that is licensed by DEC to handle endangered species.*

*Cricket Valley has not identified any environmentally sensitive areas along the transmission corridor/ROW that will require 24-hour supervision. Sites will be protected at the end of each work day to ensure safety and ensure that appropriate erosion control measures are in place.*

*Cricket Valley is committed to the concept of protecting environmental values during all phases of construction. Concerns of this type will be handled by the Environmental Monitor. The Environmental Monitor will be aware of any environmental problems that might arise and will be on-site daily to correct any such problems. Additionally, there will be close liaison between the Environmental Monitor and Cricket Valley during line*

*construction. Should there be a need for deviation from the EM&CP commitments, the Environmental Monitor, in coordination with Cricket Valley, shall contact Commission staff in accordance with the established procedure for dealing with minor changes to approved EM&CPs, as described in Section II. E., Response to 35.*

*Provisions have been made in the construction specifications to ensure that environmental protection provisions of the Commission's Orders will be carried out. The successful bidder will be provided a copy of the final specifications at the time of a pre-construction meeting. At this meeting, which will be attended by all key Cricket Valley project personnel, the importance of strict compliance with all environmental provisions will be explained and emphasized. At that time all contractors will be notified that the Construction Manager and the Environmental Monitor have the authority to stop work and direct actions if such should become necessary in the interest of the environment.*

## *4. Clean-up and Restoration*

Describe the applicant's program for ROW clean-up and restoration, including:

4a. the removal of any temporary roads; restoration of lay-down or staging areas; the finish grading of any scarified or rutted areas; the removal of waste, scrap metals, surplus or extraneous materials or equipment used;

4b. plans, standards and a schedule for the restoration of vegetative cover; include specifications to address:

(1) design standards for ground cover:

(a) species mixes and application rates by site;

(b) site preparation requirements (soil amendments, stone removal, subsoil treatment or drainage measures);

(c) acceptable final cover % by cover type;

(2) planting installation specifications and follow-up responsibilities;

(3) a schedule or projected dates of any seeding and/or planting.

***Response 4a - b:*** *Site preparation to restore disturbed areas (including temporary and permanent access roads, rights-of-way, work areas, substations, etc.) may involve disking and raking (where soils are severely compacted, disc or scarify soils prior to seeding), and liming/fertilizing (as required by site-specific conditions and per*

*landowner requests). After disturbed areas have been restored to grade, and site preparation has occurred as discussed above, a cover crop appropriate for the area will be applied such as annual rye or winter wheat.*

*Temporary fills for construction access or work pads will be either commercial mats or select fill on geotextile. As soon as practicable, these temporary fills will be removed and the surface prepared for adequate and appropriate re-vegetation.*

*Hay, straw, or cellulose fiber will typically be used for general mulching purposes at road crossings and stream and wetland approaches. Shrubs and trees may be planted as replacements for damaged or destroyed vegetation if deemed appropriate after consultation with the DPS Staff.*

*All trees over two inches diameter breast height (DBH) or shrubs over four feet in height damaged or destroyed by activities during construction, operation, or maintenance, regardless of where located, shall be replaced within the following year by Cricket Valley with the equivalent type trees or shrubs, except if:*

- *permitted by any approved EM&CP;*
- *equivalent-type replacement trees or shrubs would interfere with the proper clearing, construction, operations, and/or maintenance of the certified facility;*
- *replacement would be contrary to sound ROW management practices or to any approved long-range ROW management plan applicable to the project; or*
- *the owner on whose land the damaged or destroyed trees or shrubs were located declines replacement (or other recorded easement or license holder with the right to control replacement declines replacement); provided, however, that Cricket Valley may decline to replace trees or shrubs on its property where required by the EM&CP.*

*Upon completion of the wire stringing activities, final restoration will restore any remaining areas with seeding and/or mulching to follow immediately. This phase will also include final water bar installation; restoration of disturbed areas to previously existing or stable contours and seeding; restoration of permanent access roads; and checking the integrity of the installed drainage and erosion control facilities to ensure their proper functioning.*

*Seeding will occur after all construction activities and possible disturbance have been completed. If the time of the year (late fall or winter) will not permit a suitable growth of desired ground cover, final seeding will be delayed until the next growing season (spring). Temporary ground cover (mulch) will be employed in the interim. In agricultural areas, seed mixtures, rates and amounts will be coordinated with the farm owner or operator.*

*Provisions for erosion control and maintenance of drainage installations include monitoring (through routine line patrols), and correction of conditions which do not conform to requirements of the Commission's Orders. Initial monitoring will occur three times through the second growing season following completion of line construction. This period should be sufficient to accomplish stabilization of soil, control of surface water and establishment of interim vegetation pending natural regeneration. Where this does not occur, Cricket Valley will take whatever actions are necessary to produce a stable condition.*

*Subsequent to the initial maintenance period described above, ROW management will be conducted in accordance with Con Edison's approved ROW management program.*

*In areas currently in agricultural or other compatible uses, these activities will be encouraged to continue to the extent that they do not interfere with operation or maintenance programs of the facility. Also included in the Con Edison routine ROW management program will be the maintenance of existing erosion control or drainage structures and slopes.*

## *5. Herbicides*

5a. Specify the locations where herbicides are to be applied. Provide a general discussion of the site conditions (e.g., land use, target and non-target vegetation species composition, height and density) and the choice of herbicide, formulation, application method, and timing.

5b. Provide a general comparative analysis of any proposed herbicide applications using the following selection criteria: selectivity, efficacy, toxicity, persistence, and cost-effectiveness.

5c. Describe the procedures that will be followed during application to protect non-target vegetation, streams, wetlands, potable waters and other waterbodies, and residential areas and recreational users on or near the ROW.

5d. The ROW and adjoining properties shall be posted and notified by using the DEC approved format (ECL Part 33 and 6 NYCRR Part 325); or as may be implemented subject to interim utility guidance, if issued.

***Response 5a - c:*** *Initial ROW vegetation clearing for construction will be done via mechanical methods. Broadcast spray of herbicides will not be applied to clear vegetation. Clearing by chain saw or mechanized tree/brush cutters will be completed and will be followed by a cut stump herbicide treatment. Herbicides will contain dyes to allow easy identification of treatment areas. Herbicides will be used in accordance with the Con Edison TVMP. Herbicides will be employed by Cricket Valley following initial clearing and as part of a second-year ("2Y") application to control cut-stump growth ("stump sprouts"). The Project will be constructed within Con Edison's existing*

*Line 398 and that ROW, which is already predominantly cleared of woody vegetation as part of Con Edison's ongoing maintenance work. In accordance with current practice, Con Edison will apply herbicides to the ROW in accordance with the most current vegetation management plan ("VMP") and yearly operating plan ("YOP") filed with the Commission.*

*The post-clearing and 2Y cut stump treatments (to be completed by Cricket Valley) will consist of the following:*

- *Accord Concentrate (EPA Reg. No. 62719-324) 50 gallons*
- *Water (to make 100 gallons)*
- *Bullseye colorant*

*Approximately 50 gallons of a Con Edison TVMP approved herbicide is proposed as a one-time use during construction following ROW tree clearing. The subsequent application (Year 2) would be expected to be 10-20 gallons. Application of glyphosate-based herbicide will be used in a direct-application method (brushing or spraying) on all freshly cut stumps within the Project ROW. The total application volume of herbicide to be applied would be up to 50 gallons, and would be mixed with 50% water prior to application.*

*The long term ROW vegetation management program administered by Con Edison will employ the following herbicides for low volume foliar treatment, unless the current VMP or YOP at the time of application specifically directs the use of other herbicides:*

*Upland Area Treatment*

- *Krenite S (EPA Reg. No. 352-395) 4 gallons*
- *Arsenal Powerline (EPA Reg. No. 241-431) 2 quarts*
- *Escort XP (EPA Reg. No. 352-439) 2 ounces*
- *Aquafact Spray Adjuvant 1 gallon*
- *Water (to make 100 gallons)*

*Wetland Area Treatment*

- *Accord Concentrate (EPA Reg. No. 62719-324) 10 gallons*
- *Water (to make 100 gallons)*

***Response 5d:*** *Cricket Valley will comply with this condition.*

## *6. Agricultural Areas*

6a. Describe the program, policies and procedures to mitigate agricultural impacts, and explain how construction plans avoid or minimize soil compaction, crop production losses, and potentially wet agricultural soils. Also, list locations where such procedures have been and will be followed in facility construction and restoration.

6b. Indicate specific techniques and references to appropriate Agricultural Protection Measures recommended by the NYS Department of Agriculture and Markets, as available.

***Response 6 a - b:*** *The Transmission Facility has been located to minimize loss of active agricultural land and reduce impacts to agricultural operations. In accordance with input from NYSA&M, and as determined by the Project Agricultural Inspector, access for the Transmission Facility will utilize existing farm roads, and where possible, field edges to minimize the extent of disturbance to agricultural land.*

*Areas of potential impact on agricultural areas for those sections of the Project associated with Portion 1 tree clearing are shown on the Plan and Profile Drawings provided in Volume II. Methods to minimize impacts and restore agricultural lands are provided in the Notes and Restrictions on the drawings in Volume II. Areas of potential impact on agricultural lands will be depicted on the revised Project Plan and Profile.*

*Where temporary access or work areas are required in agricultural land, topsoil in the work area will be stripped and stockpiled in a temporary location designated by the Agricultural Inspector. As an alternative temporary measure, timber mats may be used instead of topsoil stripping. The Agricultural Inspector will determine whether mats can be used or if topsoil stripping will be required. If mats are used the mats will be layered where necessary to provide a level access surface. Once access is no longer required across agricultural areas, the mats will be removed and the Agricultural Inspector shall use a soil penetrometer to determine if soil compaction has occurred as a result of construction activities.*

*Confining vehicular access to designated construction access will minimize other potential construction damage to agricultural soils, in addition to providing designated work and storage/stockpile areas. Areas impacted during construction will be de-compacted or otherwise restored. Additional agricultural protection and restoration measures are described on the Plan and Profile Drawings provided in Volume II. Protection and restoration methods depicted were prepared in accordance with NYSA&M guidelines.*

## *7. Access Roads*

7a. Discuss the necessity for access to the ROW, including the areas where temporary or permanent access is required; and the nature of access improvements based on natural

features, equipment constraints and vehicles to be used for construction and maintenance, and the duration of access needs through restoration and the maintenance of the facility.

***Response 7a:*** *Access roads are required to provide construction equipment sufficient access to most construction areas in the ROW for initial clearing, the placement of tower structures, all stringing activities, and substation facility construction and subsequent maintenance. Where terrain is steep or other topographic features limit construction of new access roads or even the use of existing access roads, helicopters will be used to transport equipment and transmission structure components to the individual transmission structure locations. Helicopters will also be used to erect the structures. In locations where vehicular access to the ROW is required, road requirements of the equipment anticipated for use, including bearing requirements and consideration of turning radius, has been incorporated into Project planning and design. Permanent spur access roads have been designed to support use of the equipment planned (see Appendix S for use at each location e.g. CV-01, 02, 20, 21, 25, 32 and 37). Appendix S includes information on the specific type of construction vehicles to be used, as well as a turning radius analysis for that equipment. Construction access whether via access road or helicopter is depicted on the Plan and Profile drawings in Volume II.*

7b. Identify the types of access which will be used and the rationale for employing that type of access including consideration of:

(1) temporary installations (i.e., over-land provisions, corduroy, mat and fill, earthen road, geotextile underlayment, gravel surface, etc.);

(2) permanent installations (i.e., cut and fill earthen road, geotextile under-layment, gravel surface, paved surface, etc.);

(3) use of roads, driveways, farm lanes, rail beds, etc.;

(4) other access, such as helicopter or barge placement.

For each temporary and permanent access type provide a figure or diagram showing a typical installation (include top view, cross section and side view with appropriate distances and dimension). Where existing access ways will be used, indicate provisions for upgrading to meet appropriate standards.

***Response 7b (1) – (4):*** *Existing access roads are depicted on the Plan and Profile Drawings in Volume II. The drawings designate the specific areas where access roads will be along the ROW as well as those off the ROW. The drawings also show areas where no equipment access will be allowed. Access roads will consist of a travel corridor with an approximately 12 feet wide travel surface, to allow the safe passage of construction equipment. Spur access roads may be up to 15 feet wide to accommodate the turning radius of the equipment proposed for use. Diagrams depicting typical access road installations are provided in Volume II. Access roads and new permanent "spur" roads and all other Project activities are depicted on the Project Plan and Profile presented in Volume II.*

*As indicated in the response to 7a, helicopters will be employed at many locations except where some structures will be adjacent to public roads requiring ground access. More specifically, helicopters will be employed at many locations to transport drill rigs, compressors, and similar equipment to support construction of foundations. Personnel, small tools and other equipment will be transported to construction sites using Utility All-Terrain Vehicles ("UTVs").*

*In locations designated on the EM&CP as suitable habitat for Timber Rattlesnake, work will be completed during the time of year when this species is not active (November to March), or during the active season using Environmental Monitors to escort construction traffic and oversee work as detailed in Section E, Response 30 of this document. As indicated in Section E, Response, 30, Structures CV-12 to CV-15 and CV-50 to CV-55 will be constructed using dedicated Environmental Monitors rather than enclosing work areas in Type III barrier fence or working only during the dormant period. This would include escorting construction vehicles including UTVs, drill rigs, and other support equipment during the April to October period. In structure locations not listed above but located within Timber Rattlesnake habitat, construction would occur either within the dormant period for this species or by using helicopters to deliver materials and equipment to work sites.*

7.c. Indicate the associated drainage and erosion control features to be used for access road construction and maintenance. Provide diagrams and specifications (include plan and side views with appropriate typical dimensions) for each erosion control feature to be used, such as:

(1) staked hay bale or check dam (for ditches or stabilization of topsoil);

(2) broad-based dip or berm (for water diversion across the access road);

(3) roadside ditch with turnout and sediment trap;

(4) French drain;

(5) diversion ditch (water bar);

(6) culvert (including headwalls, aprons, etc.);

(7) sediment retention basin (for diverting out-fall of culvert or side ditch);

(8) silt fencing.

***Response to 7c:*** *Temporary erosion controls will be installed across or along access roads as necessary in order to minimize the potential for erosion and sedimentation. Some permanent controls, including water bars, will be required along some portions of the new spur and existing access roads. Specific details are provided in the Plan and Profile Drawings in Volume II of this document for.*

7d. Indicate the type of stream crossing method to be used in conjunction with access road construction. Provide diagrams and specifications (include plan and side view with appropriate dimensions) for each crossing device and rationale for their use. Stream crossing devices may include but not be limited to:

(1) ford (with or without gravel);

(2) ford with sill;

(3) timber mat;

(4) culverts including headwalls;

(5) bridges (either temporary or permanent).

All diagrams and specifications should include type and size of material to be placed in stream and on stream approaches.

***Response to 7d:*** *The Plan and Profile Drawings in Volume II depict potential stream crossings and proposed methods (BMPs) and details for stream crossings. In general, stream crossings along the ROW will be completed by crossing at locations of existing culverts or via the use of timber mats that will span the feature being crossed; no in-water work is proposed.*

## *8. ROW Management Plans*

8a. Describe the interim ROW vegetation management plan to be used for the proposed facility from the beginning of vegetative clearing until the comprehensive site-specific long-range ROW management plan is submitted. Include a description of the initial and follow-up vegetation treatment techniques; and the proposed contents of any post-construction and long-range ROW management plans. Such plans, when submitted, shall describe the goals and objectives and include supporting inventories and analyses, proposed and alternative techniques (including consideration of vegetative screening

and buffer areas at locations such as stream crossings, public roadways, and residential areas), schedules, and other important environmental information deemed necessary.

8b. Describe interim ROW management plans and standards for securing, stabilizing, monitoring and addressing ROW access roads, facility maintenance, and analysis of compliance with any post-restoration requirements.

***Response 8 a - b:*** *Vegetation clearing and disposal plans are incorporated in the Plan and Profile Drawings in Volume II of this EM&CP. Following construction of the Transmission Facility, the ROW will be maintained in accordance with Con Edison approved vegetation management plan.*

## *9. Organization of Document*

The document should include appropriate cross-references, indicating where the plan addresses specific requirements including:

9a. These Environmental Management and Construction Plan Guidelines;

9b. The Commission Article VII Certificate conditions and describing the procedures followed or that will be followed to comply with those requirements.

9c. If any particular requirements of these documents are not applicable, so indicate.

***Response 9a:*** *The EM&CP Guidelines have been addressed herein as Section III of the EM&CP document. Each comment has been responded to accordingly.*

***Response 9b:*** *The Article VII Certificate Conditions are addressed herein as Section II in this EM&CP. Each Condition has been responded to accordingly.*

***Response 9c:*** *Any particular requirements in either the EM&CP Guidelines or the Article VII Certificate Conditions that are not applicable have been identified in the response following each item in Sections II and III of this EM&CP.*